DEBATES

OF THE

LEGISLATIVE ASSEMBLY

FOR THE

AUSTRALIAN CAPITAL TERRITORY

DAILY HANSARD

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24 February 2026

This is an **EDITED PROOF TRANSCRIPT** of proceedings that is subject to further checking. Members' suggested corrections for the official *Weekly Hansard* should be lodged in writing with the Hansard office no later than **Tuesday, 17 March 2026.**

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Tuesday, 24 February 2026

MR SPEAKER (Mr Hanson) (10.00): Members:

> Dhawura nguna, dhawura Ngunnawal.
> Yanggu ngalawiri dhunimanyin Ngunnawalwari dhawurawari.
> Nginggada Dindi wanggiralidjinyin.

The words I have just spoken are in the language of the traditional custodians and translate to:

> This is Ngunnawal country.
> Today we are all meeting on Ngunnawal country.
> We always pay respect to Elders, female and male.

Members, I ask you to stand in silence and pray or reflect on our responsibilities to the people of the Australian Capital Territory.

Petitions

The following petitions were lodged for presentation:

Griffith—roads—safety petition 49-25

By **Ms Lee**, *from 97 residents:*

> **To the Speaker and Members of the Legislative Assembly for the Australian Capital Territory**
>
> The following residents of the ACT draw the attention of the Assembly towards the need for urgent action on the pedestrian crossing which crosses Captain Cook Crescent, next to the Franklin Street intersection, to ensure the safety of the many pedestrians who use this crossing on a regular basis. The crossing is located on a busy road, immediately outside the entrance to St Paul's Anglican Church and is used by many members of the local community. The crossing is signposted and there is a 40km speed limit in that zone, however, many users have reported cars not slowing down when approaching the crossing.
>
> Residents have witnessed numerous occasions where there have been near misses, including the elderly and women with children. The local community shouldn't have to wait until there is an accident on the pedestrian crossing before measures are taken.
>
> Your petitioners, therefore, request the Assembly to call on the ACT Government to consider the urgent need for traffic calming measures, such as speed humps, immediately before the pedestrian crossing which crosses Captain Cook Crescent, next to the Franklin Street intersection, to help enforce the speed limits.

Swimming pools—deep-water pools—petition 3-26 and 18-26

By **Mr Emerson**, *from 897 and 540 residents respectively:*

To the Speaker and Members of the Legislative Assembly for the Australian Capital Territory

The following residents of the ACT draw to the attention of the Assembly that the redevelopment of the Canberra Olympic Pool (Civic Pool) precinct into the proposed indoor Aquatic centre at Commonwealth Park currently excludes essential deep water sporting infrastructure, including a 5m deep Dive pool with Diving boards. The ACT is at risk of losing its only deep water Diving facility, which would impact Diving, Water polo, Underwater Rugby, school programs, and community recreation. No alternative facility exists or is planned.

Your petitioners therefore request the Assembly to call on the ACT Government to:

1. Amend the proposed indoor Aquatic centre in Commonwealth Park tender to require a 5m deep Dive pool with Springboard and Platform Diving facilities.
2. Ensure the new facility supports multiple aquatic sports requiring deep water.
3. Uphold the commitment to the community to provide and maintain existing and essential community sport infrastructure in the ACT.

Pursuant to standing order 99A, the petitions, having at least 500 signatories, were referred to the Standing Committee on Economics, Industry and Recreation.

Canberra Health Services—international medical graduates—petition 6-26

By **Mr Emerson**, *from 34 residents*:

To the Speaker and Members of the Legislative Assembly for the Australian Capital Territory

The residents of the Australian Capital Territory draw to the attention of the Assembly to the following: Australian citizen IMGs residing in the ACT have completed internationally recognised medical qualifications, passed Australian Medical Council (AMC) examinations, and met Australian Health Practitioner Regulation Agency (AHPRA) requirements. Despite this, many are unable to access initial supervised clinical roles within ACT Health. There is currently no publicly available, ACT-wide data or transparent reporting outlining how employment decisions affecting these local IMGs are made. This includes a lack of clarity on:

- Whether candidates are interviewed or clinically assessed,
- Whether decisions are based solely on CV screening,
- The reasons doctors are deemed unsuitable due to "clinical gaps," and
- How many local IMGs are supported through supervised re-entry or integration pathways after meeting regulatory standards.

At the same time, visa-holding IMGs are routinely employed in the same supervised roles to meet workforce shortages, while Australian citizen IMGs—who are residents, taxpayers and long-term members of the community remain excluded from the hospital system. This lack of transparency and consistency has significant consequences for workforce planning, fairness, clinician wellbeing and the efficient use of public investment in medical assessment processes. It also risks

the loss of trained doctors into non-clinical roles or other unrelated jobs making their skills underutilised, despite ongoing workforce shortages.

Your petitioners, therefore, request the Assembly to call on the ACT Government to:

1. Require ACT Health to collect and publish ACT-wide data on Australian citizen IMGs, including:
   - Numbers applying for clinical roles,
   - Reasons for rejection,
   - Use of interviews or clinical assessments,
   - Numbers supported through supervised integration pathways.
2. Develop a clear, transparent, and equitable entry pathway for Australian citizen IMGs who meet AHPRA and AMC requirements, including access to supervised clinical roles and observer ships.
3. Ensure consistent oversight and governance of IMG recruitment and assessment processes across ACT Health facilities.
4. Prioritise fair consideration of Australian citizens in workforce planning, while maintaining patient safety and clinical standards.
5. Engage directly with affected Australian citizen IMGs to inform policy reform and workforce solutions.

Margaret Timpson park—petition 17-26

By **Mr Cain**, *from 58 residents:*

To the Speaker and Members of the Legislative Assembly for the Australian Capital Territory

This petition of certain residents of the Australian Capital Territory draws to the attention of the Assembly that the ACT Government intends to develop Block 45 Section 54 Belconnen, adjacent to Margaret Timpson Park, for social housing.

The Belconnen community strongly supports the need for more social and affordable housing although believes this particular site should instead be incorporated into an extension of Margaret Timpson Park: a long-standing and widely supported community priority.

Extending the park would preserve much-needed green space in a growing town centre, enhance community wellbeing, and reflect the vision set out in the Belconnen Town Centre Master Plan.

Your petitioners therefore request the Assembly to:

1. Rezone Block 45 Section 54 Belconnen to public open space for the purpose of extending Margaret Timpson Park.
2. Identify and prioritise alternative, more suitable sites for new social housing within Belconnen; and
3. Commit to meaningful community consultation on the design and future use of the expanded parkland.

The Clerk having announced that the terms of the petitions would be recorded in Hansard and referred to the appropriate ministers for response pursuant to standing order 100, the petitions were received.

Motion to take note of petitions

MR SPEAKER: Pursuant to standing order 98A, I propose the question:

> That the petitions and responses so lodged be noted.

Griffith—roads—safety petition 49-25

MS LEE (Kurrajong) (10.03): I take note of the petition relating to the crossing at Captain Cook Crescent. First I want to put on the record my thanks to Amanda, the principal petitioner, for bringing this matter to my attention, for working with my office on it and for promoting it to other local residents.

The pedestrian crossing at Captain Cook Crescent, near the Franklin Street intersection—most people would probably know where it is, but maybe not by name—basically crosses both sides, between Coles in Manuka and St Paul's in that vicinity as well. If you have not crossed it by foot, you almost certainly have crossed it in your car. I could almost guarantee that. It is an intersection that is heavily used by local residents, including many seniors in our community, as well as families wrangling young children by hand or pushing them in a stroller. The pedestrian crossing has been a point of concern for many years. It sees a lot of traffic and residents have reported seeing many near misses for a long time.

Along with my colleague James Milligan, who was then the shadow minister for city services, I met with Amanda and saw firsthand the volume of traffic that passes over that pedestrian crossing. The traffic turns into the area from a number of different places, and it was obvious to us when we were there that measures are needed to alert vehicles to the presence of the pedestrian crossing. Despite existing signage and a 40-kilometre speed limit, many drivers are not seeing the crossing or are underestimating the speed at which they are going, and there is the fact that vehicles come from multiple directions. The crossing is directly outside St Paul's and foot traffic increases when there are community events and church services.

The community should not have to wait for a very serious accident before safety measures are implemented. The petitioners are calling for urgent traffic calming measures directly before the crossing to better enforce speed limits and protect pedestrians. It is disappointing that the government has not listened in the past. This is not a new issue, and, given there has been a lack of action, Amanda felt the need to ensure that this was once again brought to the attention of MLAs in this place.

The number of people who have signed this petition, which is almost 100, may not seem as many as for some other petitions that we have received in this place, and it does not go anywhere near the number of issues that I have personally received as the local member. Issues were also captured on ABC Radio only a few weeks ago when they were doing a live feed and were talking to a number of people at that place. The crossing

is raised with me pretty much every time I am in Griffith or Manuka, at a mobile office.

This petition is pretty simple. It calls on the government to consider the urgent need for traffic calming measures, such as speed humps, immediately before the pedestrian crossing at Captain Cook Crescent, next to Franklin Street, to help enforce the speed limit. Most people would think that this is a fairly reasonable measure and a fairly sensible call to the government. The local community should not have to wait until there is an accident before these measures are considered and implemented.

Margaret Timpson Park—petition 17-26

MR CAIN (Ginninderra) (10.07): As members would be aware, this is the third tranche of paper versions of the petition on the Margaret Timpson Park expansion. With some apology, it is not my intention to dribble these in for our attention. It is commendable that the community kept handing me paper versions of this petition, which, I must admit, I had lost track of. I am very grateful to the petitioners in Belconnen in particular who would love to see Margaret Timpson Park extended over the hole in the ground that has been there for a decade.

As I said on two occasions earlier this month, the hole in the ground has been there for a decade. It is slated for housing, but, with so much housing happening around the Belconnen town centre, I have spoken to apartment dwellers and to other community members and they would love to see a bit more green space in the midst of the densifying town centre. That is what the petition calls for. I am really grateful to people who have again brought my attention to the fact that there are more paper versions of the petition. I believe this will be the last tranche of those, but who knows. People are still working hard to get this over the line.

I am advised that, with the lodgement that I am speaking to today, petitioners have now totalled more than 500. I urge the relevant standing committee to have a close look at this petition and, as is required, determine whether an inquiry is required into expanded green space in the Belconnen town centre.

I will close with abiding disappointment with Greens members of this chamber, who oppose this petition. They oppose expanding green space in the Belconnen town centre, around densifying development in our city. The anti-green-space Greens will remain in my mind until they change their position. It is my hope that they will. I have spoken to a small family who want to live in an apartment in the Belconnen town centre and would love to see a bit more green space, yet the Greens are denying that with their cooperation with Labor members of this place. Please rethink your position. Please rethink your position and allow the inhabitants of a densifying town centre to have a bit more green space where they have chosen to live.

MS CLAY (Ginninderra) (10.10): I want to put a few things on the record straight. The former speaker said that I had opposed a community petition. I have never opposed a community petition in my life.

Mr Cain: You oppose the idea of it. You're opposing the expansion.

MS CLAY: I always support community petitions coming forward to the parliament.

That is a really important part of our democracy.

Mr Cain: You oppose what it calls for.

MR SPEAKER: Mr Cain, you have had your go.

MS CLAY: There was a matter before this parliament, where the Canberra Liberals asked this parliament to remove a site that had been zoned for community housing and turn it into some green space. We are in a housing crisis. Our public housing waitlist rose from 3,000 households to 3,500 households in the last year.

Mr Cain: There's plenty of extra housing happening around Belconnen.

MS CLAY: We have tens of thousands of people living in, frankly, abject misery at the moment because they do not have a home and they have no plausible way of getting a home, so the Greens took a deep conscience decision. We spoke to the community. We spoke to the Belconnen Community Council. We did a lot of consultation with organisations like ACTCOSS and ACT Shelter, and we thought about whether—

MR CAIN: The council would support the expansion.

Ms Stephen-Smith: Mr Speaker, on a point of order: Mr Cain is consistently interjecting. He was heard in silence. Ms Clay also deserves to be heard in silence.

MR SPEAKER: Yes. I agree with you, Minister. Mr Cain, I have already asked you to be quiet. If you continue, I will warn you.

MS CLAY: So we are supporting community housing for the Belconnen town centre. I have also spent quite a lot of the last five years calling for a school for the Belconnen town centre because we know that the people living there need a school. I have been calling for upgrades to Margaret Timpson Park and for a playground, and I am pleased to say that both of those calls now appear to be being delivered, because we know that people need these facilities too. And I have been calling for a number of other facilities in and around the town centre.

We need to make sure that, in a housing crisis, we are supporting public and community housing and that, in a climate crisis, we are supporting access to green space. It is a difficult balance, but we need to make sure that we are meeting the needs of people and the planet and that we are not leaving anybody behind on this journey.

MS BARRY (Ginninderra) (10.13): I rise to speak in support of this motion. I have spoken to the subject of this motion previously. I want to make a few points. I understand that there is a housing crisis, and that is absolutely paramount in the considerations that we make in this place. However, we are building apartments in the Belconnen area. You need infrastructure to support it. It is easier to claim back a green space than it is to claim back a building. Let the rest of the development in Belconnen happen, but this is still a hole in the ground and something needs to be done to it. Mr Cain's suggestion is absolutely on point. It needs to be a space that families, who are being boxed in by all the developments happening in Belconnen, can go to and use.

We are building concrete blocks where people are going to live. That has a flow-on consequence on the wellbeing and mental health of people. It is really important that that consideration also be given weight, and it is really important that we have the debate together with building homes for people. They are not mutually exclusive.

Swimming pools—deep-water pools—petition 3-26 and 18-26
Canberra Health Services—international medical graduates—petition 6-26

MR EMERSON (Kurrajong) (10.14): I rise to speak in support of the petition I have sponsored that calls on the government to ensure a deep-water dive pool is included in the new Canberra Aquatic Centre. The principal petitioner, Ann Widdup from the Canberra Diving Academy, first raised this issue with me following the release of the tender documents for the design of this facility. Those documents set out the minimum requirements for the centre as including a 50-metre pool and a splash pool, and, notably, no deep-water dive facilities. Understandably, Ms Widdup and many other members of our community found that deeply concerning.

In response, almost 1,500 Canberrans signed this petition, either electronically or on paper. It is supported by a united position of the Friends of Canberra Olympic Pool and the ACT Aquatic Alliance, representing the Canberra Diving Academy, Water Polo ACT, Swimming ACT, ACT Triathlon, Canberra Underwater Rugby, and ACT Underwater Hockey. All these organisations are asking for one simple and very reasonable thing: a genuine like-for-like replacement of what we already have. That expectation has been formed and ventilated through multiple hours of community consultation undertaken by both levels of government.

People engage in good faith and they reasonably assume that essential facilities would not be downgraded or removed. Violating those assumptions seems a bit like asking someone if they would like coffee or tea and then giving them water, regardless of what they said. Each sporting group I have mentioned is entirely dependent on the deep-water dive facilities currently available at Canberra Olympic Pool. Without these facilities, these sports cannot train, cannot compete, and some cannot survive in the ACT. The practical implication of the government's apparent current position is that some of those sports would disappear from Canberra if a different decision is not made. This, of course, is not a reasonable outcome.

Promise of a diving facility somewhere else at some point in the future is not good enough either. The government has indicated that the primary barrier to including a deep-water dive pool at Commonwealth Park is the additional cost associated with excavating and building on the site's rocky terrain. That raises the question: why did the government choose to build a $138 million aquatic facility at a site that may be incompatible with the needs of our community? Surely feasibility assessments were undertaken before this site was selected. Surely the geological conditions of Commonwealth Park were known, at least to an extent. It is difficult to accept that the implications of those conditions were not understood before such a significant commitment of public funds was made by Labor at both levels of government. To be clear, I am not opposed to the site that has been selected, but my point here is that the responsibility lies with the government to make sure the site they have chosen works without removing essential facilities.

This project benefits from a 50-50 funding partnership with the commonwealth. From what I have been able to determine, this appears to be the first time the federal government has committed funding for an aquatic facility in the ACT since self-government. We were the only state or territory to completely miss out on $316.5 million in federal funding committed to aquatic facilities across Australia between 2017 and 2022. Against that backdrop, the prospect of our friends on the hill funding this new facility and then co-funding another new diving facility somewhere else in the ACT seems close to zero, meaning that, if the government's plan is to not include a deep-dive pool at the Commonwealth Park facility and to put one somewhere else instead, it would effectively double the cost to the territory.

Further, community confidence in vague future promises is understandably low. Canberrans have waited years for replacement infrastructure that was identified as urgent, only to see projects delayed, deferred or rescoped. The obvious solution is to include a competition-level dive pool in the new Canberra Aquatic Centre, and, if absolutely necessary, to seek additional commonwealth funding in order to do so. Yesterday, I sent a joint letter with Senator David Pocock to the Chief Minister and the federal finance minister, Senator Katy Gallagher, calling for exactly that. The letter was co-signed by Friends of Canberra Olympic Pool and the ACT Aquatic Alliance, and it made clear our shared position. Our community expects a deep-water dive pool to be delivered as part of the new Canberra Aquatic Centre, and that is what this petition calls for.

I want to very briefly speak on the petition tabled in my name regarding pathways for international medical graduates. Migrants are essential to Canberra's social fabric. They are often highly skilled and educated members of our community who want to use their abilities to make a positive contribution, and they may have been forced to take leave from their career to accommodate changing life circumstances. This leaves many people between a rock and a hard place. They want to be able to work in their chosen profession but cannot, so they are forced into occupations that do not use their much needed skills while our healthcare system faces critical shortages.

International medical graduates fall into this category and struggle to be accepted into internships and further training opportunities. I am not the only one in this place who is keen to see some movement on this, which is why I sponsored this petition from Udaya Pillutla. It analyses a reasonable set of asks that I hope to see the government consider closely.

MR RATTENBURY (Kurrajong) (10.19): I rise to speak in support of the petition Mr Emerson just spoke to regarding the provision of a deep-water diving pool in the ACT. I caught up with stakeholders on Friday and we had a good discussion about this. It is very concerning because we are now seeing the proposition that the Canberra Olympic Pool deep-water diving facility would close, but no new facility would be available in the ACT. This is a situation we cannot tolerate. Surely, we must plan better than this.

Certainly, there is a clear expectation, both articulated by the government and held by the community groups, that, if Canberra Olympic Pool is to be replaced, there would be a like-for-like replacement. To then come out with a design that does not include a deep-water pool is not a like-for-like replacement. We talk about it being a diving pool,

but it is really clear that there is a range of sports that rely on these kinds of facilities. A couple of the sports that I saw last week included underwater hockey and underwater rugby. These are sports that perhaps most of us have not tried, but they are sports that active Canberrans are doing.

The very point about having a decent sport and recreation policy is that you want to have things available so that people find their thing and do it. We need an active community. It makes people's lives better; it makes their health better and it makes their mental health better; it provides community connection—all the things that anyone who has been involved in sport knows are important parts of it. We need to provide facilities for our community to undertake them.

The briefing note that the team from the Diving Academy handed to me identified some of the issues, including it being too hard to dig a five-metre hole at Commonwealth Park. We are digging a 3.5-metre deep pool. What is the difference, then, with a five-metre deep-water diving pool? That is the question that was posed. Issues have been flagged around height restrictions at the lake, but it has also been flagged that this facility would not dominate the skyline of the lake and would certainly not be higher than the National Gallery, for example. When you dig into the issues that have been thrown up, they do not seem to hold water.

The issue of there not being enough space at the site raises questions about whether there was actually an options analysis for the location of the new Civic pool. And, if there was, why was this one chosen? If you cannot fit in a like-for-like replacement, that options analysis clearly did not do the job it should have been doing. We also have issues around the fact that, in the past, there was a discussion about building a diving facility at Stromlo. People were happy to go along with that if that was the option, but we have not seen that diving facility constructed at Stromlo. There is a whole discussion about that and I do not intend to get into the minutia of it. What was brought up in the conversation with the community is their concern about the prospect of a diving facility being deferred somewhere into the future, because they have seen this story before, when the discussion was about Stromlo, and the Stromlo facility has not materialised.

If Canberra Olympic Pool is to close without a clear plan for a new facility, people are very worried. We cannot be in a situation where Canberra Olympic Pool closes with the promise of a future deep-water pool or diving facility. We need to ensure that, if that one is to be closed, a new one is available and ready to go. That is the continuity that the participants in these sports deserve, and that is what this government and this Assembly should be striving for.

Griffith—roads—safety petition 49-25
Swimming pools—deep-water pools—petition 3-26 and 18-26

MS CARRICK (Murrumbidgee) (10.23): I would like to support traffic calming measures where they are needed. The principal of Sacred Heart Primary School and I have asked for traffic calming outside Sacred Heart in Pearce, but, after numerous emails and a briefing, it is not clear to me that directorate staff understand the issue. They continually pursue a different project nearby and do not recognise the principal's concerns about near misses due to cars screaming down the hill towards the crossing. So I would urge the minister to check with her directorate that they actually understand

the principal's concerns.

I would also like to say that there is nothing like a pool petition. I thank Canberra Diving Academy coach, Ms Ann Widdup, and Mr Emerson for presenting this petition to the Assembly. The petition reflects the significant efforts of the Aquatic Coalition, bringing together 30 community and sporting groups, as well as individual aquatic organisations such as Safe at the Pool, Save Big Splash, Friends of Canberra Olympic Pool, and Friends of Manuka Pool. Their work demonstrates how highly valued our pools and aquatic infrastructure are to Canberrans. Last year alone, Canberra's public pools recorded more than a million visits. These facilities are clearly not luxuries; they are essential community assets.

The heritage-listed dive tower and deep-water pool at Civic are used by a remarkable range of groups: competition divers, underwater hockey and rugby, water polo, artistic swimming, Inland Nippers, and of course the many kids who simply love bombing into the deep water over summer. When it was announced that the Civic pool would be demolished to make way for a new convention centre and that a replacement pool would be built in Commonwealth Park, many assumed the new facility would at least provide a like-for-like outcome. With a budget of around $138 million, it is reasonable to expect a facility that meets or exceeds the standards of similar projects, such as the recently delivered Adelaide Aquatic Centre.

Canberra must retain diving facilities and a deep-water pool. Without them, several much loved sports will simply cease to exist here. While the ACT government determines the budget, location and timeline for a replacement facility, it must guarantee that the current Civic pool and its deep-water capability remains open until a new facility is complete. We would, of course, warmly welcome diving facilities and a deep-water pool at the new aquatic centre planned for Woden.

Canberra Health Services—international medical graduates—petition 6-26

MS TOUGH (Brindabella) (10.26): I also rise to speak on the petition for equitable workforce pathways for Australian citizen international medical graduates in the ACT that Mr Emerson has sponsored. I thank him for sponsoring that petition. I thank Dr Udaya for her advocacy on this issue and for taking the time to meet with me recently—and I know she has met with many others in the Assembly—to discuss the plight of Australian citizens and permanent residents who are international medical graduates. It is a really tough situation for them.

I appreciate Dr Udaya sharing her story and the stories of so many others here in Canberra who are in that situation. They are people who studied medicine overseas and did not come to Australia through a medical job pathway. Some graduated medicine and worked as a doctor overseas, and then someone in their family got a job in Australia—for example, in IT—and the whole family moved here, but that left a gap in their employment, so it makes it hard to be employed in medicine in Australia. There are some Australian citizens who have studied overseas for a variety of reasons and then they are unable to find a pathway when they come back.

I thank Minister Stephen-Smith's staff for meeting with me recently about the situation.

We had a really good discussion around the situation here in the ACT and what happens across the country. I look forward to hearing further from her office about this, and I look forward to seeing a response to this petition. I hope that people like Dr Udaya can work in their chosen field of medicine.

Question resolved in the affirmative.

COVID-19 response operating model—review
Ministerial statement

MS STEPHEN-SMITH (Kurrajong—Minister for Health, Minister for Mental Health, Minister for Finance and Minister for the Public Service) (10.28): I rise to update the Assembly on the work undertaken to strengthen the ACT's preparedness for future public health emergencies, and how lessons from the COVID-19 pandemic are now embedded into our everyday operations.

In 2023, the ACT engaged the Nous Group to conduct a review of the systems, processes and governance arrangements implemented in response to the COVID-19 public health emergency over the period 2020 to 2023. The intended outcome of the review was to distil recommendations for an effective, proportionate and targeted future public health emergency management capability.

A final report was presented to the former ACT Health Directorate in late June 2023. The report put forward 12 recommendations which sought to enhance capability to effectively respond to future public health emergencies and ensure that planning and preparedness are embedded in business-as-usual capacity. Since receiving the report, the directorate has progressed implementation of the recommendations across five critical areas or themes: health emergency planning, information technology and surveillance, funding, workforce capability, and legislation.

A major achievement has been a review and complete revision of the Health Emergency Sub-Plan. The Health Emergency Sub-Plan, a sub-plan to the ACT's Emergency Plan, now incorporates critical lessons learned from COVID-19, clarifies activation protocols, and strengthens governance arrangements. It also includes new themes such as One Health, disaster resilience, mental health supports, and responses for priority populations. The plan is supported by a new Incident Management Framework and refreshed governance, including the establishment of a new Health Emergency Management Committee and a Health Emergency Community of Practice. Representation on these committees is more targeted than previous committee structures and covers government and non-government sectors.

We have also modernised the territory's disease surveillance systems through the continued investment and rollout of the Notifiable Disease Management System, which delivers stronger technical infrastructure, including electronic disease notification and automated reporting, minimising the need for manual data entry.

Strengthened technical staffing capability is better supporting preparedness activities and responses to notifiable diseases. Embedding this capability within the operational team enables rapid implementation of initiatives, improved data collection, more efficient analysis, and improved capacity to advise on emerging risks. This work is

supported by a new Notifiable Conditions Surveillance Plan, which guides the collection, analysis and reporting of quality notifiable disease data.

A new Notifiable and Infectious Disease Surveillance Committee has been established to regularly monitor and review notifiable disease data. The committee provides a further mechanism to support planning and decision-making for current and emerging public health threats. It advises the Chief Health Officer on additional public health measures or actions that may be required to respond to changing risk environments. Each of these initiatives enables more timely detection and faster response to emerging infectious diseases and outbreaks that may impact the ACT community.

In addition to strengthened disease surveillance, we have also strengthened our broader workforce capability after the Nous review highlighted the critical need for a flexible and coordinated surge workforce. An internal surge workforce arrangement has been established within the Health and Community Services Directorate to support responses to smaller scale and short-term public health threats or outbreaks. Localised training is provided for staff who have nominated to be part of this surge availability.

As a next step, a structured training plan is under development for staff and executives involved in emergency responses. The program covers core emergency management principles, as well as specialised components of public health response, such as contact tracing. It draws on internal expertise and cross-agency training opportunities, including functional exercises, to ensure there is a consistent understanding of roles and responsibilities across government and to identify any gaps in preparedness or planning.

External workforce initiatives will also be considered when a surge response is required. For example, the directorate engaged ANU Master of Applied Epidemiology students to support urgent contact tracing efforts in response to the ACT's 2024 H7N1 outbreak. Discussions are also underway at a whole-of-government level to consider a more coordinated surge model for larger scale or longer term emergencies.

A scoping exercise assessed whether permanent amendments to the Public Health Act 1997, similar to those temporarily applied during the COVID-19 pandemic, were required to strengthen emergency response powers. This scoping identified the need to align with broader emergency management reforms before amendments are considered, including the upcoming review of the Emergencies Act 2004.

The work undertaken to date has been highly collaborative. Whole-of-government engagement has ensured that the Nous review insights are shared and applied, where appropriate, beyond the health sector. Extensive targeted external consultation has also informed the revised Health Emergency Sub-Plan, including with the community sector and consumer representatives.

The ACT government's investment in the 2023-24 budget provided additional funding for the future management of public health and communicable disease threats, including COVID-19. Funding has supported enhanced preparedness and planning activities, reflecting government and community expectations that these threats will be managed in a way that is effective, efficient and proportionate.

Importantly, the lessons of the COVID-19 pandemic have now shifted from reactive

response to business-as-usual practice. The work undertaken provides a strong foundation for continued improvement and gives confidence that we are well positioned to manage future public health emergencies. This is increasingly important in a globalised world, where a changing climate is creating greater risks for the incursion of new and exotic diseases into Australia and the ACT.

In short, our health emergency arrangements are now more flexible, scalable and better integrated across the health system and whole of government. I thank all involved for their ongoing commitment to protecting the health and wellbeing of Canberrans.

I present the following paper:

> Outcomes of the Review of the Covid-19 Response Operating Model—Ministerial statement, 24 February 2026.

I move:

> That the Assembly take note of the paper.

MR PARTON (Brindabella—Leader of the Opposition) (10.35): I thank the minister for this statement. I think that this assessment of the review of the COVID-19 response operating model is most important. The COVID pandemic was one of the biggest tests of our capability to pivot in an emergency and, on many fronts, we succeeded.

The reality, though, is that we failed in a lot of areas too. That is evidenced by the fact that, if we had a pandemic arrive on our doorstep tomorrow, there are many things that we would do differently. I guess if you did not learn from this exercise, it would be a missed opportunity on that front. Much of that failure is difficult to criticise because the powers that be, whether they be federal or state and territory jurisdictions, were responding to a worst-possible-case-scenario model, as well they should. I recall at the time seeing some data from the feds on what the level of hospitalisations could be in the ACT—about the level of ICU inpatients, about the worst-possible-case-scenario mortality rates. I understand that those worst-possible-case scenarios did not differentiate, but the modelling was based on the impact that COVID-19 had in other countries, and it is difficult to be critical of extreme measures that were taken to cushion the impact of the pandemic here.

We, as a territory, should be most pleased by the fact that the territory's disease surveillance systems have come out of this exercise in much better shape. As articulated by the minister, they are now match-fit. I am pleased to hear that a new Notifiable and Infectious Disease Surveillance Committee has been established here, and to hear about the internal surge workforce arrangements, because they are important. COVID caught us unaware. We responded quickly, but the whole episode displayed to us that we were not ready for that sort of emergency—and here's hoping that we are now. The minister assures us that the health emergency arrangements are now more flexible, scalable and better integrated across the health system and whole of government. We take that assurance at face value, and we will hold the minister to her words should we find ourselves in a similar predicament any time soon.

I thank the minister for providing that update.

MS STEPHEN-SMITH (Kurrajong—Minister for Health, Minister for Mental Health, Minister for Finance and Minister for the Public Service) (10.37), in reply: Very briefly, in closing, I thank Mr Parton for his response. I note that the reason we did not see those levels of impact on our health system and our intensive-care units and, indeed, the amount of death and disease that other communities saw was the swift action that was taken by both the commonwealth and state and territory governments in response to the COVID-19 pandemic. We are a fortunate country. We have a very large moat. We used it, and we used it to good effect by closing the border in a timely way.

I strongly recommend to everyone in the chamber, but particularly Mr Parton, an excellent series that is currently airing on the ABC called *This England*. It is a bit trauma-inducing, but it is a great demonstration of what happened in the UK, when they did not make these quick decisions.

Question resolved in the affirmative.

Bushfire preparedness—update
Ministerial statement

MS CHEYNE (Ginninderra—Manager of Government Business, Attorney-General, Minister for Human Rights, Minister for City and Government Services and Minister for the Night-Time Economy) (10.38): It has been a challenging season for us as it relates to the bushfire season. Mercifully, we have not had to experience a season like this since the 2019-20 season. Certainly, this past season has invoked memories of that.

I rise to highlight and acknowledge the effort of firefighters from the ACT Parks and Conservation Service and the Rural Fire Service in supporting the bushfire response in the ACT and in other states and territories over this summer. In saying that, I also extend my thanks to their families, their loved ones, those who were looking forward to celebrating with them when they might have been called away, and all who supported them in their work, including people throughout our directorates and other volunteer supports.

As I mentioned, this past bushfire season was one of the most challenging in the last few years. There has been significant fire activity across multiple states and territories. Over this summer, thousands of firefighters, incident control personnel and support crews from across Australia, including highly trained teams from the ACT Parks and Conservation Service and the Rural Fire Service, played a vital role in protecting lives, property and our natural environment.

In early January, following storm activity, a series of bushfire ignitions occurred in remote areas of Namadgi National Park. The bushfires were in rugged, difficult-to-access terrain, far from fire trails and with sensitive conservation values. They required timely, careful and specialised responses. Helicopters worked in rotation, bombing the fire, while firefighters were being brought in. Specialist remote area firefighting teams from the PCS and the RFS worked in extremely challenging conditions to secure hotspots, extinguish active areas and construct containment lines.

These areas were so remote that firefighters were inserted either by helicopter or by

boat on Bendora Dam. Boats and helicopter buckets had to be specially washed down to avoid spreading the deadly epizootic haematopoietic necrosis virus into the Cotter catchment, which could have wiped out an ACT threatened fish population.

PCS staff, including an environmental values officer, worked in the Incident Management Team to provide advice on ecological sensitivities in the area and to highlight the importance of implementing biosecurity measures to protect our environment. Crews worked tirelessly, day after day, to extinguish hotspots and strengthen containment lines. This occurred in what became a race against time before dangerous fire weather was due to arrive on 10 January—a day that represented the first total fire ban since 2020. I think everyone can recall that even the days leading up to that total fire ban were very, very hot, let alone while wearing all the gear that our crews were wearing.

Fortunately, the hard work of the ACT's fire crews in Namadgi National Park paid off. All four active bushfire incidents remained contained and were finally declared out. These efforts in our catchment not only preserved areas of ecological sensitivity but also safeguarded the quality of the ACT's beautiful drinking water.

I am also pleased to advise the Assembly that it appears the ecological and environmental impacts of both the fires themselves and the firefighting response were minimised, thanks to the rapid suppression efforts that limited the size of the fires. This included preventing spread into endangered alpine bog ecosystems, and through a proactive approach to considering ecological risks during firefighting operations.

Of course, the work did not stop there. Dangerous and fast-moving fires near the ACT were also fought by our firefighters. Over the summer, four separate strike teams made up of RFS and PCS tankers were deployed to fires around Wee Jasper, Braidwood and Yass, deploying on very short notice to work late into the night to extinguish blazes and protect life and property. This was in addition to the scores of fires managed so quickly and effectively that hardly made the news, from trees alight on the southern tip of Namadgi to woodland fires on Mount Ainslie. There were a few others throughout Canberra as well.

The 2025-26 fire season also placed immense pressure—and, indeed, devastation—on communities in Victoria, with significant grassfires and bushfires igniting under conditions of very high fire danger, leading to the declaration of a state of disaster. Again, our firefighters from the PCS and the RFS answered the call, travelling to fires across Victoria whenever brief pockets in the ACT's fire conditions would allow. It is worth stressing the point that our fire conditions in the ACT were always of the most paramount consideration so that the ACT was always safe, but we were also looking to support our neighbours wherever we could.

After talking with the crews that worked these fires, I can say that the experiences were fascinating, and they varied greatly from person to person. There have been long days in fire trucks investigating smoke sightings at the Tallangatta fire, as well as taking charge of planning in incident management teams at the fire near Seymour. They have implemented colossal back-burns along the Walwa fire, and there have been long days assessing dangerous trees in order to reopen roads for communities, only to then be evacuated from their campsite in the middle of the night due to potential fire threat. In

total, there were seven truck based rotations, two dangerous tree assessor rotations and two Incident Management Team roles filled by ACT PCS and RFS personnel.

On behalf of the ACT government, I extend profound gratitude to all firefighters, leaders and support crew who worked tirelessly in very challenging environments this summer. Their professionalism, courage and commitment exemplify the highest standards of public service and community protection.

The experiences of this past fire season reinforce the importance of preparedness, inter-agency cooperation and ongoing investment in training, equipment and protective infrastructure. Climate change is already driving elevated fire danger and severity in the ACT. Regrettably, this is set to accelerate over coming years, meaning these efforts will need to ramp up and adapt in coming years.

The government will continue to strengthen the capabilities of the ACT's land management agencies, emergency services, volunteers and communities to reduce fire risk, improve capability and improve resilience and response capacity, and to strengthen our collective readiness for the challenging fire seasons ahead. We are indebted to their professionalism and efforts. I commend this statement to the Assembly.

I present the following paper:

> 2025-2026 bushfire season update—Ministerial statement, 24 February 2026.

I move:

> That the Assembly take note of the paper.

MR BRADDOCK (Yerrabi) (10.46): I thank the minister for her statement in terms of the bushfire season response. I too would like to echo her comments in thanking everyone who was involved in the lead-up to and the preparation of any actual response to fire emergencies as they unfolded over the summer period.

We have been extremely fortunate over the last few years to have had relatively mild seasons over the summers. This last season was a break from that, but it is also an indication, as the minister alluded to, that climate change will continue the worsening of the fire seasons, requiring us to invest even more to adapt to this reality. It is a brutal statement, and we need to invest as much as we can into climate mitigation and climate adaptation to ensure that we can keep our communities safe.

Question resolved in the affirmative.

National Skills Agreement—update
Ministerial statement

MR PETTERSSON (Yerrabi—Minister for Business, Arts and Creative Industries, Minister for Children, Youth and Families, Minister for Multicultural Affairs and Minister for Skills, Training and Industrial Relations) (10.47): Vocational education is the pathway to a career with impact. Our city runs on the work of people who hold a VET qualification. Their skills and expertise are at the heart of Canberra, and each day

they leave a positive impact on our community. The ACT government recognises that we are only able to set up our learners for success when we have built a strong, supportive VET sector. We need to equip them with the skills they need for their career, both now and into the future.

The National Skills Agreement is at the heart of building a strong VET sector. This agreement, established under the Albanese Labor government, brings together the commonwealth with all states and territories to directly support VET learners through a generational investment in vocational education. Over $64 million has been invested between the ACT and Australian governments into our local VET sector. This funding is designed to deliver on implementation plans across key VET policy areas that will uplift our sector's capability and ensure it is meeting the skills needs of our city. I am pleased to provide an update to the Assembly on these initiatives.

The first policy priority area is Closing the Gap, a priority area of the National Skills Agreement. Our efforts in this space will be developed and delivered in close collaboration with the ACT Elected Body and our Aboriginal and Torres Strait Islander community. We recognise that we need to work with our Aboriginal and Torres Strait Islander community to build workforce capability in our ACT Aboriginal community controlled organisations, and we have made an initial funding injection to support this work.

Work is also progressing on developing shared decision-making frameworks that will guide the delivery of the National Skills Agreement in the Aboriginal and Torres Strait Islander owned training sector. These efforts support the wider National Skills Agreement goal to support students reaching their full potential through further education pathways, which aligns with target 6 of the National Agreement on Closing the Gap.

We also recognise that foundation skills are at the forefront of a successful education. For those who have left school, or who have not had the same opportunity through their journey as others, access to foundation skills is vital. This access will ensure that they can have control of their future and build a life that they want to lead. The ACT government has long recognised this and has supported lifelong training through the Adult Community Education Grant Program. We are pleased to have partnered with the commonwealth through the NSA to significantly expand these offerings. Under this program, the ACT partners with providers who provide the wraparound support and pathways for students, setting them up to succeed in their education journey. This includes programs such as Stepping Stone Cafe's Women Skilled to Succeed program, which provides training and employment to vulnerable refugee and migrant women in getting foundational skills in hospitality, tourism and horticulture.

Other funded initiatives include Message Stick Foundation's Strong Pathways, providing First Nations young people with culturally responsive teaching, mentoring and wraparound supports, and the Capital Region Community Services' Bridge to Brighter Futures, providing education and employment to young people aged between 17 and 24, building their confidence through vocational learning and finding them placements to further education and employment. These programs offer a brief taste of the partnerships we hold with our community sector in delivering support to learners by accessing a meaningful pathway to learning and employment.

We recognise that, as much as we support people into pathways into vocational learning, we need to make sure we are helping them to complete their studies. We know that not every learner completes their studies, and there are multifaceted reasons. It is an issue that the ACT government takes seriously, but we cannot solve it alone. The Improved Completions implementation plan will provide targeted grants to RTOs, industry and community organisations to develop and deliver projects that work with VET learners to successfully complete their qualifications. These grants will provide funding to pilot innovative solutions and approaches to supporting students. I look forward to announcing the first round of grants later this year.

This program will support targeted, tailored interventions to provide support to students who may need a little more help to ensure they succeed in completing their studies. For apprentices and trainees, we will be complementing these programs with our message support service. This will provide a place where apprentices can reach out to Skills Canberra to receive information and support at critical points in their learning journey. New South Wales recently piloted a similar approach. It found that it succeeded in improving the retention of apprentices and made sure they had confidence they could find support and assistance as they made their way through their studies.

This year we are also working to establish a careers hub for the ACT. This hub will provide a central place to connect learners and industry, helping them to find opportunities for employment and supporting critical industries to find learners they can employ. These are important initiatives that will make substantial and long-term improvements to completion rates for VET qualifications.

Further, I have spoken at length in this place about our TAFE centres of excellence that we are hosting here in the ACT. The work they are doing has been impressive, and I am pleased to see them coming into their own. Our Electric Vehicle Centre of Excellence is approaching 12 months of operations, and the new state-of-the-art training facilities and equipment have seen the CIT expand their offering of heavy and light vehicle training. Through this centre of excellence, the CIT are now working on further new course offerings, new training technologies, and providing training resources that will help TAFEs across Australia to uplift their training in EV technology. The CIT will continue to partner with industry to understand future needs as we continue to adopt electric vehicles here in Canberra and across Australia.

In addition, late last year, we launched our second centre of excellence, this one for cybersecurity. Canberra is recognised as Australia's cybersecurity capital, a hub where government and tech companies converge to secure Australia's digital future. The centre of excellence will continue to explore with CIT's partners how we train the digital workforce we need to meet the cybersecurity challenges we face as a nation. This will include the development of training approaches to support early-career cyber professionals to get a foot in the door with the skills they need, as well as helping established career professionals to sharpen their practical skills.

The fact that the CIT has been chosen to host these two centres of excellence is both testament to their nation-leading work in these areas and a great opportunity for our city. Our centres of excellence will continue to innovate our approach to VET learning and provide leadership to TAFEs nationally on these critical skills areas.

I have spoken at length about all we are doing for learners through the National Skills Agreement, but our support for learners would not be complete without support for our TAFEs and those who teach in them. Through our enhanced VET data and evidence implementation plan, we are implementing the new VET information standard and national data system. It will simplify how training data is collected and shared, providing faster and more accurate information and insights to our VET sector. At the same time, we will roll out our sector cybersecurity uplift, strengthen protections for VET providers, and help organisations to ensure sound digital security for their data.

In addition to this, the National Skills Agreement has established the National TAFE Network. We know that the challenges we are facing in Canberra are not unique; they are felt across TAFEs around the country. To foster collaboration, the National TAFE Network provides funding and resources to share best practice and ensure our public RTOs are well placed to meet the challenges they are facing together. If a TAFE finds a good way to approach a problem, it needs to be shared so that all learners may benefit from developments in VET learning.

Finally, we are investing in our VET workforce. Increasing workforce capacity and capability will be a strong focus under the NSA. Through the CIT, we are developing a VET workforce capability plan and capability framework that will build digital skills capacity and capability for the VET workforce. These programs will aim to improve retention and attract new educators to the VET sector, strengthening our link with industry, peak bodies and jobs and skills councils to ensure we know what the needs for educators are and how we can meet them.

These implementation plans are the National Skills Agreement at work in our community. It provides a generational investment to enhance pathways for learners, uplift our VET workforce and find opportunities for innovation in VET teaching. We are on a long journey, but these investments are building the VET sector that we need to meet the needs of our learners now and into the future.

I present the following paper:

> National Skills Agreement implementation update—Ministerial statement, 24 February 2026.

I move:

> That the Assembly take note of the paper.

Question resolved in the affirmative.

Estimates 2026-2027—Select Committee
Establishment

MR COCKS (Murrumbidgee) (10.57): I move:

> That:
>
> (1) a Select Committee on Estimates 2026-2027 be appointed to examine the

expenditure proposals contained in the Appropriation Bill 2026-2027, the Appropriation (Office of the Legislative Assembly) Bill 2026-2027 and any revenue estimates proposed by the Government in the 2026-2027 Budget and prepare a report to the Assembly;

(2) the Committee be composed of:

(a) one Member to be nominated by the Labor Party;

(b) one Member to be nominated by the Liberal Party;

(c) one Member to be nominated by the ACT Greens; and

(d) one independent Member;

to be notified in writing to the Speaker within two hours of this motion passing;

(3) a Liberal Party member shall be elected Chair of the Committee by the Committee;

(4) funds be provided by the Assembly to permit the engagement of external expertise to work with the Committee to facilitate the analysis of the Budget and the preparation of the report of the Committee;

(5) the Committee is to report by Friday, 28 August 2026;

(6) if the Assembly is not sitting when the Committee has completed its inquiry, the Committee may send its report to the Speaker or, in the absence of the Speaker, to the Deputy Speaker, who is authorised to give directions for its printing, publishing and circulation; and

(7) the foregoing provisions of this resolution, so far as they are inconsistent with the standing orders, have effect notwithstanding anything contained in the standing orders.

This is largely a procedural motion, because we do it every year, but it is important. The estimates committee is the formal structure that enables this Assembly to discharge one of its core responsibilities: the scrutiny of the executive's management of public funds. This motion establishes a committee composed of one member from the Canberra Liberals, one from the Labor Party, one from the Greens and one Independent member. It also reaffirms the longstanding tradition that the estimates committee is chaired by a member from the opposition. This ensures that the process remains focused on independent inquiry and robust accountability.

The importance of this committee has perhaps never been greater. We are entering this budget cycle in the context of persistent deficits, rapidly rising borrowings and structural pressures that are becoming increasingly difficult to ignore. We are entering this budget cycle on the back of repeated claims that the government was going to hit a surplus. That has never eventuated. When the budget position is tight, the margin for error disappears. Any dollar mismanaged and any program failing to deliver its promised outcome has a direct impact on the services Canberrans rely on—whether that is in our hospitals or our schools, or whether it is in the infrastructure we have in our suburbs.

The estimates process is critical for allowing us to look past the high-level figures and the narrative that the government brings and for allowing us to, instead, examine the underlying assumptions of the budget—to look at the numbers and the delivery track

record. It gives this Assembly the chance to test the evidence, to test the ministers and the directorates, to ask the difficult questions about sustainability of the budget and to ensure that the community is getting the value for money that it demands and deserves.

This committee is about more than just numbers on a page. It is about transparency and responsibility. It is about honesty and integrity in budgeting and the ACT's financial management. I look forward to the work of the committee, and I commend the motion to the Assembly.

Question resolved in the affirmative.

MyWay+—order to table documents
Amendment to order

The Clerk: Pursuant to standing order 213B, the Clerk has received correspondence from the Chief Minister requesting a variation to the scope of the 4 February 2026 resolution of the Assembly ordering the production of documents relating to MyWay+ patronage data.

I table a copy of the correspondence from the Chief Minister and the proposed amendments to the resolution of 4 February 2026 that were circulated to members on 21 February 2026:

> Variation request, pursuant to standing order 213B—Letter to the Clerk from the Chief Minister, dated 21 February 2026. Proposed amendments, dated 20 February 2026.

MR SPEAKER: In accordance with standing order 213B, I propose the question:

> That the request, as reported by the Clerk and circulated to Members to vary the terms of the order be agreed to.

MR BRADDOCK (Yerrabi) (11.01): I am happy to support this motion which amends my order for the production of documents. It was always my intention that the requested database be presented as a digital file. What I had not realised at the time—and I am thankful to the public servants and the parliamentary officers who have been looking at this in more detail—is that the archiving systems of the Assembly remain largely in paper form and struggle to accommodate digital files.

Much like how floppy disks and CD-ROMS are increasingly inaccessible, there is no physical storage media that can be relied upon to not become technologically obsolete over time. Documents must therefore be tabled in paper form. It is not, and was never, my intention to burden the government with a print job for hundreds of thousands of pages costing tens of thousands of dollars. I am very happy to accept a summary table in the chamber for the purposes of *Hansard*, and the minutes of proceedings, with the supporting files made available to members on request. With this, I look forward to receiving the MyWay+ databases, as per my order, later today or tomorrow. Thank you.

Question resolved in the affirmative.

Legal Affairs—Standing Committee
Scrutiny report 15

MS BARRY (Ginninderra) (11.02): I present the following report:

> Legal Affairs—Standing Committee (Legislative Scrutiny Role)—Scrutiny Report 15, dated 17 February 2026, together with extracts of the relevant minutes of proceedings.

I seek leave to make a brief statement.

Leave granted.

MS BARRY: Scrutiny report No 15 contains the committee's comments on one bill, 50 pieces of subordinate legislation, two government responses to bills, two government responses to proposed amendments and one national law. The report was circulated to members when the Assembly was not sitting. I commend the report to the Assembly.

Report 4

MS BARRY (Ginninderra) (11.03): I present the following report:

> Legal Affairs—Standing Committee—Report 4—Restrictions on same-day delivery of alcohol – Inquiry into the Liquor Amendment Bill 2025, dated 18 February 2026, including a dissenting report (Ms Barry), together with extracts of the relevant minutes of proceedings.

The report was circulated to members on 20 February 2026, pursuant to standing order 254C.

I move:

> That the report be noted.

This is the fourth report of the Standing Committee on Legal Affairs for the Eleventh Assembly. The Liquor Amendment Bill was presented in the Assembly on 21 October 2025 and referred to the committee. The committee resolved to inquire into the bill on 5 November 2025. The bill proposes to implement new consumer protections for same-day deliveries of alcohol.

The committee received 11 submissions and held a public hearing on 5 December 2025. The committee makes one finding and 13 recommendations, including that the bill be supported in principle by the Assembly. There is one dissenting report from me.

On behalf of the committee, I would like to thank all who made submissions to the inquiry and appeared at the public hearing. I also thank the committee members, Mr Werner-Gibbings and Mr Rattenbury, for the constructive and balanced conversations we had. I commend the report to the Assembly.

MR WERNER-GIBBINGS (Brindabella) (11.05): I am rising to echo the chair's

comments in thanking the secretariat and, particularly, the participants to the report. On a personal level, I would like to thank my colleagues: the chair Ms Barry and Mr Rattenbury. As the chair said, we had a series of interesting, respectful and collaborative discussions during the preparation of this report.

I support the report as it is tabled, but I would like to add to the conversation in the Assembly my thoughts about the chair's dissenting report. I provide these comments in a respectful way—as we did with our conversations. I understand the arguments that you have made clearly, about why they are in dissent. I have my own perspective on why I did not find these arguments persuasive.

Very briefly, there is much in the dissenting report that expresses a concern about a lack of ACT-specific analysis and, perhaps, evidence as to the impact of the amendments in this bill. I think that is not unsurprising, considering that this is nation-leading legislation in the context of the ACT's response to the National Plan to End Violence against Women and Children. Once again, we are at the tip of the spear, but we will not be the only jurisdiction that is taking measures similar to this or watching the impact of our measures.

But, if lack of evidence is a concern, sitting on the committee, I did not hear or read any evidence that was presented to us indicating that some of the unintended consequences which were feared by industry, in their submissions and in their testimony—namely, the viability of business and a potential shift of alcohol delivery to unregulated markets—were likely to come to pass either. From my perspective, the overarching argument in the dissenting report is that most people do not use express or home delivery, and that, also, most people are not problem drinkers. I think that is an entirely sensible and accurate perspective. However, the point that I feel is important, particularly in terms of this bill, is that legislation is not made for the majority. Most people do not commit crimes of violence, and most people do not drive while they are drunk or use weapons to hurt other people. But, just because most people do not behave badly, it does not mean that regulation is not needed for those who do behave badly. The fact that some bad actors may also try to find a way around any regulation is not necessarily a reason to oppose it. For instance, big businesses take steps to pay almost no tax or no tax, but that does not mean we should not have tax laws.

The final little bit about this, which came to us on the committee and was cited in the dissenting report, is that this legislation might only impact or is likely to only impact—and I am speaking about the Frontier Economics analysis—14 per cent of online orders that are delivered. It is going to impact a very small percentage of orders. If that is the case, I do not think that it is worthwhile opposing this legislation, considering the positive effect it will have that we heard about from organisations like FARE and ATODA. The graphic examples they gave of the impact of this sort of mechanism of alcohol delivery, and their hope that the impact that restricting this method of alcohol delivery would have on the people they work with, were extremely persuasive.

MR RATTENBURY (Kurrajong) (11.10): I would also like to speak to the committee report. I will start by thanking my committee colleagues as well. This was a very interesting inquiry. I thank the witnesses who appeared. They came with quite considered comments, and I found the hearings to be very interesting during this inquiry. And, of course, I thank the secretariat, which provided support behind the

scenes and did a terrific job of getting the report together.

I think the need for reform is spelt out very clearly, and it is there in the committee report. We heard from a number of witnesses who made the case very clearly that the consequences of alcohol consumption are significant and that this new mechanism for convenient, online delivery, where it just turns up on your doorstep, is a new issue that we need to confront. That is the very purpose of this legislation. I am pleased that the committee ultimately formed the view and recommended that this legislation be passed with a range of issues identified, because this is an important area of reform.

The Alcohol Tobacco and Other Drugs Association, commonly known as ATODA, noted in their evidence that 36 per cent of alcohol was sold to just five per cent of people and that high-risk drinkers were more likely to frequent online purchases compared to low-risk drinkers. It also provided evidence that online sales of alcohol would prolong drinking, including at half the levels. ATODA submitted that, on balance, the reduction in harm for people at greatest risk outweighs any minor reduction in convenience for people at low risk of alcohol related harms. I think that really sums up what this inquiry is all about. It is convenient to have delivery—there is no doubt about that—but steps need to be put in place to mitigate the risks, and that is what this legislation seeks to do.

The Foundation for Alcohol Research and Education, or FARE, pointed out links to heavy episodic drinking and the severity and frequency of violence against women. FARE provided research showing that alcohol was estimated to be involved in 23 to 65 per cent of all family violence reported to police. FARE also pointed to recommendations and evidence considered by the South Australian royal commission and the federal rapid review of prevention approaches to end gender based violence, the expert panel on prevention approaches.

We heard from Kym Valentine, who is a victim-survivor of family, domestic and sexual violence. She is a lived-experience expert and advocate working with FARE. She was very clear in her support for the bill, and she called for it to actually go further, saying:

> Alcohol intensifies and exacerbates domestic, family, and sexual violence. Through rapid delivery, alcohol can flow freely into our homes, in as little as 20 minutes, requiring just a few taps on a phone. This can intensify violent outbursts in already abusive homes.

Ms Valentine went on to share a young girl's account of growing up in a violent home with an alcoholic parent that described the delivery of alcohol. It is a stark statement, but, through her description, I think she made a really powerful point. She said:

> The little girl hiding under her bed, her intoxicated parental abuser, a bomb, is banging on her bedroom door. The Uber delivery man, a directed missile, is pulling into the driveway with more ammunition.

This is a very evocative way of describing it. In all the policy discussion we are having, and legislative reform discussion and business cases and all those sorts of things, this description made the point very clearly.

The Domestic Violence Crisis Service supported the measures in the bill, particularly restrictions on delivery hours and the two-hour delivery delay, as measures to reduce the number and severity of domestic violence cases. It cited two surveys that linked

higher levels of drinking with rapid delivery services and noted links between heavy drinking by men and the frequency and severity of domestic violence.

I want to spend a bit of time on the evidence that the committee received, because it is at the heart of why this legislation is necessary and certainly why I, on behalf of the Greens, support this legislation and look forward to it coming to the Assembly for passage.

There is some work to be done. The committee has made a number of recommendations, and I would like to touch on a couple that are of particular interest to me and that I want to highlight in this context. Recommendation 2 states:

> The Committee recommends that the ACT Government amend the bill to clarify that delivery companies are liable for delivery breaches, such as delivery to children or people who are intoxicated.

I think this is important, because what we understand is that the delivery drivers are quite vulnerable in the context of their work. There has been a lot of coverage in national media about the vulnerability of the drivers. They are under pressure. They are earning a fairly minimum wage. We need to make sure that, when they arrive at a scene, if there is an intoxicated person or there are young people, they do not feel pressured to make the delivery, and, if a breach occurs, the company picks up the tab for that. If a breach notice goes to the delivery person—the driver or "the dasher" as some of them are called by some of the employers—and they have to pay the fine, the incentive is going to be wrong. That is the point of that committee finding, certainly in my mind, anyway.

Recommendation 3 states:

> … the ACT Government explore options for implementation of a centralised scheme for self-exclusion, either in the ACT or in collaboration with other jurisdictions.

The evidence we heard is that the companies maintain registers, and each company has its own register. Somebody who may have issues with excessive alcohol consumption may self-exclude from one company in a moment of reflection, but perhaps in the moment when they are feeling more vulnerable, and they are not excluded from others, it is not hard to download another app.

We are mindful that the ACT is a smaller jurisdiction and these systems are potentially expensive to set up, so the committee has very much framed it as the ACT government exploring the options. How viable is it to set up a centralised register? Are there opportunities to work with the companies? What do we think about privacy issues when those legislative provisions come into effect? Also, groups like Uber and DoorDash are operating at a national level, so there is potentially room to work with other jurisdictions to come up with something that could work across the board. We do not know the exact answers, but I think this is an area that warrants further work.

Recommendation 5 goes beyond, to some extent, the specifics of this legislation, but it goes to the very issues that we were considering. It states:

> The Committee recommends that the ACT Government amend the bill to make

> harm minimisation the paramount objective of the *Liquor Act 2010*.

This is saying that we were given clear evidence by witnesses at the committee hearing. FARE, ATODA and others spoke to this matter. At the public hearing, the Attorney-General indicated that the government was less inclined to introduce a priority into the objectives. She noted they were all important and that the act was about more than harm minimisation. Further, the government wanted to ensure flexibility with industry in relation to liquor licences, encouraging a night-time economy. The Attorney-General stated that these objectives were not mutually exclusive or in direct conflict and that having harm minimisation as a primary objective could lead to problems with interpretation of the rest of the act.

The Attorney has raised issues that are important. I do not disagree with her about the desire to promote the night-time economy and those sorts of points, but I think that the necessity of thinking about the wide impact of the negative harms of alcohol outweighs those considerations. The point being made by FARE and others was that, in making harm minimisation a primary objective of the act, that is where you start. You recognise the harms that can arise from alcohol consumption. That becomes your central place, and then you start to think about those other things. We want to have a great night-time economy, but does that mean that alcohol harms are given less consideration in policy objectives?

I really support this recommendation. I support some of the other things the Attorney was talking about, but I think this is, fundamentally, the central thing that the Liquor Act should be taking into account and informs other policy decisions. That is the observation that was being made to us by the witnesses, and I thoroughly support that. I really commend this. I will make the commitment today that, if the government does not accept this recommendation, it would certainly be the intent of the ACT Greens to draft an amendment to the act, when the bill comes back, to ensure that this is delivered. I think this is such a fundamental and important change, and we will certainly seek to move it forward and seek support from colleagues if the government does not decide to support this recommendation and bring the amendment when the bill comes back.

In terms of recommendation 6, the committee recommended that the government "amend the bill to remove the exemption from the same-day delivery restrictions applying to alcohol supplied with meals". I think everybody came to this conclusion as a matter of consequence. People had different views on this. Some of the advocates who are concerned about alcohol harm saw it as a loophole that would undermine the purpose of the act, while industry made the point that they found this very impractical, and they would rather see it removed anyway. For a range of reasons, the committee came to this view, and the Attorney, in her remarks in the hearings, was very open to receiving the committee's advice on this. I thought it was worth drawing out the point that, for different reasons, everybody came to the same conclusion, and this is a recommendation that is worth reflecting on.

Recommendation 11 states:

> The Committee recommends that the ACT Government explore options to prohibit predatory marketing practices, including bans on using data to target marketing of alcohol, restrict 'buy now' buttons, and require online advertising to display prescribed health warnings.

This was an area that the committee was not able to spend a large amount of time on, but it is one I think warrants further work. I am pleased that this was identified in the recommendations, because, in discussions I have had in my previous role as the minister responsible and in subsequent reading I have done, I am very concerned about some of the online marketing practices that are being evolved by industry. They are cutting edge, they are clever, they are cunning and they are manipulative. There is a range of terms you can put on them. I think the regulatory environment is not keeping up with the practices that are being evolved—the way that things are being done to encourage people to buy and consume more alcohol. This is an area for further work, but the committee was not able to give it the depth of work that I think is warranted. This is an area that I would flag for colleagues in the Assembly that we should all be mindful of, because I think it will be one we need to work on further in the future.

Finally, I turn to the issue of the two-hour delay, about which the chair, Ms Barry, made dissenting comments. On re-reading the report—and I got a call from someone saying that this is not really clear—the committee did not make an explicit finding about the two-hour delay. Ms Barry made dissenting remarks. I want to be very clear that the balance of the committee did support the two-hour delay. It is fundamental to the legislation. It is probably an oversight not to have been explicit about that, but I will certainly be very clear that I explicitly support it. It is the premise, and it goes back to where I started, when I talked about the need for reform and ATODA's observation around the balance between convenience and harm reduction. The two-hour safety pause is at the heart of harm minimisation and the reduction in alcohol related harms that this legislation is designed to introduce, and I am unequivocal in my support for that two-hour delay.

Overall, I thank the Attorney and the Justice and Community Safety Directorate for preparing this legislation. I was very pleased to be on the committee and to have a chance to look at it. Of course, as the Attorney noted in the introduction, I was involved in the early stages of this. I think this is an important reform for the territory. I look forward to it coming to the Assembly as soon as the government is able to practically consider the committee's recommendations. As the Greens, we stand ready to support this legislation, and we look forward to working with the government to get it finalised.

Question resolved in the affirmative.

Social Policy—Standing Committee
Report 3

MR EMERSON (Kurrajong) (11.24): I present the following report:

> Social Policy—Standing Committee—Report 3—Inquiry into E-Petition 007-25: Build a new gym for Lyneham High School, dated 11 February 2026, together with extracts of the relevant minutes of proceedings—

I move:

> That the report be noted.

This is the third report of the Standing Committee on Social Policy for the Eleventh Assembly. The committee began its inquiry on 12 August 2025. The committee received 11 submissions and held one public hearing. Witnesses took five questions on notice.

Our report makes four findings which relate to the consultation and design processes undertaken in the lead-up to the refurbishment and modernisation upgrades announced in the 2024-25 ACT budget. The report also makes three recommendations, including for the ACT government to reconsider its decision to reduce the scope of works at Lyneham High School from the double gymnasium that had been designed in 2022.

The committee recognises the community interest and the petition that led to this inquiry. In particular, we would like to recognise the principal petitioner and former captain of the school, Shasta Bignell, for bringing this to the Assembly's attention.

On behalf of the committee, I thank the Minister for Education and Early Childhood, officials and all who participated in this inquiry. I thank my fellow committee members who participated in this inquiry: our deputy chair, Ms Barry; Miss Nuttall; and Ms Tough. And I thank the secretariat for their work on this report. I commend the report to the Assembly.

Now I would like to make some comments on the committee's report in my capacity as an individual member. What we learnt through this inquiry was quite revealing, and I thought it ended up being a quite useful investigation. The timeline, to trigger members' memories, is that in 2020 the current government made an election commitment to upgrade the gym at Lyneham High. In 2022, school leadership were briefed on a design for a new double gymnasium to fulfil this commitment to upgrade the gym. From what we heard during the inquiry, there was relatively little communication from that point until a budget decision was made in 2024 not to proceed with the double gymnasium that had been designed and briefed on 2022 and to instead upgrade the current gymnasium. We heard that the government is now consulting on the scope of upgrades that are possible within the allocated funding envelope.

I want to briefly touch on some excerpts from the committee report that I think were revealing in relation to how this decision came to be. Witnesses raised a concern that the announced upgrades did not represent value for money and would not address the key safety and use issues arising from the single-court size constraints. The primary issues we heard throughout the inquiry from all witnesses, ranging from community representatives of the school to out-of-hours community sport users, was that the gym is too small and it is old, which creates its own issues. A 60-year-old gym may need refurbishment. The clear message we heard throughout the committee inquiry was that the gym is too small and upgrading it would therefore not be an appropriate use of public resources.

The principal petitioner drew attention to the possible floor replacement of the current gym as a "waste of money" as "the gym can never be competition standard because the building is not big enough". The P&C noted that refurbishments could not address the existing space constraints that prevent the Lyneham High School gymnasium being more widely used by community sporting organisations. The former principal likened the upgrades to putting lipstick on a pig and explained that "simplistically proceeding

with an upgrade to a 60-year-old gymnasium by installing a competition standard floor and other cosmetic changes would not address the fundamental safety risk and unsuitability of the existing gym".

The minister acknowledged the school community's disappointment—I am reading from the report here—and advised that the decision to upgrade the Lyneham High School gymnasium "does not mean that a new gymnasium will never happen at Lyneham; it is just not the project going ahead in this budget". I think the primary point of concern that came out of the hearing was that proposals to upgrade the gym that is already there, which we have heard is not fit for purpose because it is too small, look like a way of fulfilling an election commitment in a way that might set us up for further expenditure, given the outstanding need for a larger gymnasium, which would not be addressed by that proposed pathway forward. In its report, the committee said:

> Acknowledging the finite nature of the budget, the committee considers it is important that school infrastructure projects meet the key needs identified by the community. Failing to do so may lead to a perception that funding decisions are made merely to meet election commitments.

This is pretty concerning. The committee heard from the community that this was the case with the announced upgrades for the Lyneham High School gymnasium and is concerned by the prospect of public resources being used to meet an election commitment in a way that produces a poor community outcome. Meeting election commitments is important, but it is critical that it is done in a way that meets community expectations. What we heard throughout this inquiry is that the current proposed pathway forward does not do that, which is why we recommended further consideration be given to the scope of the project to ensure it is an efficient use of public funds and avoids the need for further upgrades in the near future. The obvious solution to this problem would be, on the face of it, from reading through the evidence and the committee's report, to follow through on the construction of a new double gym, as was designed, briefed and consulted on back in 2022.

Debate (on motion by **Mr Rattenbury**) adjourned to a later hour.

Dawn Waterhouse OAM
Motion of condolence

MS CHEYNE (Ginninderra—Manager of Government Business, Attorney-General, Minister for Human Rights, Minister for City and Government Services and Minister for the Night-Time Economy): On behalf of the Chief Minister, I move:

> That this Assembly expresses its deep sorrow and offers condolences on the passing of Mrs Dawn Waterhouse OAM.

Cherished Canberran, cultural guardian, community builder and remarkable storyteller—so few words that encapsulate a woman who was larger than life. This Assembly and this government extend their deepest sympathy to her family and to all who loved her. I acknowledge and welcome the presence in the gallery of Dawn's children, Jill, Jon and Gowrie; and Max Whitten, former chief of the CSIRO Division of Entomology in Canberra, Douglas Waterhouse's colleague and successor in that role.

Today we honour a life that is interwoven with the story of our city. To speak of Dawn is to speak of Canberra's memory—a living inheritance that she cultivated, preserved and shared with both tenderness and tenacity. In paying tribute, we recognise a woman whose 102 years were marked by service, curiosity, warmth and generosity. Indeed, it is much of Dawn's own words, written herself, or captured through extensive oral histories, which form this speech. I particularly acknowledge Matthew Higgins' interviews with Dawn in the Centenary of Canberra oral history project—many, many hours from which I have drawn heavily.

Born in Queanbeyan in 1923, Allison Dawn Calthorpe moved as a small child into the newly built family home on Mugga Way just in time for the opening of the provisional Parliament House in 1927. In 1991, Dawn wrote:

> Canberra's soul, that special sense of being and belonging, predates living memory … But residents from the 1920s onwards had a very special responsibility: they had to show by their attitudes and actions that this new capital was worth hiving. With few exceptions, those who in the 1920s moved to Canberra either of their own volition or as part of the first influx of civil servants were totally fascinated and planned to become part of the paddock-to-parliament project.

Dawn's parents, Harry and Della Calthorpe, formed part of that early civic momentum. Harry, a returned Light Horseman, wounded at Gallipoli, helped to auction some of the first Canberra blocks and threw himself into the work of building a community from paddocks. He was revered. Della—modern, energetic and Sydney-born—brought style, standards and a lifelong devotion to welcoming others. Their marriage was itself stitched with symbolism. They wed on Wattle Day in 1917, a thread of gold that would later become one of Dawn's own signatures. Della was a homemaker in every sense. She loved being settled and was a perfectionist in everything did. Indeed, it is that homemaking and perfectionism that resulted in the home museum that we now know as Calthorpes' House.

Dawn's childhood unfolded in a city still finding its feet. But, even in those early years, she experienced the kinds of communities that give shape and colour to who we become. Among the most formative of these was Canberra Girls Grammar School, Canberra's oldest private day and boarding school, the foundation stone being laid on its current location the day before the opening of the provisional Parliament House—the school her parents worked tirelessly to support from its very beginnings. The Calthorpes threw themselves into fetes, bazaars, bridge parties, fundraising and school events, helping establish a sense of standards and belonging in our city's infancy.

Dawn flourished at Canberra Girls Grammar. Her memories of the school were vivid: the chapel services, the discipline softened with encouragement, the headmistress Miss Mitchell and, indeed, all of her teachers—all of whom she could name. Only recently Dawn was celebrating Canberra Girls Grammar School, with its 100th anniversary, which has passed, because it was the first in Reid, and was pictured very happily ringing a bell for her time at the school. The values she absorbed there—service, community, curiosity and dignity—echoed through everything she later contributed to Canberra. Dawn would reflect her schooling shaped not just her own opportunities but also her commitment to giving her own children a strong educational foundation—all four of whom went on to university, a point of quiet pride for her.

Her work as a teenager with CSIR—as it was then known, I believe, and then CSIRO—as a young entomology worker coincided with World War II. The work she did to help resist the locust plague was critical, not only for the agricultural needs of Australians at the time but also because there were so few men left in the workforce, and she could drive a truck. A boss took an interest in her ability and asked that she assist his work—in Dawn's own words, a "funny looking fellow but very nice". This was, of course, Doug Waterhouse, determined in everything he did and everything he was determined to do he did. He determined to marry her and they did at the age of 20.

As was common for so many decades and even in recent memory, and yet it seems astonishing to many of us now, her career in the paid workforce ended there and then. Dawn missed the work but devoted herself to beginning a family. Before settling in Deakin, they lived in Braddon and briefly in the US for Doug's work. Their return to Australia resulted in Dawn and Doug being part of another famous moment in history: being stuck in the Suez Canal crisis. They moved into a 10-square house which they extended over the years. Domestic life in Australia and Canberra was changing drastically. The Waterhouse's frustration with the local government not keeping up with the times and accounting for modern amenities in their house design—in this case, a washing machine brought back from America—was born out in an editorial of the *Canberra Times*.

While Dawn's paid work had ceased, she threw herself into everything embodying the same spirit: the Blood Bank as honorary director; Red Cross; Legacy; the first Children's Medical Research Institute committee in Canberra; the Horticultural Society; the Horticulture Show; and countless school and church fetes. She was skilled at sewing, knitting and fundraising. She was particularly relied on for her ability to sell buttons. She loved the arts and flowers—from Canberra Repertory to mastering ikebana; her flower arranging being highly sought after, being invited to be on every decorating committee and having many people working to her at elaborate balls held in this city over decades. I understand that she also undertook the flower arranging at her church for many, many years.

Dawn's great love was her family. She and Doug shared 57 remarkable years of marriage, a partnership of intellect, humour and steadiness. She was endlessly proud of their children—Jill, Douglas, Jonathon and Gowrie—and took delight in their very different paths, knowing that a good parent provides both roots and wings. Those who met Dawn knew this instantly: her pride in family was not performative but practical and warm. Her marriage of 57 years to Doug Waterhouse—scientist, innovator and community leader—was one of deep affection and partnership. Together they represented the best of a generation that helped Canberra leap from frontier town to national capital: creative, generous, civically minded and scientifically engaged. In Dawn's words, she and Doug "belonged to almost everything".

It is impossible to contemplate Canberra's social history without Calthorpes' House. Preserved as a remarkably intact domestic time capsule and acquired for the people of the ACT as a house-museum in 1984, it stands because the family—and particularly Dawn and her daughter Jill—understood that ordinary domestic life becomes extraordinary in the hands of memory. The genesis of the government acquiring it was in the form, I believe, of a dinner party which Jill held with some of her university

colleagues. As the then French Embassy across the road was being torn down, her colleagues arrived and remarked on entry that the home was a time capsule.

Calthorpes' is unique as a museum but also in its role in history. Before acquisition, it was identified as the only home in not just Canberra but also all of Australia to be unaltered. It has its original furnishings. The Aboriginal Embassy was first located right next door to Calthorpes' House—a fact that I do not think many people know.

Make no mistake: it was an agonising decision to sell the home, including to sell the home as if the door had just been shut and the key turned in the lock. But it came at a time when Dawn was seeing much of early Canberra being torn down, with little regard for its heritage or what it represented. The demolition of the Capitol Theatre—what had been a revered and popular meeting place for Saturday entertainment—and a fear that the new Parliament House would not co-exist with the previous, resulted in Dawn starting a collection of "old Canberra". "Collection" is a euphemism; she collected like nothing else. Many of these treasures now live at the Canberra Museum and Gallery, available to all, because Dawn felt that memory hoarded is memory wasted. It will not be a surprise that she and Doug were CMAG's first life members.

Dawn not only collected and shared the past; she activated it. The house has become, in Dawn's words and deeds, a place where objects could tell stories and where visitors could feel the texture of a bygone era without losing sight of the present. She founded Friends of Early Canberra and convened afternoons of recollection so that those who had lived the city's beginnings could gift their stories forward. Dawn campaigned for Wattle Day to be Australia's national day, not as a quaint nostalgia but as a shared symbol that might help tell a more inclusive national story. In her view, the bright bloom at winter's end promised renewal, and she wanted that promise for everyone. In many ways, Dawn's own character is emblematic of wattle: one of optimism, colour, resilience and generosity.

I note that Calthorpes' House is only open a few hours a week currently. This was not what was intended, and I certainly look forward to working with my colleagues to see how we can keep that memory alive, engaged and part of all Canberrans.

I had the joy of celebrating Dawn at her 100th birthday. To be honest, I am still really shocked that I was invited, let alone asked to speak. I said then, and I echo now, that we are richer for Dawn: richer for her curiosity, for her sense of fun, and for the way that she could turn a historical footnote into a conversation that left you feeling more connected to this place. She remained an active centenarian, most recently enjoying her 102nd birthday and diligently working with Jill in cataloguing her extensive papers: more generosity in sharing—and, by "extensive", we mean an apartment-full.

To Jill, Douglas, Jon and Gowrie, and to all of Dawn's extended family and friends, we send our deepest love. May the measure of our collective sorrow be matched by the measure of the joy she gave, the pride that we have knowing the life she fully lived, and our gratitude to the legacy of her generosity.

With that, I sincerely and with deep sorrow commend this motion to the chamber.

MR PARTON (Brindabella—Leader of the Opposition): I rise to honour the

extraordinary life and legacy of Dawn Waterhouse OAM, a woman whose story I think is inseparable from the story of Canberra itself, and express condolences on behalf of the Canberra Liberals at her passing late last year.

It was interesting listening to the words of the Attorney-General. I think one of the things at the core of Calthorpes' House—and I try to remind people close to me of this all the time—is that we often spend so much time fussing and worrying about some things that we think are really important and we forget that the ordinary things that we do not think are important are desperately important. I think that is reflected at Calthorpes' House.

Dawn Waterhouse was born in 1923. We are talking about a time before the federal parliament moved to Canberra. Her passing on 28 December 2025, at the age of 102, marks the end of a life so richly associated with Canberra. Her life spanned nearly the entire history of our national capital. Certainly the Canberra Liberals believe that it makes her one of our community's most significant links to the earliest days of Canberra.

As a toddler, Dawn moved with her family to 24 Mugga Way, which, of course, is Calthorpes' House, one of Canberra's most important heritage sites. She grew up at a time when Canberra was little more than a scattering of new suburbs and wide open paddocks. She recalled riding horses across countryside that would one day become our established suburbs. She told *City News* in an interview that her father would often sweep his arm across the landscape and declare to Dawn and her sister, "One day, girls, all this will be a city." Dawn watched that prophecy unfold over a century. She lived 99 of her 102 years in Canberra, experiencing everything from the opening of the original Parliament House in 1927 to the creation of Lake Burley Griffin to the city's evolution into the thriving capital that we know today.

In 1944, Dawn married Dr Douglas Waterhouse, the CSIRO entomologist whose scientific work led to the product later commercialised as Aerogard. Dawn supported his research, most notably his pioneering blowfly experiments. I bet they were fun. Together they raised four children—Jill, Douglas, Jonathon and Gowrie. Their family home in Deakin was built as the lake filled, symbolising how her own life was woven through Canberra's growth.

Dawn was not simply a witness to the rich and vibrant history of our city; she was genuinely one of its greatest custodians. She was a dedicated community historian, a long-time member of the Canberra and District Historical Society and a tireless volunteer with organisations including Legacy, the Red Cross, local fetes, school communities and neighbourhood groups. She served on the friends management committee for the National Museum of Australia, contributing to the preservation and the interpretation of Australian cultural heritage.

Dawn's passion for Australian identity was perhaps most evident in her decades of work with the Wattle Day Association. She championed National Wattle Day as a celebration of unity and national pride. Her extensive collection of wattle-themed memorabilia, crockery, artwork, embroidery and more was shared widely with the public and donated to institutions, including the National Museum, the Canberra Museum and Gallery, and Calthorpes' House.

There are so many achievements and so many things to list. I did not even know that she could drive a truck.

Dawn's dedication to telling Australia's story was recognised in the 2001 Queen's Birthday Honours, when she received the Medal of the Order of Australia for her service to community history. In 2006, the ACT Heritage Council named Dawn Waterhouse a local treasure. In 2018, she was honoured with a plaque on the ACT Honour Walk. These honours reflect Dawn's profound and enduring impact on Canberra's cultural life.

Even in her later years, Dawn remained a clear and passionate voice on matters affecting the city that she loved. She expressed great pride in how Canberra had grown, but was also cautious about how this growth could impact the community spirit that she loved so dearly.

Dawn Waterhouse was more than a witness to our city's history; she was one of its storytellers, one of its guardians, one of its great champions. Her memories enriched our understanding of the Canberra that was and her advocacy helped shape the Canberra that is. Her generosity of time, of spirit and of knowledge has left a legacy that will be felt across the ACT for generations to come.

I commend the motion to the Assembly.

MR RATTENBURY (Kurrajong): On behalf of my colleagues in the Greens, I rise to offer our condolences on the death of Dawn Waterhouse OAM and to acknowledge her significant contribution to the history of this city. It is not often in this place that we are privileged to remember someone with such a long and close connection with our city as Dawn Waterhouse OAM. I certainly enjoyed the detailed remarks from the Attorney and from Mr Parton, highlighting some of the contributions and experiences Ms Waterhouse experienced, and I would like to make a few reflections as well.

She was born just across the border in Queanbeyan, but her parents quickly rectified this minor impediment to claim lifelong Canberran status by moving into Calthorpes' House on Mugga Way in 1927 when she was only three. Thousands of Canberra children across successive generations will carry with them a vivid picture of what her childhood home was like, thanks to their school excursions to 24 Mugga Way. Of course, as has been touched on, the landscape looked very different back then, even if the house remains as much as it was almost 100 years ago. I hope kids still get to have the kind of Australian childhood she enjoyed of bike-riding, swimming in the Cotter or the Murrumbidgee, playing in creek beds, catching yabbies and just roaming around the sheep paddocks and grasslands in those early days of Canberra. It is a fond memory of Australian childhood that I hope more children get to have as we move forward.

Her life journey parallels the growth of the city in many ways—becoming a seasoned ticketholder at our first public swimming pool at Manuka, becoming a lab assistant and marrying a CSIRO scientist during the period when so many of our public service departments and important institutions migrated from Sydney or Melbourne to the national capital. She lived in Reid as a young married woman and raised her four kids—Jill, Doug, Jonathon and Gowrie—in Deakin, after reportedly making some of the

bricks of the house herself due to wartime shortages. She was here when Lake Burley Griffin first began to fill, drowning the lucerne flats behind the Molonglo.

Interviewed in 2021 for her 98th birthday, when asked what her secret was—I suspect to long life was the intent of the question—she is reported not to have hesitated in saying, "Always be involved in something." Through the stories we have heard today and the reports of her life, that was clearly something she not only said but also believed and lived in her contributions to many community and public causes, as well as the life of her family.

Dawn never lost her deep attachment to Canberra's fabric. Through her long association with her childhood home of Calthorpes' House and generously sharing her memories, others have been given the chance to understand what life was like in our fledgling national capital. As I touched on earlier, many will benefit from that and hopefully walk away with a bit of imagination for those early years of our city.

The award of the medal of the Order of Australia in 2021 was a fitting recognition of a life of service—to science, to community and to Canberra itself. But perhaps her greatest legacy lies in the example she set of curiosity, resilience, public service and love of place.

On behalf of my colleagues, we extend our deepest condolences to her children, grandchildren and all who knew her, and we honour a life that in so many ways grew alongside our national capital and helped it flourish.

MR PETTERSSON (Yerrabi—Minister for Business, Arts and Creative Industries, Minister for Children, Youth and Families, Minister for Multicultural Affairs and Minister for Skills, Training and Industrial Relations): I wish to express my deep sorrow at the passing of Mrs Dawn Waterhouse OAM and place on record our appreciation for her life, her service to the Canberra community and her enduring contribution to the cultural heritage of the ACT.

Today we acknowledge the life and legacy of Dawn, who died on 28 December 2025, aged 102. A beloved Canberran, a community historian and a tireless advocate for our shared heritage, Dawn's memory is woven into the very fabric of this city.

Dawn's Canberra story began in 1927, when three-year-old Dawn moved with her parents, Harry and Della Calthorpe, and her sister Del, from Queanbeyan to their newly built home at 24 Mugga Way, Red Hill. The house, designed by Oakley and Parkes, is today known as Calthorpes' House—a landmark of our city's early domestic life and a museum now managed by ACT Historic Places under the Cultural Facilities Corporation.

Dawn married Doug Waterhouse in 1944, holding their reception at Calthorpes' House, and they made their life in Canberra, raising four children—Jill, Doug, Jonathon and Gowrie—in their family home in Deakin. The family spent cherished holidays at Mossy Point, on the New South Wales South Coast.

Doug Waterhouse's career would become renowned. Over more than 60 years with the CSIRO Division of Entomology, he identified the active ingredients for the insect

repellent later known as Aerogard, and he led advances in insect and weed control across Australia and internationally, including in countries across Asia and the Pacific. He played a pivotal role in establishing the Canberra College of Advanced Education, now the University of Canberra, in 1965. He served on the National Trust Council from 1985 to 1988 and continued contributing beyond formal retirement. Doug died in 2000, aged 84.

Dawn became a community historian, an active member of the Canberra and District Historical Society and a steadfast advocate for preserving our city's cultural heritage. Her firsthand memories and lived experience of Canberra's formative years were vital to the establishment and interpretation of Calthorpes' House as a museum. She worked closely with ACT Historic Places to shape programs and displays, and she shared her insights generously with staff, volunteers, visitors and generations of schoolchildren, bringing to life the textures of daily Canberra life in the interwar and postwar years.

Dawn bore witness to many of Canberra's pivotal moments: the first ABC radio broadcast into Canberra homes; the opening of the provisional Parliament House in 1927; the opening of Manuka Pool in 1931; the rapid expansion of the 1950s and 60s, as the commonwealth grew; the filling of Lake Burley Griffin in 1964; the 2003 Canberra bushfires; and the COVID-19 pandemic. As Dawn herself once reflected, Canberra was "like a sister"—they had "grown up together".

In 2002, Dawn published her memoir, *Chortles, Chores and Chilblains—Cameos of Childhood in Calthorpes' House, Canberra*, with ACT Historic Places, capturing the warmth and humour, and the character of early Canberra. In 2023, she worked with ACT Historic Places curators to record oral histories of life at Calthorpes' House and in Canberra through the Great Depression and World War II—an invaluable legacy for researchers, educators and the public.

Dawn was also a passionate collector. The Canberra Museum and Gallery has acquired several of her collections, including the Royal Collection, documenting royal tours and visits to Canberra, and the Wattle Collection, reflecting her advocacy for celebrating Wattle Day as a national day. CMAG also holds her extensive Canberra memorabilia. Items from this collection will be shown in an exhibition at CMAG later this year.

In 2023, ACT Historic Places was delighted to celebrate Dawn's 100th birthday with her, her family and friends, and many of the historians, curators, guides and volunteers whose work she enriched over so many years.

Dawn's service and leadership were recognised widely. Dawn and Doug Waterhouse were appointed the very first life members of CMAG. In 2006, she was named a "Local Treasure" by the ACT Heritage Council. In 2018, a plaque honouring her contribution was placed on the ACT Honour Walk. In the 2021 Queen's Birthday Honours, she received the Medal of the Order of Australia for service to community history.

Beyond the honours, what endures most is Dawn's generosity of spirit, curiosity, humour and steadfast commitment to ensuring that Canberra's story—our story—remains accessible and alive. Her legacy lives on in Calthorpes' House, in the collections and programs of ACT Historic Places and CMAG, and in the memories of the many Canberrans she inspired.

In addition to my own condolences, I would like to pass on those of the Cultural Facilities Corporation, who extend deepest sympathies to Jill, Doug, Jonathon and Gowrie, to Dawn's wider family, friends and colleagues who have joined us today, and to the heritage and volunteer communities who knew and loved her. Vale Dawn Waterhouse OAM. I commend this motion to the Assembly.

MS CARRICK (Murrumbidgee): I also stand today to honour the life of Mrs Dawn Waterhouse OAM, and acknowledge her children and grandchildren, and her great-grandson Ernest. I extend my sincere condolences to her family.

In December last year, Canberra lost one of its greatest champions. Mrs Waterhouse had a lifelong love of this city and was one of its most passionate advocates. She witnessed Canberra grow from a small and scattered community into the city we know today, from the opening of the provisional Parliament House to the early days of Manuka Swimming Pool, the films at the Capitol Theatre, the filling of Lake Burley Griffin, and even the shock of the dismissal of the Whitlam government.

Her memories of Canberra's major milestones were always intertwined with everyday picnics, swimming, riding horses and the social life of a young city. I was especially struck by her story of galloping her horse to visit the Eddisons in Woden. The loss of the three Eddison boys in the Second World War must have been felt deeply by her small community.

Mrs Waterhouse gave extraordinary service to the Canberra community, volunteering with the Red Cross, the Blood Bank, the Children's Medical Research Institute Committee, the National Museum of Australia's Friends, and at countless school and church fetes. She was also a valued member of the Wattle Day Association, as has already been mentioned.

In recognition of her contribution to community history, she was awarded the Medal of the Order of Australia, and the ACT Heritage Council named her a "Local Treasure" in 2006—a title she earned many times over.

Mrs Dawn Waterhouse has left a remarkable legacy. Canberra is richer because she loved it so deeply and because she chose to give so much of herself to our community. We should all learn from her passion to belong to the community. May she be remembered with gratitude.

Question resolved in the affirmative, members standing in their places.

At 12.02 pm the sitting was suspended until the ringing of the bells.

The bells having been rung, Mr Assistant Speaker Cain resumed the chair at 12.09 pm.

Social Policy—Standing Committee
Report 3

Debate resumed.

MR RATTENBURY (Kurrajong) (12.09): I want to speak briefly to this committee report. I was pleased to be the sponsor of the petition that was brought to this place. As I said at the time, I was very impressed by the advocacy of the students and former students of Lyneham High School who took up this issue. When you move on to another school, to then look back and still want to improve the school that you have left is very impressive, in terms of contributing to the benefit of others. The petitioners were very clear in their advocacy, and that has come through in the committee report, with the excellent set-up of the petition enabling the issue to be given important consideration.

The committee looked at a range of issues. They particularly considered the impact that the current Lyneham gym has on PE classes at the school, the inability of the classes to proceed in wet weather, the inability to hold all-school assemblies, and the limits that are placed on community use by the current state of the facilities. These were all issues that were picked up in the petition and in the committee report as well.

I thought the discussion about the minister observing that new suburbs are getting a fair level of facilities, with double gymnasiums in new schools, was really interesting. That is welcome in those new areas, as it should be. But the observation from the committee around the consequence for older areas, which, with urban infill, are also increasing in population, and the implied necessity to go back and ensure that older areas are also getting those facilities, was a point that was well made and explored by the committee.

I want to touch briefly on the findings and recommendations. I thought they were very useful. Recommendation 2 is at the heart of this report. It states:

> The Committee recommends that the ACT Government reconsider its decision to reduce the scope of works at Lyneham High School from the double gymnasium designed and briefed in 2022 …

The committee go on to highlight the areas that might be taken into account. They elaborate on this point very clearly—issues such as the benefits of being able to hold whole-of-school assemblies, the demand for indoor, competition-standard sports and recreation facilities in the inner north, and the impacts on the broader community, not just the school. All of these issues that are drawn out in recommendation 2 are really important. They go to the heart of why I was pleased to sponsor this petition in the first place.

I join the committee in commending these recommendations and findings to the government. I look forward to seeing the government's response, and I hope that they will be able to take on board the recommendations that have been made. I think they will be very beneficial for this community.

Question resolved in the affirmative.

Public Accounts and Administration—Standing Committee
Statement by chair

MR MILLIGAN (Yerrabi) (12.12): Pursuant to standing order 246A, I wish to make a statement on behalf of the Standing Committee on Public Accounts and

Administration relating to statutory appointments, in accordance with continuing resolution 5A.During the reporting period 1 July 2025 to 31 December 2025, the Eleventh Assembly Standing Committee on Public Accounts and Administration considered a total of two appointments to the Government Procurement Board.

I present the following paper:

> Public Accounts and Administration—Standing Committee—Schedule of Statutory Appointments—11th Assembly—Period 1 July to 31 December 2025.

Social Policy—Standing Committee
Statement by chair

MR EMERSON (Kurrajong) (12.13): Pursuant to standing order 246A, I wish to make a statement on behalf of the Standing Committee on Social Policy relating to statutory appointments, in accordance with continuing resolution 5A.

During the reporting period 1 July 2025 to 31 December 2025, the Standing Committee on Social Policy considered a total of 20 appointments and reappointments to the following bodies: ACT Board of Senior Secondary Studies; Voluntary Assisted Dying Oversight Board; Children and Young People Death Review Committee; ACT Teacher Quality Institute; Therapeutic Support Panel for Children and Young People; Registration Standards Advisory Board; University of Canberra Council; and review of the operation of the amendments to drug possession laws 2023.

I present the following paper:

> Administration and Procedure—Standing Committee—Schedule of Statutory Appointments—11th Assembly—Period 1 July to 31 December 2025.

Sitting suspended from 12.14 to 2.00 pm

Questions without notice
Government ministers—conduct

MR PARTON: My question is to the Chief Minister. Chief Minister, the Financial Management Act sets out obligations that the ACT government must follow when it comes to the appropriation and spending of the territory's finances. Chief Minister, are you aware of any breaches of the Financial Management Act by any member of your cabinet, past or present?

MR BARR: No, I am not. I am sure that, had there been any, the matter would have been raised in this place at the time. If the specific nature of the question from the Leader of the Opposition relates to ministers, as distinct from directorate or territory agencies, I would be even more certain that the answer is no.

MR PARTON: Chief Minister, what steps would you take should a proven breach of the Financial Management Act come to your attention?

MR BARR: That is a hypothetical question. I would need to understand the context of

the alleged breach and what, if any, role the minister or the minister's office played in that.

MR COCKS: Chief Minister, are you confident that all members of your cabinet abide by the FMA?

MR BARR: I have no reason to think otherwise.

Government procurement

MRS MORRIS: My question is to the Minister for Finance. Is it accepted practice for the territory to enter into a contract for the supply of goods or services that have not been provisioned for in an appropriation bill?

MS STEPHEN-SMITH: I will take the detail of that question on notice. The appropriation bill is quite broad in terms of the funding that is provided across agencies, and, within that, it is well understood that there is flexibility to expend funds according to the outcomes that are articulated within agencies' budget papers and annual reports, as they set out their objectives. It would be helpful—rather than making generalised, vague and obvious allegations—if the opposition has specific allegations about wrongdoing, if they raised those with the appropriate authorities.

MRS MORRIS: Minister, is it common practice for the government to pay invoices on behalf of the territory that have been submitted in relation to the supply of goods and services that have not yet been appropriated for?

MS STEPHEN-SMITH: This is a very general question and it is hard to understand the context of what Mrs Morris is indicating she believes the appropriation is for. Directorates have a very clear responsibility to manage their budgets in line with their appropriations and outcomes under the Financial Management Act, and those responsibilities sit with directors-general.

MR COCKS: Minister, is it common practice for the government to continue to pay invoices on behalf of the territory in excess of the total contract value stipulated in the contract documents without a variation?

MS STEPHEN-SMITH: I would say no, that is absolutely not common practice.

ACT Policing—hate speech laws

MR BRADDOCK: My question is to the Attorney-General. I refer to ACT Policing attendance Wednesday evening at Dissent Cafe and Bar, which was closed and designated as a crime scene in light of a complaint about satirical artwork that was clearly anti-fascist. Attorney-General, what are you doing to protect Canberra's artists from the vaguely written national hate speech laws?

MS CHEYNE: Ministers are looking at each other because there has been a response among the three of us—and, by three of us, I am referring to Minister Paterson, Minister Pettersson and myself. I understand that this is a matter for the police, and it would not

be appropriate for me to comment on something that is a live legal issue.

When it comes to protection of artists' freedom of expression, I would refer Mr Braddock to our existing ACT legislation as opposed to the powers that are in the commonwealth legislation. I am not privy to exactly what powers police were operating under at that time. However, we will have the Standing Council of Attorneys-General on Friday—and I appreciate that Mr Solly has been trying to get the commonwealth Attorney-General rolling on radio—and I intend to at least raise it in passing with her there on the margins.

Equally, I understand that Minister Pettersson has written or is about to write to the federal minister for police and the arts, Tony Burke, about artists' freedom of expression and how important it is to maintain that in the ACT. I do appreciate that what occurred last week may have had a chilling effect among some of our artists and with the now night-time economy. The best thing that I think members can do is get out and support live music in our great local venues.

MR BRADDOCK: Attorney-General, why are media organisations allowed to rely on their exemptions under the hate speech laws but artists appear to be subject to enforcement action for comparable forms of expression?

MR SPEAKER: Minister for Police, are you going to take this one?

DR PATERSON: Yes. As the Attorney-General said, this is an ongoing police investigation. There have been no charges laid as yet. The police are receiving legal advice. I think that, once we have that advice, there will be significantly more community conversation about this issue either one way or another. So I think we just need to wait until that point.

Mr Cocks: On a point of order under 118AA, I do not believe the question has been answered. It was a question very clearly about the legal issues.

MR SPEAKER: I think it was a reasonably general question about the difference between the treatment of artists and the media, rather than necessarily about this specific action. Minister, I think it is upheld that you have basically answered a different question. So either directly come to the point of order, which is to answer why, as per Mr Braddock's question, artists and the media are being differently, or I will require that you respond under 118AA.

DR PATERSON: To my knowledge, I am not aware that the media has been treated differently—so if there can be some further clarification. ACT Policing received a report last week around the posters and their impact. So that is what the current investigation is exploring. If people have concerns around what has been expressed or reported in the media, they can report those concerns. But I am not sure of what Mr Braddock is actually talking about there.

MR SPEAKER: On the point of order, I will get back to the Assembly on that matter and see as to whether you will be required to. I will get back to the Assembly at a later hour this day.

Ms Cheyne: On the point of order, Mr Speaker, in undertaking your review, I respectfully ask that you pay heed to continuing resolution 10 as well as the fact that Minister Paterson, or myself, was being asked to express a legal opinion, which I think perhaps could have been ruled out of order as well.

MR SPEAKER: Sure.

Mr Braddock: On the point of order, I am not asking for a legal opinion; I am asking why one part of the community is subject to legal action and the other is not. That is not asking for a legal opinion; that is just asking why there is different treatment for one part of the community.

MR SPEAKER: As I said, I will take it on notice and come back to the Assembly with an answer on 118AA.

Mr Barr: Mr Speaker, on the point of order, just for perhaps clarity for the chamber, Mr Braddock was asking about a commonwealth law, I understand.

MR SPEAKER: He was asking about the difference in the application, in how it is applied, is my understanding. As I said, we will have a look at it, and I will get back to the chamber.

MR RATTENBURY: My supplementary question is to the Minister for Policing, just for clarity. Why haven't ACT Policing taken action against the media publishing the original images?

DR PATERSON: I will take that on notice.

ACT Policing—hate speech laws

MR EMERSON: New question, same subject. When the venue was temporarily closed last Wednesday night, Dissent cafe and bar, by ACT police—

Members interjecting—

MR EMERSON: My question is to the Minister for Police, Fire and Emergency Services. On Wednesday night, Dissent cafe and bar in Civic was temporarily closed by ACT police—we are now told under commonwealth laws—for the five satirical anti-fascist posters, but the venue owner was told by the first three officers that the action was occurring under section 753 of the ACT Criminal Code. What is the government's position on the provision of this contradictory advice and was the deployment of five officers to the venue for this purpose an appropriate use of ACT Policing resources?

DR PATERSON: I will take part of that question on notice. My understanding, and what I have been briefed on consistently, is that this has been investigated under the commonwealth legislation; that is what has been potentially breached. But I will provide any further information on notice.

Ultimately, as has been discussed by ACT Policing, they received a report of offensive material. They addressed that complaint. Now this is currently an investigation

ongoing, it is an absolute priority for police to try and receive this legal advice and to make a decision on whether charges will be laid or not. I recognise, and they recognise, that this is a really concerning matter, particularly for the bar owner. So we would like to see this resolved one way or another as soon as possible.

MR EMERSON: Given the use of ACT policing resources—five officers for five posters—why did the ACT government not communicate the views of Canberrans who are not supportive of the commonwealth government's recent anti-vilification laws, by both publicly and privately expressing concerns, when the Albanese government announced these laws?

DR PATERSON: I do not really understand what the question is asking, but what I will answer is that this isn't a popularity contest or a debate which ACT police are engaging in. They received a report about what was described as illegal behaviour and they went and investigated it. This is under commonwealth legislation. These are new laws, so their interpretation is obviously under significant scrutiny at the moment. But this is an active and ongoing investigation. And as I said, as soon as possible, we will be able to come to the community with the outcomes of that investigation.

Mr Emerson: A point of order on relevance. The question is specifically regarding advocacy to the commonwealth government prior to the introduction of the laws, given its impact on the use of ACT policing resources, as evidenced in last Wednesday's event—five officers attending for five posters. Did any advocacy occur?

MR SPEAKER: I think the minister has concluded her answer, so unless you have something further to add Minister?

DR PATERSON: ACT police apply both commonwealth and ACT laws, so they are applying the laws.

MS CARRICK: Will the ACT government's review of anti-vilification laws consider law reform similar to the recently enacted commonwealth laws?

MR BARR: I will answer this question. The short answer is that the ACT process, which was an election commitment of this government in 2024, is not intending to follow the same process or indeed seek the same outcomes as the federal parliament determined. And let's not forget that the final legislation that was passed through the House of Representatives and the Senate was a bipartisan position. It was not just that of the federal government; it required support in the Senate as well. Now, of course, it did lead to the implosion of the coalition at that time, but, to be clear on the facts, the federal parliament passed those laws, and it required more than one party in order to see those laws passed.

Ms Carrick: A point of order. The question was about the ACT government's review of anti-vilification laws and whether they will consider the recently enacted commonwealth laws. So it is about our review.

MR SPEAKER: I think the Chief Minister answered that before he went on a bit of a rant, to be honest.

MR BARR: Forgive me, Mr Speaker, but if it was not entirely clear in the first part of my answer to Ms Carrick, our process is different and we are not seeking the same outcome. Our commitment to review those laws was announced as part of the 2024 election campaign, well before any of the tragic events in Bondi. They bear no resemblance to the process that the federal parliament undertook. It was an entirely different process with entirely different intended outcomes. I hope that is clear.

Government procurement—capital works

MR COCKS: My question is to the Chief Minister. Chief Minister, during your tenure as Chief Minister, and formerly as Treasurer, it has been a common practice in budget statements relating to capital works initiatives to withhold the dollar value budgeted for the works and instead use the acronym NFP—not for publication. What was the reason that your government began taking this approach?

MR BARR: This is an approach that is consistently used across states and territories and, indeed, at the commonwealth level when projects are going through a procurement phase, in particular. The rationale for this is to not condition the market in a competitive tender process to the value that the government is prepared to pay for a particular project. There has been a long history in Australian government procurement of, if you say you are going to spend $500 million on the project, then you will basically get all the tenders around that mark. So that has been the lived experience of government agencies involved in procurement.

Of course, the values of contracts are subsequently published. But before and during a competitive tender process, the collective view across the federation has been—particularly for high-value and competitive projects—that it is best not to publish until after the procurement has concluded.

MR COCKS: Chief Minister, what is the legal basis for this approach? Will you table any advice or briefing that you or your ministers have been provided to substantiate it?

MR BARR: I addressed the main thrust of that question in my first answer, but I will take on notice any further information that I can provide Mr Cocks.

Mr Cocks: A point of order on relevance. The question was about the legal basis for adopting the principle, not the general governance approach.

MR SPEAKER: Mr Barr said he would take any further information on notice, Mr Cocks. I presume that would be any advice that he can provide relating to legal advice, noting that government does not necessarily always provide legal advice.

MR PARTON: Chief Minister, are you completely satisfied that withholding this information in this way is not in contempt of the Assembly or its committees?

MR BARR: As I mentioned in my answer to the first question, it is certainly an established practice, particularly in relation to high-value procurement where a competitive process is required. Governments have given indicative ranges, but, again, there are risks associated with that.

I would accept it would be contempt of the Assembly if no contract value were ever published. But I think there has been a broad understanding—and, up to this point, an understanding that has been shared across the chamber and by Liberal governments in other states and territories—that for the purpose of procurement an NFP is appropriate but that once the procurement has concluded, contracts are published with dollar values.

Government procurement—Gundaroo Drive duplication

MR PARTON: My question is to the Minister for City and Government Services. Minister, I refer to an article published on 7 February in the *Canberra Times* referring to a $3 million settlement payment made to the contractor engaged to undertake the Gundaroo Drive duplication works. Minister, was a payment of this nature made, and, if so, exactly how much was paid?

MS CHEYNE: Yes, a payment was made. I will take on notice the exact dollar amount.

MR PARTON: Minister, under what authorisation or delegation was the settlement payment made?

MS CHEYNE: I do not have that immediately in front of me, but I think I can get that before question time ends, if you allow me.

MR SPEAKER: Are you taking it on notice?

MS CHEYNE: I will take it on notice.

MS BARRY: Minister, what was the basis for this payment, given that it is inconsistent with the determination made through arbitration? Will you table the copy of the deed of settlement?

MS CHEYNE: I think I can get the answer to the first question, which I will take on notice. I do not think tabling a deed of settlement is possible due to it being commercial-in-confidence, but I will also take advice on that and come back either way.

Alexander Maconochie Centre—security

MRS MORRIS: My question is to the Minister for Corrections. Reports in the *Canberra Times* include serious allegations from former ACT Corrective Services staff that staff and professional visitors are allowed to enter the AMC with minimal scrutiny. Minister, can you assure the Assembly that staff and professional visitors entering the AMC are submitted to the same security and screening processes as a general visitor?

DR PATERSON: Yes, I can. We have had a lot of discussion, and a lot of work has been conducted by ACT Corrective Services in respect of visitors entering the AMC, as well as staff. This is largely in respect of contraband that enters the prison. We know that all prisons around Australia and the world experience the issue of contraband being brought in, and it is particularly problematic when it is drugs. We have seen the consequences of that play out in coronial inquiries.

ACT Corrective Services have a range of different methods that they use to screen

people. They screen their irises; there is an X-ray machine; there are body scanner machines that have been implemented over the last couple of years; there are canine units which search individuals who are coming into the prison. There are also regular searches of cells, and detainees are body-scanned or strip searched if required. There is clear signage around issues regarding bringing contraband into the prison.

We recently had a media event in the prison, where all the media had to go through a similar screening process. That has raised some further questions. I want to assure the community that there is a very vigorous screening assessment as people enter the AMC.

MRS MORRIS: Minister, have any staff or professional visitors been investigated for contraband-related misconduct this financial year?

DR PATERSON: I will take that on notice.

MS CASTLEY: Minister, does the government have any evidence of staff smuggling contraband into the jail?

DR PATERSON: I will take that on notice in respect of the answer to Mrs Morris's question. We have a very dedicated intelligence team at the AMC which works on intelligence-led gathering of information. This determines any potential charges, cell searches or any progression to police investigations around contraband coming into the AMC. I would strongly encourage people, and I strongly encourage those individuals who spoke to the *Canberra Times* in that article, if they have information regarding any visitors or any staff at the AMC, there are multiple reporting processes through the ACT Corrective Services website. They can report to ACT police, and they can report to the Integrity Commission. We strongly encourage anyone, if they have intelligence or information, to do that, rather than making accusations that impact the integrity of the staff at the centre, who are doing everything right and who are working in a very difficult job. I encourage people to report, if they have information.

Mr Cocks: A point of order. It is under 118AA. The minister started off by saying that she would take the previous question on notice, rather than the current question on notice. She then did not answer the question about evidence within the answer that she provided.

MR SPEAKER: My understanding is that she took that on notice, as part of the question about that information. It related to question 1, supplementary 2 and supplementary 3, and she will be providing that information. I took it that the question was taken on notice, Mr Cocks. She then provided further information, so I do not uphold the point of order.

Natural disasters—Disaster Ready Fund

MR RATTENBURY: My question is to the Minister for Police, Fire and Emergency Services. Minister, the Disaster Ready Fund is an Australian government initiative providing up to $200 million per year to states and territories to improve Australia's disaster resilience and risk reduction. Under the fund, the ACT is entitled to allocated baseline funding of $7.5 million per round. However, over the past three years, our understanding is that the ACT government has forfeited approximately $7 million of

commonwealth funding by not submitting enough applications to reach that allocated baseline funding. Minister, why has the ACT failed to take full advantage of these commonwealth funding rounds?

DR PATERSON: I will speak to the Disaster Ready Fund, round 3. We have received the outcomes from that fund, and we did provide an adequate number of proposals for that. The commonwealth did not accept a number of our proposals for projects, so we did not receive the full allocation of funding in the last round. I have written to Minister McBain to understand why we were not successful in those applications. I have a meeting with her in the next couple of weeks to understand and receive some feedback on those applications.

Mr Rattenbury: Mr Speaker, on a point of order: the minister said she was only going to speak to round 3 and said we were successful, and then she said we missed out. I am uncertain.

DR PATERSON: We were successful with, I think, $3.8 million in round 3, not the full $7 million allocation, so I have asked the federal minister for some feedback and clarification as to why we were not successful for the full amount.

MR RATTENBURY: Minister, is the ACT government guaranteeing that we will submit enough applications on time in round 4 to fully access the ACT's $7.5 million potential allocation?

DR PATERSON: Yes; it is the full intention of the government to submit applications for funding, as it was in round 3, and apply for this federal funding to improve our disaster response in the ACT.

MISS NUTTALL: Minister, are you working with the community sector on ways to maximise available commonwealth funding through the fund, given that the ACT cannot access funding as a local government entity?

DR PATERSON: Yes; absolutely. The majority of projects that were successful in the last round are partnerships with community sector organisations. We are seeing some great projects coming off the ground and we will continue to work with community sector partners. I recently had representations from ACTCOSS on this exact issue, and we will continue to work with them to ensure that we have applications that are competitive for federal funding.

Economy—economic development data

MS TOUGH: My question is to the Chief Minister. Chief Minister, what does the latest economic development data highlight for the territory economy?

MR BARR: I thank Ms Tough for the question. The data highlights that the territory economy remains one of the strongest in the nation. Indeed, our gross state product increased by 3.5 per cent in fiscal 2024-25. This represents three consecutive decades now of economic growth for the territory, which is a record of growth above the other states and territories and above the national economy, supported by strong public demand, growth in real wages and very high labour force participation. The outlook for

the economy remains very positive, with forecasts for economic growth to continue through 2025-26.

One of the factors that is driving our strong economic performance is service exports, such as education, tourism and professional, scientific and technical services—which again grew over the reporting period. Future growth for the territory is expected to be broad based, supported by ongoing strength in public demand and services, a resilient and growing construction sector and pick-up in private investment.

MS TOUGH: Chief Minister, how else is the territory's strong services export sector contributing to economic growth?

MR BARR: There is one section of our service export sector that I think deserves special mention, and that is international education. Between fiscal 2015-16 and fiscal 2023-24, export income from international education in the territory more than doubled, from $633 million to $1.54 billion, highlighting the higher education sector's growing contribution to our territory economy.

We expect that positive trajectory to continue while also appreciating, of course, that international students are not just an export market; they are enriching our community by supporting local jobs, enhancing our city's global networks and driving tourism activity. Our labour market is strengthened by attracting skilled graduates who remain in the territory, and education tourism is generating significant flow-on benefits to our city's accommodation providers, hospitality venues, and retail and transport services across Canberra. In this respect, I was very pleased to see the rebound in short-term visitor arrivals in January and seeing them up through the years.

MR WERNER-GIBBINGS: Chief Minister, what does the data tell us about the progress of the government's housing agenda?

MR BARR: We have seen stronger building activity having a direct impact on housing support and affordability in the territory. Total trend building approvals grew by 113 per cent in the December quarter—well above any other state or territory—aligning with the rise in dwelling commencements of 37 per cent or just under 1,300 dwellings in real terms in that quarter, signalling strong momentum in the construction pipeline. I am sure it is agreed across this chamber that increased housing supply helps improve affordability, ensures students and workers can access accommodation and supports broader economic participation. At the same time, of course, construction activity contributes significantly to jobs and local investment.

These outcomes reflect deliberate government action to accelerate land release, streamline planning and support economic development. By aligning housing supply with economic growth, the government is continuing to deliver on its plan for Canberra's future, creating local jobs and strengthening our economy as we aim to ensure that Canberra remains one of the most liveable places in the world.

Macquarie swimming pool

MS CLAY: My question is to the Minister for Planning and Sustainable Development. Access Canberra has provided another five days for the owners or liquidators of

Big Splash to respond to the notice saying they were considering terminating the lease. Was Access Canberra asked for this extension, and if so, who by?

MR STEEL: Thank you for the question. I will take that on notice.

MS CLAY: With the deadline now extended to 27 February, is there the ability to grant a further extension?

MR STEEL: Access Canberra is following the process set up under the Planning Act 2023. I will seek some advice from Access Canberra, who are obviously acting on behalf of the independent Territory Planning Authority, and find out whether there is that ability. Obviously that is a legal question under the act as well. I am sure you are not asking for a legal opinion, but I will see what I can provide.

MR BRADDOCK: Minister, what response has there been from the lessees of the other six sites that the Territory Planning Authority is taking regulatory action against?

MR STEEL: I am not sure I can provide an update on those at this time but I will check with Access Canberra. What I can inform the Assembly is that in relation to the Hawker tennis site, Access Canberra informed me earlier in the week that they have issued a show cause notice in relation to that site.

Canberra Health Services—communicable disease management

MR PARTON: My question is to the Minister for Health. Minister, I understand that the confirmed measles case in the ACT spent approximately 2½ hours in the Gungahlin Walk-In Centre and then a further 2½ hours in the emergency department waiting room at the Canberra Hospital on Wednesday, 18 February this year, while infectious. Why was the patient not isolated on arrival? What specific clinical or triage protocols were followed to minimise exposure to other patients, visitors and staff in that waiting area?

MS STEPHEN-SMITH: It is a good question from the Leader of the Opposition. I will take the detail of the question on notice and come back to the chamber in relation to that. I would note, however, that both in walk-in centres and in emergency departments people do attend sometimes with diseases that are contagious. Measles, of course, is a vaccine-preventable illness. The vast majority of people in Australia are vaccinated against measles, but of course it is also something that we take very seriously. This is why the Chief Health Officer makes public information about occurrences of measles and makes available information about where people may have come into contact with it.

MR PARTON: Why was the patient reportedly left in a general waiting room for an extended period before isolation? Did that response comply with the ACT communicable disease management protocols?

MS STEPHEN-SMITH: I will take that question on notice.

MS CASTLEY: What formal communication took place between Canberra Hospital and the Gungahlin Walk-In Centre regarding the suspected and later confirmed measles case? Can the minister confirm whether the infectious risk was clearly and promptly

escalated between the facilities to protect staff and the public?

MS STEPHEN-SMITH: Again, I will take that question on notice. Thank you.

Burrangiri Aged Care Respite Centre

MS CARRICK: My question is to the Minister for Health, and it is about Burrangiri. The Aged Care Act 2024, particularly through the new Support at Home program, is designed to support our 58,000 carers to help older Australians remain living at home for as long as possible. In April 2025, the commonwealth committed $10 million to new capital infrastructure to deliver more aged-care respite beds in the ACT. Burrangiri's 15 beds provide half of Canberra's overnight respite needs; however, the new Support at Home packages that began on 1 November 2025 cannot be used at Burrangiri.

Minister, will you request the commonwealth add Burrangiri's respite services to the approved aged-care service list, enabling Support at Home packages and other commonwealth supports to be used at Burrangiri to resolve ongoing funding issues?

MS STEPHEN-SMITH: I thank Ms Carrick for the question. I have already been in communication with the commonwealth about these concerns. For the information of other members of the Assembly who may not follow this matter as closely as Ms Carrick does, prior to 1 November 2025, Home Care Package funding could be used for overnight respite for services like Burrangiri. That is, unfortunately, no longer the case under the new Support at Home program, but respite services do continue to be available at Burrangiri, and, of course, the very significant ACT government subsidy for that respite does continue, despite this being a commonwealth responsibility—so we will continue. I am also aware that our ACT Labor members and Senator Gallagher are also aware of this issue and have been advocating in relation to ensuring that commonwealth funding is available to support people to access Burrangiri.

I would, again, dispute the assertion that Burrangiri has 50 per cent of the respite beds in the ACT. I do not believe that that is an accurate representation. As I have indicated before, the majority of respite for older people is provided through aged-care facilities, but in different ways. Respite comes in all different forms as well. We also have, which I think is not included in the respite figures, a specific, step-down transition care facility for the transition and therapeutic care program, which is 14 beds run by BaptistCare, which is never included in these figures, despite the fact that advocates then claim that Burrangiri is used for hospital step-down.

MS CARRICK: Minister, will you test the market and then undertake an expression-of-interest process to identify a not-for-profit registered aged-care provider who is willing to manage Burrangiri's operations and infrastructure, including an expansion and refurb with the $10 million?

MS STEPHEN-SMITH: The $10 million would not be enough to refurbish and expand Burrangiri. It is not an ACT government responsibility to fund aged care, and we also know, having spoken to multiple aged-care providers—as I am sure Ms Carrick is aware—that the kind of model for respite that is delivered by Burrangiri is not a financially viable model under aged-care funding arrangements.

I know and I appreciate the advocacy of the Save Burrangiri Action Group. I met with a couple of those very passionate representatives recently and had a long conversation with them about it.

To get back to the original point of how this all started—if we were going to refurbish Burrangiri, we would have to close it down in order to do that, which is how this whole thing started. There is not an obvious, clean answer here. There is not an easy answer, and there is certainly not an easy answer that just involves the commonwealth government funding taking over a facility that we know is not cost effective and viable under the current aged-care funding arrangements. I understand that Ms Carrick believes that this is some kind of simple solution. She is wrong about that. I have agreed to meet with Ms Carrick to talk through where we are up to in relation to this matter. We are taking it very seriously. We welcome the $10 million from the commonwealth. We are in ongoing conversations with them about how best we use that. I certainly appreciate the passion that people bring to this issue and the degree to which they appreciate the service delivered at Burrangiri, but there is a reason it is a unique service.

MR EMERSON: Minister, what options have you pursued with the commonwealth's $10 million to increase the number of respite beds and maintain the same level of service provided by Burrangiri?

MS STEPHEN-SMITH: Unfortunately, I am not going to make a policy announcement for Mr Emerson here in question time! We are in conversation with the commonwealth about the best use of that funding, but it is their money, and those conversations are ongoing.

Government procurement—kerbside waste collection

MS CASTLEY: My question is to the Minister for City and Government Services. Minister, in 2024, the ACT government entered into a $444 million contract with JJ Richards & Sons for the provision of kerbside waste collection in Canberra. This was reportedly $100 million higher than the tender from the incumbent provider, Veolia. In relation to that kerbside waste contract, how many tenders were received as part of that procurement process?

MS CHEYNE: I believe we have been asked that question before, and I do not believe that we are at liberty to say how many tenders were received because, under a competitive tender process, that is commercial-in-confidence. I am happy to answer any other question.

MS CASTLEY: Minister, what assessment were tenders put under to ensure value for money on a contract with such a high dollar value?

MS CHEYNE: First of all, this was not a like-for-like tender or contract, compared to the previous waste collection services. This was about combining four separate contracts and consolidating them into one contract with the preferred tenderer. That was the collection of red and yellow bins, the collection and processing of green bins, the supply of household bins, and the collection of bulky waste items. Already, it was a very different contract from what was held by the previous contractor, which was

Veolia.

In terms of the value-for-money process, the tender evaluation followed our procurement principles. Again, the core objective was to achieve value for money. The responses were assessed in the following stages. There was the compliance assessment, then mandatory criteria assessment, including a Secure Local Jobs Code certificate, a fair and safe employment criteria response schedule, labour relations training, a workplace equity plan, and attendance at a mandatory industry briefing in the office of employment.

It was then assessed against weighted criteria, covering capability, safety environment, workforce transition, innovation and local participation. It was then assessed against non-weighted criteria, including price assessment and risk assessment. All of that combined gave a value-for-money assessment and, ultimately, JJ Richards was determined as providing the highest value for money.

MR CAIN: Minister, what weighting was the cost of service delivery given, as part of the tender assessment process?

MS CHEYNE: In the weighted criteria element, it was given 25 per cent. That relates to capability, capacity and methodology to deliver services. For context, for all other criteria that were weighted, environmental management was 10 per cent, work health and safety was 20 per cent, workforce and industrial relations management plan was 10 per cent, transition management was 15 per cent, innovation was 10 per cent, and local industry participation plan through secure local jobs was 10 per cent.

Again, I would refer Mr Cain to my previous answer, noting that the value-for-money assessment considers the whole-of-life costs being pricing, weighted criteria—which I have just read out—as well as non-weighted criteria.

Government procurement—kerbside waste collection

MS LEE: My question is to the Minister for City and Government Services, and it relates to the JJ Richards contract worth $444 million for the provision of kerbside waste collection in the ACT. It has come to the opposition's attention that, after the tender was awarded, JJ Richards drivers received pay increases in excess of 25 per cent. Minister, is that correct?

MS CHEYNE: I will have to check the exact number, but I would note that, under Fair Work obligations, the workers under the previous contract had already been involved in negotiations regarding their EBA. The transition to JJs occurred in April 2025, and it was in April 2024 that the contract was awarded to JJs. I believe that the negotiations between the TWU, the workforce and Veolia occurred in early 2024 but had been underway for some time.

MS LEE: Minister, were the pay increases for drivers part of the requirements under the request for tender or a requirement of the contract conditions?

MS CHEYNE: There were certainly criteria that required the continuity of employment and transition management. I believe I noted that before as one of the

weighting criteria. That was deliberate in terms of that workforce being no worse off.

MR PARTON: Minister, how much was the required pay increase?

MS CHEYNE: I will take the question on notice.

Public schools—infrastructure

MISS NUTTALL: My question is to the Minister for Education. Minister, we have heard about classrooms being so hot that students have needed to leave school early due to a lack of cooling facilities in their classrooms. Last year, we heard that some high school students reported feeling faint from the heat, which reportedly got up to 31.3 degrees and we have had three heatwaves since. I understand the Public School Resourcing Review is underway, but what is being made available for students and staff who are sweltering in the meantime so learning is not disrupted?

MS BERRY: I thank Miss Nuttall for the question. There are a range of different appliances that are put in place at schools to manage through some of the hot weather that we have been experiencing. We also have a $15 million fund to increase cooling across a range of different schools that have been listed as priorities. For example, Latham Primary School has been listed as a priority school for a new HVAC system. In the meantime, temporary measures are put in place, like portable fans and air conditioners. We are also allowing windows to be opened for natural air ventilation and also installing more natural shade structures and planting trees in a range of other schools.

MISS NUTTALL: Minister, are you aware that a lot of the HVAC machines and fans that you have mentioned cannot actually be used at the same time as teaching because they are extremely noisy and disruptive?

MS BERRY: I have been aware that some of the appliances that schools were using were being described as loud. The directorate has gone down to those schools to check the working order of those machines. I understand that those machines are in working order and within appropriate noise limits, although I understand that that would be a disruption for classes and particularly for teachers. So we are working as quickly as we can to resolve the HVAC system. That will take some time. It is an old school and it is a significant upgrade.

MS CLAY: Minister, after the students of Canberra High last year organised a petition begging the government for aircon in their classrooms, how many classrooms at Canberra High now have aircon and how many still do not?

MS BERRY: I will take that question on notice.

Government procurement—kerbside waste collection

MS BARRY: My question is to the minister for city services. Minister, I understand that we are now nearly two years into the delivery of a $444 million contract with JJ Richards for kerbside and bulk waste collection. Minister, what was the average monthly cost of providing kerbside and bulk waste collection as part of the previous

contract with Veolia?

MS CHEYNE: Would you mind just repeating the question? Sorry, Ms Barry—just the end bit.

MS BARRY: What was the average monthly cost of providing kerbside and bulk waste collection as part of the previous contract with Veolia?

MS CHEYNE: I will have to take the specific question on notice, but I would again stress to all opposition members who have an interest in this that value for money is not just cost for cost or the lift-cost for lift-cost—a lift for lift comparison. It is not a valid comparative point when there are a range of considerations that need to be undertaken in determining value for money, such as risk and who is responsible when a problem does occur. I have detailed the weighted criteria. I have also detailed that there were non-weighted criteria, including price assessment and risk assessment, and all of these, together with the mandatory criteria, formed the value for money assessment.

MS BARRY: Minister, what is the average monthly cost of the new agreement with JJ Richards?

MS CHEYNE: I will take that on notice.

MR MILLIGAN: How does the government justify that such an increase, potentially, in the fee-for-service results in value for money for ACT ratepayers?

MS CHEYNE: I feel like I am really not being heard here. So, I need to stress again, that value for money is not just about the dollar amount, and that is not a valid comparator. Look, it is certainly part of it, absolutely, but value for money is determined through a number of different criteria, which I have repeated over and over. And funnily enough, all of these questions were asked of me by Mr Cocks at the end of last year. So it does go to show that if you do questions on notice—and I will take questions on notice—people do not necessarily read them. If members of the opposition would like to avail themselves of all the facts related to this, they can certainly go and read that or reflect on the *Hansard*.

Health—disability inclusion

MR WERNER-GIBBINGS: My question is to the Minister for Health. Minister, how are you building a more inclusive health system in the ACT through improving access to care for people living with attention deficit hyperactivity disorder and through recent changes to the Digital Health Record?

MS STEPHEN-SMITH: I thank Mr Werner-Gibbings for the question. The ACT government does continue to listen to our community and build an inclusive health system that meets people's needs. Two measures announced this month recognise that some consumers can feel excluded or face barriers to care as a result of disability or neurodiversity, making them less likely to access the care they need.

As Mr Werner-Gibbings has identified, we have introduced a new consistent way for people with disability to identify their access needs in the Digital Health Record by

building a questionnaire into the DHR and MyDHR platform. Through the questionnaire, consumers can choose to identify as a person with disability and can record and update their access needs. This will support Canberra Health Services staff to make reasonable adjustments when providing care. This could be any change to the usual processes or environment, such as adjusting appointments to ensure carers can attend, or communication methods such as Auslan, something specifically welcomed by DeafACT, who joined me for the announcement. Asking whether a person identifies as having a disability and understanding their access needs is essential to delivering person-centred health care.

We are also making it easier for people with ADHD to access appropriate treatment by simplifying prescribing processes for ADHD medicines. From 11 February, general practitioners who have completed approved training will no longer need repeated patient reviews from a psychiatrist, paediatrician or neurologist, or approval from the Chief Health Officer, to allow ongoing prescribing of ADHD medication. Eligible patients for this initiative are those who are stable on their ADHD medication, who are aged six years and older and who have an existing diagnosis from a relevant specialist.

MR WERNER-GIBBINGS: Minister, what are the benefits to the community of simplifying access to ADHD prescriptions?

MS STEPHEN-SMITH: I thank Mr Werner-Gibbings for the supplementary. These changes will improve access to timely care and help ease pressure on the health system while ensuring that prescribing remains safe and supported by appropriate monitoring. This reform reflects both clinical realities and the calls from patients and families for better access to timely assessment and treatment, benefiting both patients and health professionals by reducing delays. This will help to ease demand for referrals and appointments with specialists, opening up more appointments for new patients and removing unnecessary administrative burdens for psychiatrists, paediatricians and neurologists, who will be able to prescribe ADHD medicines for patients aged four and over, within specified dose limits, without needing to apply for a CHO approval for each patient. Importantly, the changes maintain appropriate safeguards and recognise the role of GPs as central providers of care.

These changes around prescribing ADHD medications are the first stage of our approach to better supporting ADHD care in the ACT. Further reforms will come into effect later this year to allow GPs with additional training to diagnose ADHD and to initiate medication for eligible patients. This reform is part of the ACT government's broader commitment to enable health professionals to work at their full scope of practice and to improve access to high-quality, safe care.

GPs who choose not to expand their ADHD scope of practice, or for more complex presentations, can continue prescribing ADHD medications in a shared care arrangement with paediatricians, psychiatrists and neurologists. We have worked with GPs and other medical practitioners and stakeholders to implement this measure, and I want to thank all stakeholders for their participation and support in this process.

MS TOUGH: Minister, how does the ACT compare with other jurisdictions in simplifying access to health care for people living with ADHD?

MS STEPHEN-SMITH: I thank Ms Tough for the supplementary. The ACT is working collaboratively with other jurisdictions in relation to the role of GPs in ADHD diagnosis and prescribing. In the ACT, we have had continuation of prescribing arrangements with GPs supported by non-GP specialists for a number of years. We were one of the first jurisdictions to announce plans to extend prescribing and diagnosing to GPs. Along with New South Wales, we have already commenced our expanded prescribing arrangements. As I noted earlier, the ACT arrangements have been in place from 11 February. I understand we will also be one of the first jurisdictions to introduce GP diagnosing of ADHD later this year.

But the ACT is, of course, committed to harmonisation across jurisdictions, and that work is also continuing. In particular, we continue to work closely with the Australian and New South Wales governments towards a nationally consistent approach to expanding GP scope of practice for ADHD diagnosis and medication management, as well as for a range of other areas where GPs are seeking to expand their scope of practice. Thank you.

Mr Barr: Further questions can be placed on the notice paper; thank you.

Supplementary answers to questions without notice

Government procurement—kerbside waste collection

MS CHEYNE: I have been corrected. I can provide the number of tenderers for the contract that ultimately went to JJ's. There were three. As I think was clear in my response, but in order to make it as plain as day, there were no pay increases for those workers with the beginning of the new contract with JJ's. That is because the contract required the existing pay and conditions to transition. The existing pay and conditions had been established and endorsed by the Fair Work Commission in the previous term of the contract, and that transitioned across. In fact, Veolia was already paying according to those conditions, so there was no pay increase.

Government procurement—Gundaroo Drive duplication

MS CHEYNE: In terms of the payout from iCBR, this is quite a long answer, so strap in. We do work with our contractors, in line with contractual conditions that are based on collaboration, and we do ensure that contractors are paid any sums that they are entitled to under their contracts. In addition, there are appropriate delegation levels and governance required for contracts and variations according to their value. The mentioned contract with Woden Contractors was for TCCS, which is now within the City and Environment Directorate, and it is administered by Major Projects Canberra, which is now Infrastructure Canberra.

As there can be with some civil construction projects, this project involved multiple changes, as the assumed ground and site conditions at the time of contracting proved to be very different in the conditions in the delivery of the project. I have certainly been very clear about that in my own communications about it over some time.

The contract sets out the respective responsibilities and liabilities for these events and it requires the contractor to prove entitlement and quantification for any claims they have for payment, which in this circumstance resulted in differences of opinion and

disputes between the contractual parties.

Unlike litigation of a dispute in court, the Building and Construction Industry (Security of Payment) Act provides a rapid response for a contractor to seek to have an interim payment of a disputed amount. Following the adjudication on the interim payment, it is up to the contractual parties to finally resolve the dispute through the dispute resolution processes in the contract. In this case, as the contractual parties were unable to resolve the dispute at the time of the payment claim in the first instance, the contractor applied under the act for that interim payment through the adjudication process.

The adjudicator found that there was an entitlement to the additional costs associated with the contractor's claim, but the contractor had not proven their quantification of that amount through the adjudication process. The ACT government agreed with this decision. Following that adjudication, iCBR and TCCS worked with the contractor to agree the quantification of the additional costs incurred by the contractor that they were entitled to under their claims, including resolving additional claims that were not raised in the adjudication. This resulted in the parties resolving all outstanding disputes in relation to those matters through a settlement deed.

The value of the variation was approved by the delegate. The settlement of disputed claims and the use of settlement deeds to document that settlement are standard practice in the construction industry. It is consistent with good legal practice and our model litigant obligations to avoid costly litigation where we can. I said I would come back on whether I could or could not table the deed of settlement, and I cannot.

Alexander Maconochie Centre—security

DR PATERSON: My supplementary answer is in response to Mrs Morris's and Ms Castley's questions. ACT Corrective Services reported fewer than three instances of alleged contraband-related incidents—and "contraband" is a broad definition; it can be a lot of different things—involving staff between 1 January 2025, last year, and 10 February this year. As these matters are subject to investigation, it is not appropriate to provide further details. We strongly recommend that anyone who suspects the introduction of contraband or other allegations of misconduct by staff should report this to the ACT Public Sector Standards Commissioner, the ACT Integrity Commission or ACT Policing.

Estimates 2026-2027—Select Committee
Membership

MR SPEAKER: I have been notified in writing of the following nominations for membership of the Select Committee on Estimates 2026-2027: Mr Braddock, Mr Werner-Gibbings, Ms Castley and Mr Emerson. Congratulations to you all.

Motion (by **Ms Cheyne**) agreed to:

> That the Members so nominated be appointed as members of the Select Committee on Estimates 2026-2027.

Papers

Mr Speaker presented the following papers:

Bills, referred to Committees, pursuant to standing order 174—Bill—Inquiry—Firearms (Public Safety) Amendment Bill 2026—Letter to the Speaker from the Chair, Standing Committee on Legal Affairs, dated 11 February 2026.

Standing order—

99B—Petitions—Referral advice—Correspondence—Petitions—Not inquired into—

e-Pet 029-25 and Pet 050-25—Tuggeranong 55 Plus Club—Car parking and accessibility—Improvement—Letter to the Speaker from the Chair, Standing Committee on Environment and Planning, dated 9 February 2026.

e-Pet 055-25 and Pet 069-25—Human rights incompliant entities—Divestments, independent inquiry and legislative reform—Copy of letter to the Speaker from the Chair, Standing Committee on Public Accounts and Administration, dated 9 February 2026.

191—Amendments to the following bills:

Building and Construction Legislation Amendment Bill 2025 (No 2), dated 12 and 13 February 2026.

Government Procurement Amendment Bill 2025, dated 12 and 13 February 2026.

Justice and Community Safety Legislation Amendment Bill 2025 (No 3), dated 12 and 13 February 2026.

Territory Records (Executive Records) Amendment Bill 2025, dated 12 and 13 February 2026.

Ms Cheyne, pursuant to standing order 211, presented the following papers:

Annual Reports (Government Agencies) Act, pursuant to section 13—Annual Report—2024-2025—Justice and Community Safety Directorate—Corrigendum, dated February 2026.

Children and Young People Act—Children and Young People (Care and Protection Organisation) Standards 2025 (No 1)—Disallowable Instrument DI2025-272 (LR, 23 October 2025)—Revised explanatory statement, dated February 2026.

Corrections Management Act, pursuant to section 230—Statutory Review Report—Section 70 *Correction Management Act 2007*, dated February 2026.

Financial Management Act—

Pursuant to section 26—Consolidated Financial Report for the financial quarter ending 31 December 2025.

Pursuant to subsection 30F(3)—Capital Works Program—Progress report—2025-26—Year-to-date performance as at 31 December 2025.

Public Accounts and Administration—Standing Committee—Report 3—Inquiry into the Public Sector (Closing the Gap) Legislation Amendment Bill 2025—Government response, dated February 2026.

Remuneration Tribunal Act, pursuant to section 10—Part-time Public Office Holder—Determination 13 of 2025 (Amended), dated 20 February 2026, together

with an accompanying statement.

Social Policy—Standing Committee—Report 2—Inquiry into Petition 017-25 and E-Petition 005-25, Closure of Burrangiri Aged Care Respite Centre in Rivett—Government response, dated February 2026.

Woden Town Centre Integrated Land Use Plan—Assembly resolution of 3 February 2026—Government response, dated February 2026.

Subordinate legislation (including explanatory statements unless otherwise stated)

Legislation Act, pursuant to section 64—

ACT Teacher Quality Institute Act—ACT Teacher Quality Institute (Fees) Determination 2026 (No 1)—Disallowable Instrument DI2026-1 (LR, 8 January 2026).

Animal Welfare Act—

Animal Welfare (Standards and Guidelines for Cattle) Code of Practice 2026—Disallowable Instrument DI2026-7 (LR, 22 January 2026).

Animal Welfare (Standards and Guidelines for Sheep) Code of Practice 2026—Disallowable Instrument DI2026-6 (LR, 22 January 2026).

Building and Construction Industry Training Levy Act and Financial Management Act—Building and Construction Industry Training Levy (Governing Board) Appointment 2026 (No 1)—Disallowable Instrument DI2026-10 (LR, 2 February 2026).

Cemeteries and Crematoria Act—Cemeteries and Crematoria Code of Practice 2026 (No 1)—Disallowable Instrument DI2026-8 (LR, 23 January 2026).

Fair Trading (Australian Consumer Law) Act—Fair Trading (Australian Consumer Law) Fitness Industry Code of Practice 2026—Disallowable Instrument DI2026-2 (LR, 8 January 2026).

Land Titles Act—Land Titles (Fees) Determination 2026—Disallowable Instrument DI2026-4 (LR, 19 January 2026).

Legal Profession Act—Legal Profession (Barristers) Rules 2021—Subordinate Law SL2026-1 (LR, 19 January 2026).

Long Service Leave (Portable Schemes) Act and Financial Management Act—Long Service Leave (Portable Schemes) Governing Board Chair Appointment 2026 (No 1)—Disallowable Instrument DI2026-9 (LR, 28 January 2026).

Major Events Act—Major Events (National Multicultural Festival 2026) Declaration 2026—Disallowable Instrument DI2026-3 (LR, 7 January 2026).

Road Transport (General) Act—Road Transport (General) Application of Road Transport Legislation (National Multicultural Festival) Declaration 2026—Disallowable Instrument DI2026-5 (LR, 22 January 2026).

Urban Forest Act—Urban Forest (Molonglo Town Centre) Declaration 2026 (No 1)—Disallowable instrument DI2026-14 (LR, 23 February 2026).

Water Resources Act—Water Resources Environmental Flow Guidelines 2026—Disallowable Instrument DI2026-11 (LR, 10 February 2026).

Early childhood education and care—safety

MR EMERSON (Kurrajong) (3.08): I move:

That this Assembly:

(1) notes that:

(a) there are many diligent and professional early childhood education and care (ECEC) educators across the ACT who deserve greater support, acknowledgment and appreciation for their work;

(b) documents released on 24 December 2025 have exposed poor practice in some parts of the ECEC sector that has jeopardised children's safety; and

(c) Productivity Commission data shows the ACT has the least qualified and experienced ECEC sector in Australia, the second-highest rate of Education and Care Services National Law (National Law) breaches and the second-lowest proportion of service quality rating assessments or reassessments in 2025;

(2) further notes that:

(a) *Set up for Success: An Early Childhood Strategy for the ACT* does not focus on child safety and safeguarding measures;

(b) the ACT is the only Australian jurisdiction without an online portal for verifying Working With Vulnerable People (WWVP) cards;

(c) the ACT has not fined any ECEC providers for breaching the National Law, despite egregious and repeated breaches at some centres;

(d) on 22 August 2025, Australia's Education Ministers agreed to triple fines under the National Law, but the ACT has never set up a mechanism to impose these fines;

(e) Queensland, Western Australia, Victoria and South Australia maintain public registers of compliance enforcement actions in the ECEC sector, but the ACT does not;

(f) many centres have not had their National Quality Standard (NQS) rating reassessed for several years, despite changing hands and/or repeatedly breaching the National Law since their last assessment; and

(g) the unimpeded corporatisation of the sector means profit is being prioritised over children's safety and wellbeing in some centres;

(3) calls on the government to:

(a) update the early childhood strategy with a renewed focus on child safety and safeguarding measures;

(b) establish an online portal for verifying WWVP card numbers;

(c) start fining ECEC providers for egregious and repeated child safety breaches;

(d) increase transparency for families by establishing a public register of compliance enforcement actions;

(e) increase professional development support in the sector to ensure staff training supports best practice;

(f) revisit and clarify ratio requirements to ensure adequate supervision, including regarding the use of under-the-roof ratios and the inclusion of

students and trainees in ratio calculations;

(g) develop scope-of-practice guidelines for students and trainees;

(h) deliver land-use reforms that support locally run ECEC centres, including more long-term peppercorn leases and concessional land releases for not-for-profit centres, and planning restrictions to protect small locally run providers from being cannibalised by large conglomerates;

(i) explore options to cap centres' surplus revenue to ensure sufficient investment back into service quality and the workforce;

(j) strengthen information-sharing capabilities and obligations across government while simplifying reporting lines for educators and providers;

(k) end the practice of service approval transfers;

(l) introduce mandatory NQS reassessments within six months of an ECEC centre facing regulatory enforcement action; and

(m) increase resourcing to Children's Education and Care Assurance; and

(4) further calls on the government to:

(a) update the Assembly on its progress in implementing these measures by the first sitting week of September 2026; and

(b) provide a further update and table the updated early childhood strategy by the second sitting week of 2027.

This motion has been a long time coming in some ways and follows almost a year of intensive community and sector consultation and the information we all gained through the release of documents in this place. The calls in this motion were directly informed by advice of sector experts and peak bodies, and I would particularly like to thank Early Childhood Australia for working so closely with me and my office to ensure the calls are practicable, reasonable and effective.

I acknowledge parents who are joining us online and those in the gallery today who have gone through every parent's worst nightmare and have generously shared their experiences to ensure we get these reforms right so other children, parents and carers do not have to go through the same trauma.

I also acknowledge the many diligent and professional educators and providers across our community, who I acknowledge feel that they are under siege at the level of public scrutiny on this sector at the moment. I want to make clear, though, and I said this in the previous sitting, that that scrutiny is not the issue. The issue is the regulatory gaps that have allowed children to be put at risk, and that is the matter that is before us today in this motion.

I also thank the broader Canberra community who have taken a significant interest in this matter, unsurprisingly perhaps, because children's wellbeing is at the forefront of so many of our minds.

I recently circulated a survey on safety in the ACT's early childhood sector. Thirty-five per cent of responses were from educators or Canberrans otherwise working in the

sector, and 63 per cent of responses were from parents or carers. Ninety-eight per cent of all respondents agreed or strongly agreed that reform is needed to ensure children's safety always comes first in our early childhood education and care centres.

The question of whether change is needed cannot really be disputed. The questions, then, are: what change and at what pace, and how much are we willing to do at the territory level to meet our community's expectations in this area? With that in mind, I would like to share some statements from a handful of community members to provide the chamber with some insight into what Canberrans think about this issue. First of all, Sarah Wilcox, CEO of Wonderschool, who I believe is joining us in the gallery today, said:

> Transparency for families is important, including access to compliance notices. However, this must be accompanied by appropriate context, including whether matters were self-reported and whether incidents reflect systemic safety concerns or isolated, accidental events.

She added:

> The current Assessment and Rating process under the National Quality Framework is also not functioning effectively in a sector experiencing frequent workforce turnover. Ratings are often based on a snapshot in time and can quickly become outdated, much like the leadership of a centre.

She continued:

> There is an urgent need to improve information-sharing between regulatory bodies. Providers currently report extensively to multiple agencies (CECA, ACT Ombudsman, Access Canberra, Child Youth and Families, ACT Police), yet information does not flow effectively between those agencies. Conflicting advice and delayed risk responses undermine confidence in the system. Strengthened, real-time information-sharing is essential to reduce duplication, improve oversight, and enhance child safety.

Ms Wilcox said:

> Policy discussions should avoid framing the sector as a simple dichotomy between for-profit and not-for-profit providers. Quality, accountability, and ethical practice are not exclusive to one model. What matters most is strong governance, investment in workforce capability, and a regulatory system that is collaborative, proportionate, and focused on safety and learning outcomes for children.

My community survey indicates that Canberrans have mixed views on this dichotomy, with 50 per cent supporting a sector populated by a combination of for-profit and not-for-profit providers, compared with 43 per cent calling for not-for-profit only. What is clear is that small local providers that are deeply connected to our community must be supported to thrive, otherwise they face cannibalisation by large conglomerate providers if their viability is not protected courtesy of government policy.

One parent whose child was covered in bite wounds has provided this statement. Those bite wounds drew blood. The parent said:

> The centre's incident report, combined with the severity of [my child's] injuries and the manner in which the incident was handled, raises significant concerns around child safety, supervision failures, delayed parental notification, and compliance with duty of care obligations.

Due to the seriousness of the wounds, he was prescribed antibiotics, and the treating doctor expressed concern about how a child could sustain multiple bite wounds of this severity on the upper back. The mother, in her statement, said:

> It is implausible that a young child could be bitten repeatedly on the back without moving, resisting, or crying out. In addition to this supervision failure, the incident reportedly occurred at 4:40pm, yet we were not contacted until approximately 20 minutes later. During the call, the father was told that their child had been bitten and staff would "chat to us when we came to pick up.

At no point were they informed that the child had sustained multiple bite wounds, broken skin, bruising or injuries requiring medical treatment. The parent said:

> This delay and lack of detail prevented us from making an informed decision about urgent medical care and is completely unacceptable.

Of their experience, another parent said:

> I've switched my son recently to a much smaller daycare with better ratios and it's making me realise in hindsight how the for-profit and ratio 'book-cooking' of other centres is a huge safety concern for the children's physical and mental wellbeing, as well as the staff.

Another parent said:

> Staff turnover is extremely high, managers appear unsupported, and a recruitment freeze has led to heavy reliance on casual and student workers who are not fully qualified or adequately trained. Casual staff are performing tasks such as nappy changes without proper induction, uniforms, or identification - quite literally strangers handling our precious children in their most vulnerable state.

One educator said:

> Children, particularly those aged 0-5 are among the most vulnerable members of our community. They cannot always articulate when something is wrong or advocate for themselves if they are treated poorly. As educators and sector professionals, we carry a significant responsibility to protect them and provide a strong foundation for their development. The early years are critical; positive early experiences support long-term mental, physical and emotional wellbeing, which ultimately benefits society as a whole.

Another parent said:

> The food provided was grossly inadequate. The centre was to provide breakfast however on at least one occasion a parent had to go to the shop down the road to buy all the kids in attendance breakfast so they had something to eat, because the centre didn't have food.

> I also experienced instances of my then 1 year old son being provided only half a piece of buttered toast to eat, something I only found out about because his educator notified me and showed me photo evidence. I approached the director asking what the kids were given that day and she responded by lying to me.
>
> Our son was injured several times without us being notified including head injuries. One involved him being hit in the head with a toy truck by another child, and when I asked about it, none of the educators could tell me what had happened because nobody witnessed it.
>
> I understand things happen sometimes but the centre was consistently under staff ratios due to following a "under one roof" ratio calculation rather than having the required number of staff for 0-2 year olds, which led to my son being hurt and going unnoticed.
>
> Educators did not have appropriate qualifications for room leader positions as per the centre's own policy.
>
> This centre has now closed, less than 2 years following the change of ownership. We are grateful our son now attends a great centre which has seen his development thrive, but I can't help but think that these situations, and worse, are occurring at many centres yet being assessed as non-issues by CECA with no further action.

Another parent said:

> There's only one word for it; abuse. We feel like we risk our kids being abused because they cannot speak for themselves. We feel abused because we have no choice but to both work and like so many in the ACT, have no family to step in as carers.
>
> We feel our trust in the system is abused when quality ratings for centres are so out of date as to be meaningless and safeguarding statements are plastered all over childcare centres, but breaches are not acted on or punished.
>
> We feel that good childcare workers (we experienced many!) are abused when their employers undervalue them, overwork them, and fail to act on their reports of issues. We feel our taxpayer dollars are abused when subsidies flow to providers who are clearly in it for the money, not to provide a service in which they take pride.
>
> It has to stop.
>
> Put simply - We cannot be forced to choose between our kids being safe and being able to have a job. But unfortunately that impossible situation is real for too many right now.

These personal accounts also reflect some of what has been revealed through the documents released courtesy of the passage of last year's order for the production of documents in this Assembly. While in New South Wales a similar document release has resulted in significant commitments to reform, there has been something of a lethargy here in the ACT that we have an opportunity to address with today's motion.

The motion makes some simple evidence based notes about some of the issues faced in certain pockets of our early childhood education and care sector. It highlights areas in

which the ACT has fallen behind other jurisdictions—clear areas for improvement. Every other state and territory has an online Working with Vulnerable People card verification portal. We are the only ones who do not. This system is not much use unless you can easily verify whether a card is valid. Queensland, Western Australia, Victoria and South Australia all maintain public registers of compliance and enforcement actions following breaches of the National Law. The Western Australian government's website on this says:

> The department is committed to keeping parents, the community and the education and care sector informed about compliance action taken against serious offences through the publication of prosecutions under the National Law.

This makes a lot of sense to me. It is something we could and should be doing in the ACT and it would render the need for document releases redundant.

We do not have a mechanism in place to issue infringement notices, despite all of the compliance notices that you read in the document release warning about the penalties for breaching the National Law. Officials at a recent Senate estimates hearing took on notice a question regarding how many jurisdictions were in this place—that had not set up the infrastructure to impose the fines that are threatened in these notices—but indicated that they thought the ACT might be the only one. It is an obvious area for change.

We need to increase resourcing to Children's Education and Care Assurance, the regulator. We have the second-lowest proportion of services that have had their National Quality Standard rating assessed or reassessed in the last financial year, at just 14.4 per cent. CECA will need additional resourcing to fulfil expectations for more frequent ratings and to deliver the measures contained in this motion. And that too should be uncontroversial. It is a catch-up measure that gets us closer to where other jurisdictions already are.

The motion also points to opportunities for the ACT to show some leadership in this space, including by updating the ACT's early childhood strategy, which does not focus sufficiently on child safety and safeguarding measures. Children's safety only features twice in the strategy and only in passing, while safeguarding does not manage a mention at all. The sector has changed since the strategy was developed and issues have come to light that require attention. They may not have been on the radar—I acknowledge that—when the strategy was prepared six years ago. This is an opportunity and a time to revisit and update that strategy.

We need to introduce mandatory National Quality Standard rating re-assessments after centres have been found to have breached their obligations under the National Law. It is hard to determine whether there is any correlation between these two things, reading through the numbers of breaches in certain centres and the frequency with which they have been re-assessed. One centre has not been re-assessed for 10 years and many are above five, six, seven or eight years. This is the information that families use to determine whether the service they are sending their child to is of quality. It is important that those ratings, those assessments, are done frequently so that information is reliable.

On that, the motion calls for an end to the practice of service approval transfers. When

a provider comes in and takes over a service, we might not see a re-assessment of that service's rating for multiple years thereafter, despite having a new centre director, new staff, new policies and procedures, and perhaps an entire turnover of the educators in the centre. They might still be rated—we have seen this in the document release—as exceeding the National Quality Standard on a range of measures. That is information providers are using to inform their decisions. Ending the practice of service approval transfers is an easy fix, and requiring a new provider coming in to get an approval for that service is a position that has been supported and put forward by Early Childhood Australia.

We need to increase professional development support. Obviously this is absolutely critical with the ACT having the least experienced and least qualified workforce in the country, according to the latest Productivity Commission data.

It is time to revisit ratio requirements, and I welcome the minister's commitments in this respect. We need to look at the misuse of under-the-roof ratios and consider the appropriateness of including students and trainees in ratio calculations as well. While we are on that, I think the ACT has an opportunity to look at scope-of-practice guidelines. Let us be the first to do this. Nurses and apprentice plumbers have scope-of-practice guidelines where it is clear what you are able to do when you are on placement, when you are early in your profession, and when you are getting used to the profession. We do not have this in early childhood. It is something we need and something the ACT could show leadership by doing first.

We need land use reforms—which we have spoken about in this chamber—that support locally run centres, including more long-term peppercorn leases and concessional land releases for not-for-profit centres, and to look at planning restrictions to protect smaller, locally run providers from being cannibalised by larger conglomerates. I also want to acknowledge the minister's remarks regarding the corporatisation of the sector. It is a concern and it is something we can address.

Reducing cost pressures would be fantastic, and proven providers are a critical way of doing that. Along those lines, exploring options to cap a centre's surplus revenue to ensure sufficient investment back into service quality in the early childhood workforce is also a critical call contained in this motion, and I think it is worthy of consideration.

We also need to strengthen information-sharing capabilities and obligations across government, while simplifying those reporting lines for educators and providers wherever we can. Victoria's Child Information Sharing Scheme may be instructive in this respect, while noting there are some jurisdictional differences.

In closing, we have 13 meaningful reforms before us today that we could, and should, vote in support of rolling out here in the ACT. I am seeking the Assembly's support for these reforms that have been developed and refined through extensive consultation over nine months with educators, families, providers and experts. The fact is that we have a system that is not currently set up to support and incentivise best practice when it comes to the education and care of our children. We have an opportunity to turn that around, and hopefully this motion takes us in that direction.

MISS NUTTALL (Brindabella) (3.23): Children are important. They are important as

the adults of tomorrow—sure—but they are also important as the children of today. They are our youngest Canberrans and have the right to quality education and a safe place to play and learn.

This is a big motion. I give credit to Mr Emerson. There is a lot in this. It is also a motion that comes at a time of intense pain and grief in the early childhood sector. There is the pain and grief of kids who have experienced harm or are sad because their friends have been hurt. There is the pain and grief of parents who, despite very much valuing education, hear news about harm experienced by kids in early childhood settings and feel bone-deep worry about their own kids. There is the pain and grief of all the ferociously competent educators who readily apply themselves to a career where they will not be paid as much as teachers in the public sector, who are also not paid enough. Educators spend years honing their craft because they know how important education and care is for kids and their parents.

Through all this, everyone wants and everyone is committed to high-quality education and a safe learning environment for our kids. So I think we owe it to each other to take a step back and think about what our ultimate goal is here. How do we make the best, most ethical and effective system of early childhood education and care possible? What does that look like?

The Greens' view is that it looks like a universal system of free, high-quality early childhood education and care. It looks like a system that prioritises children's education and safety over profit as a matter of course. It looks like a system where educators are valued, trusted and paid fairly for what they do, where parents are empowered to drop off their kids, knowing their kids are getting a world-class education and their kids are going to learn and grow. It looks like a system where educators and providers feel both duty bound and supported to report incidents as they arise, because transparency is built into the system.

Where we find ourselves right now is a quite fraught path. Some things we do will help; some things we do will hurt. For example, I, like a lot of people, remain sceptical that something like CCTV in all centres is an appropriate way forward, because I am not convinced it protects the privacy and dignity of kids. I do not trust that footage can be securely and ethically stored.

I also want to provide the disclaimer that, while I genuinely believe this motion is really well intentioned, it has also been really challenging to work through. The level of detail would require weeks of due diligence for us, as members, to provide a fulsome response. When we are about to commit to major reforms, our office consults. We want to consult with kids and the parents who are impacted. We want to consult with advocates and providers for whom this is their main work. That is tough. I appreciate that, while Mr Emerson has rightly talked about the consultation that he has done over a number of months, we have had this body of work since Friday afternoon. It was publicly listed on the notice paper on Monday.

I feel that, in good conscious, as someone who has committed to my constituents to be guided by evidence, I have simply not had enough time to evaluate the merits and risks of these proposals and come to a conclusion about what is best for my youngest constituents. We have done our best attempt at due diligence since Friday. We have

reached out to people in the sector—educators, parents and providers—and the common thread that we are hearing from people is that they have not had enough time to go through these calls. They share our nervousness that, if done poorly, this only exacerbates the challenges for people trying their best to improve children's safety and wellbeing.

With their blessing, I would like to share the words of ACT Parents. I acknowledge them in the chamber today. They said:

> ACT Parents supports child safety reform in early childhood education and care, but we are concerned about rhetoric that leans on parents' fear rather than evidence based, carefully designed reform. Many of the reforms now being discussed were already underway or in development before the section 213A application, which diverted resources and likely delayed implementation. We are not minimising the seriousness of incidents. Our focus is on effective, sustainable reforms that strengthen oversight and encourage reporting. Stakeholders have an important role in the development of these reforms. ACT Parents has trust and confidence in CECA as the regulator, and we want MLAs to support rebuilding community trust in CECA, because reporting concerns early is one of the strongest child-safety mechanisms we have.

This is consistent with a lot of feedback that we have been receiving from the sector and the community. So, if all the people most engaged and most committed to the wellbeing of children are telling us to put the brakes on, who actually benefits from rushing into this?

I will be quite honest: we quite like some of these calls in theory. Heck, the Greens have been calling for the regulator to be better funded for a while and we have been strong advocates for getting Working with Vulnerable People systems communicating with each other so that bad actors do not slip through the cracks.

Additionally, some of the points speak to reforms that are due to be implemented in, I believe, as soon as three days on a national level. Specifically, National Law will change to require all people involved in the operation and delivery of an education and care service to ensure that the safety, rights and best interests of children are paramount considerations in all of their decisions and actions. That resembles this motion's call for the ACT's early childhood strategy to be updated with a renewed focus on child safety and safeguarding measures. It is something we support and want to see meaningfully implemented in our territory.

Philosophically, I am also quite a fan of land use reforms. We have been hearing concerns from the community that a lot of local providers, and particularly local not-for-profits embedded in the community, are being outcompeted by new for-profit developments, because the building of early learning centres has proven to be quite lucrative. We have been doing our own background research on this. It is why, as part of my and Ms Clay's motion back in September last year to save SDN Bluebell, we asked the government to assess the demand and supply of ECEC across the ACT. I believe that work is coming back to the Assembly in March. I hope it is. It is certainly not that far away.

But there are other calls that have given us and the advocates, educators and parents

that we have been talking to some serious concerns. Some people are worried about simply ending the practice of service approval transfers without first conducting proper analysis to understand the intricacies of what is not working. From my understanding, there are aspects of service approval transfers which enable important continuity for children and families when a provider switches over, but, as Mr Emerson pointed out, on the other hand there are, evidently, aspects of the service approval transfer system which are outdated and seriously need to be changed, such as new providers inheriting a previous provider's rating or provider number. This is why we want the reform to be properly examined and then acted on.

Given the way some identifiable information was released by accident during the previous OPD before it had to be rectified, many people are worried that a public register of compliance enforcement actions, if handled poorly or in haste, could result in more of the grief and stress that educators and families are currently experiencing.

We also want to make sure that we are fostering a strong reporting culture within the sector so that children, families and educators feel able and supported to speak up about incidents. This is how reporting becomes prevention. We owe it to them to proceed carefully and to improve transparency in a way that will work in the ACT for the long term and have the effect that we want it to have.

These concerns from our stakeholders do not question the need for reform by any stretch of the imagination; they just want them to be implemented carefully and through a well-considered process that everyone has had access to. I feel that to uncritically wave through the full list of this motion's calls—because we have not had the chance to check the implications and listen to the people they affect—would be a failure to exercise our due diligence as parliamentarians. It is so hard. I genuinely think we all want to do the right thing here.

I do not know if I have this right, but the best way I found, under time pressure, is to honour the intent of the motion and the list of potential reforms, including quite worthy ones provided by Mr Emerson, and to change the motion so that it gives the government time to consult with parents, educators, kids, and other experts in the community to understand the full implications of the actions before us.

I move the following amendments, circulated in my name, together:

1. In paragraph (3), after "calls on the Government to", insert: "evaluate the following list of proposed reforms, consult with the sector, families and experts and implement these actions if they are found to be positive for ECEC in the ACT on balance:".
2. Omit paragraph (3)(c), substitute:

   "(c) establish the appropriate mechanism to enforce fines against ECEC providers for egregious and repeated child safety breaches, in accordance with National Law;".
3. In paragraph (3)(f), omit "use", substitute: "insufficiency".

Leave granted.

MISS NUTTALL: I thank Mr Emerson, Ms Lee, Minister Berry, Ms Carrick and their respective teams for their really constructive engagement through this process. I hope these amendments land somewhere really positive for the community that we all seek to serve and represent.

These amendments change the wording preceding the list of proposed reforms. Rather than calling on government to uncritically implement all the reforms, this amendment would instead ask government to evaluate these proposed reforms in consultation with the sector, families and experts, and implement them if they will have a net positive effect. It is still asking the government to implement these reforms if they are the right thing to do, but, as genuinely great as Mr Emerson is, he would probably be the first to admit that he himself is not the entire early childhood education and care sector, and that the early childhood education and care sector needs input if we are going to make these massive strides, and, importantly, make them well.

I am going to use the words of my wonderful New South Wales Greens colleague Abigail Boyd MLC, who said the following in her submission to the ongoing federal inquiry into quality and safety of Australia's early childhood education and care system. She said:

> All proposals for reform must be well-ventilated with the sector to avoid unintended consequences.
>
> The perspectives and insights of workers is critical as the genuine experts and most passionate advocates for the profession, and their guidance must be central to any proposed reforms. Without a thorough understanding of what is happening on the ground—understanding where the pressures are on workers and what is driving provider behaviour, as well as understanding the day-to-day practicalities—there is a real risk of implementing reforms that will have a net negative result on the sector in the long-term.

This is the core point: we can and we must do bold reform, but we must do it in collaboration with the people who make the whole thing work—the educators and parents, those whose whole hearts are in the sector because they care about their children.

My amendments also rephrase 3(c) to clarify its intention. As I understand it, this reform is not calling for the implementation of a new fine; it is actually calling on the government to have the infrastructure to enforce the fines that already exist under National Law. I will once again use Ms Boyd's words, because they are really good. She said:

> We should not be accepting a situation where services can continue to cut corners, but when we catch them they have to pay a fine. We should be demanding a sector where standards of the highest quality are the norm so families, carers and children can have the confidence that no matter which service they use there will be safety, dignity and respect for children and workers.

Finally, just because I am finickity, these amendments seek to change one word in call 3(f), from the "use" of under-the-roof ratios to the "insufficiency" of under-the-roof ratios, because, if there is one pretty universal bit of feedback we get, it is that

under-the-roof ratios are not, in fact, sufficient when it comes to safe supervision. If we want educators to feel empowered and supported, we need to make sure we are meeting the ratio in the room.

Where does that leave us? I hope members will take these amendments as a well-intentioned way forward and that they do not shy away from bold reform but honour the expertise of the people who have built their careers in this space. I fully believe that the ACT has everything it needs to be a leader in the early childhood education and care space and that we do not and should not need to compromise our kids' education and wellbeing. We have great kids. Our gorgeous youngest constituents, whom we are all ultimately doing this work for, are—and it bears repeating—technically our bosses. We have incredibly engaged and knowledgeable parents who want to ensure the safety of not just their kids but also all kids and recognise that we must make the whole system thrive to do so. We have wonderful educators who have built their careers around building young minds and continue to show up, even in very tough times like these. If anyone can do it, it is us.

MS BERRY (Ginninderra—Deputy Chief Minister, Minister for Education and Early Childhood, Minister for Homes, Homelessness and New Suburbs and Minister for Sport and Recreation) (3.36): I welcome Mr Emerson's motion in the Assembly today and thank Mr Emerson and other members in this place for their constructive discussions leading up to this debate about reforms to early childhood education policy. I welcome constructive policy debate on how we can improve early childhood education and care in the ACT and how we can strengthen early childhood education, support educators and, ultimately, ensure better outcomes for children. That is, after all, what it is all about. It is why I got into politics in the first place.

The government will support the Greens' amendment to Mr Emerson's motion. For decades, early childhood educators have been calling for a bunch of reforms which includes better pay and conditions and ultimately improves conditions and outcomes for children. I know many of these sit within the federal space. However, I have always advocated for action on their behalf in these areas. This is a sector that takes its safeguarding responsibility seriously, and it is committed to ensuring that all children have access to safe, high-quality early childhood education and care. That is why the ACT government has backed early childhood educators from the get-go and has been implementing reforms for years, including through Set up for Success, which is the ACT's early childhood strategy—the first strategy of its kind.

I know there is more work to be done. I am glad that members in this place are now largely united in our intent to improve outcomes for children, educators and families. Last week, I wrote to Mr Emerson to provide an update on the work already in train nationally and locally to improve quality and child safety in the early childhood education and care sector, along with additional information. I did that because I want to re-assure members that many of the calls in this motion are, in fact, already underway.

Mr Emerson has called for an update to Set up for Success, the ACT's early childhood strategy, with a renewed focus on children's safety. When Set up for Success was first developed, it reflected the well-evidenced position that child safety is fundamental to quality. You cannot have one without the other. This is well understood within the

sector. Set up for Success strengthens children's wellbeing, inclusion and equitable development and promotes safety and supportive environments through strong cross-sector partnerships and professional, well-supported workforces. Each phase of Set up for Success is guided by an implementation plan which is informed by evaluation of the previous phases.

As the strategy is implemented, initiatives in each phase are refined to reflect the evolving needs of the sector, families and the community. Evaluation of phase 2 is now underway, alongside the development of phase 3 of the implementation plan, and I can assure you that the plan will continue to reflect the current context and priorities.

Since August last year, the ACT has implemented a no card, no start approach to Working with Vulnerable People cards. From Friday this week, the rest of the country will catch up when the offence to support no card, no start kicks in under the national regulations. The new National Early Childhood Worker Register will also enhance visibility of Working with Vulnerable People compliance by requiring providers to record prescribed information to the register and track registration expiry.

Regarding fines, the ACT's regulations currently do not permit infringement notices under National Law, but we are looking into how we could make an infringement notice scheme work here in Canberra. The Education Directorate has already commenced design and development of a new CECA website to make it easier for families to find information about compliance and enforcement actions. This is in addition to national changes made to enhance transparency of information that is available to families via the StartingBlocks website.

Under Set up for Success, the ACT government has delivered the first Valuing Educators, Values Children Workforce Strategy for the early childhood education sector. A range of professional development and supports have been delivered under this strategy, including coaching, mentoring guidelines and professional learning in trauma-informed practice, play based learning, and culturally responsive practice. A comprehensive workforce census has been undertaken to inform future workforce supports. I will be updating the Assembly on the outcomes of this important work later this week.

Last week, education ministers agreed to strengthen the definition and practice of adequate supervision in early childhood services. As I have already said in this chamber and publicly, if the national work does not go far enough, we will do a further review of ratios for the ACT. The ACT government has long championed non-profit provision of early learning, well before the current national status on child safety. Set up for Success includes specific reference to ensuring that services in the ACT prioritise child outcomes over profits.

I remain committed to supporting not-for-profit organisations. Consistent with this, the ACT government is committed to appointing not-for-profit providers to operate all new early learning services co-located with public primary schools, as well as delivering the targeted three-year-old initiative program for children experiencing vulnerability or disadvantage. Members will remember that the ACT government is working on a demand and supply analysis of the ACT's early childhood sector, as mentioned by Miss Nuttall, from Ms Clay and Miss Nuttall's motion in September last year, and

I look forward to reporting back on that motion during the March double sitting.

These are just a handful of reforms that I am implementing here in the ACT alongside the significant number of reforms occurring nationally. Some of the ideas in Mr Emerson's motion would have had unintended consequences if implemented as written. They require further investigation. While I do not necessarily argue with their intent, the breadth of reforms must be balanced by the need to implement change in a sequenced and supported way. That is why Labor will be supporting Miss Nuttall's amendment. It will enable detailed policy work to be done by taking on broad evidence, consulting with the entire sector and carefully applying reform to the ACT's specific context.

Again, I thank Mr Emerson and his team and other members in this place for their support for all of the early childhood education and care reforms. Importantly, I thank all of the children, families and educators who have guided me through all of the reform that we have achieved so far in the ACT, including through the extensive consultations for the early childhood strategy; and, more recently, everyone who took time out of their busy lives to attend and contribute to the important discussions that I have been hosting online and in person over the last six months or so. These discussions will continue. I encourage people to get along to them and provide feedback on what else we can provide to the sector to support them. I also thank early childhood education providers, experts, representatives and advocates for the generosity of their advice to me and their solidarity for the sector.

Also, I give a shout-out to Veronica Elliott from ACT Parents, who is in the chamber today. Everyone knows that Veronica is a very fierce advocate for public education, including early childhood education. She has been unwavering in her advocacy for parents and children in the ACT, and for that I am personally grateful. I acknowledge that ACT Parents are holding an online forum for parents tonight. Details of that are on my Facebook page or on ACT Parents' Facebook page. I encourage parents to get along to that tonight.

Finally, I look forward to updating the Assembly as I progress the government's reforms and build on the strength of a sector already deeply committed to child safety and safeguarding the early childhood system for children.

MS CARRICK (Murrumbidgee) (3.44): I thank Mr Emerson for bringing this motion forward, and I also thank the Greens for their amendments which make the proposal more practical by emphasising evaluation, consultation and implementation networks. I start by acknowledging the many diligent and professional early childhood educators in the ACT who are keeping children safe and helping them learn and thrive. They deserve greater support and recognition.

But we cannot ignore what has been exposed through the release of thousands of documents and the stories that have followed, because, when safeguarding fails, the consequences are serious and public trust is damaged. This is why the focus must be on lifting standards across the system, not just reacting case by case. We need to support a clear framework for what good oversight looks like: workforce capability, and timely quality assessment and re-assessment. We know that quality early childhood education is one of the strongest foundations for children's development, especially for those

experiencing vulnerability.

I support the direction of reforms that strengthen transparency and enforcement, including a simple, accessible and reliable way to verify Working with Vulnerable People registrations so that services can confirm clearances quickly and confidently. Clear public information for families, such as a register of serious compliance and enforcement action, helps families make informed choices, builds trust in the regulator, and creates a real deterrent by rewarding good providers and exposing repeat offenders. We also need to support increasing resourcing for regulators, because stronger oversight only works if the regulator has the staff and capacity to do timely monitoring, investigations and follow-up.

I also strongly support land use settings that back locally run, not-for-profit services, where it strengthens access and stability. We must continue to support co-location with ACT public schools, because families need quality child care close to home. Finally, the government must ensure consultation is genuine and that policy coordination across directorates is strong so that workforce and planning reforms line up and deliver meaningful change on the ground.

MS LEE (Kurrajong) (3.47): I thank Mr Emerson for bringing this motion to the chamber. I do not think anyone in this place would disagree that the care and safety of our children is one of the most important things that we all have a responsibility for and must prioritise. Back in December, when the documents were released as a result of Mr Emerson's motion under standing order 213A, as a parent of two young children—one still in an early childhood education centre—I had a personal interest in what the documents might contain, as I am sure many parents did. I acknowledge the families that have had incredibly traumatic experiences that no-one should have to face. But I am concerned about the impact the motion may have on educators and families and the unintended consequences that may flow, no matter how careful and well-intended the motion is.

Many in the sector raised with me their concerns that the public release of the documents may discourage some educators and parents from reporting, for fear of having their personal circumstances, albeit with their individual data redacted, made available to the general public. I heard feedback from some parents who were genuinely concerned that just the release of the nature of their complaint could potentially be identifiable and what that might mean for their privacy, their child's safety, and their relationship with educators who are charged with looking after their children. This remains a real concern.

The release of the documents is not what this motion is about. This motion is about a set of measures that Mr Emerson considers will strengthen our current system here in the ACT. To give Mr Emerson and his hardworking staff credit, there is a lot in the motion. I am not in a position to go through all of the measures individually, because, as Miss Nuttall has pointed out, we have only had the motion since Friday afternoon and, it being Tuesday, we have not had the chance to work through all of them. So please do not take this to mean that the motion contains an exclusive list of measures that are incredibly important and valid.

The ACT government needs to work faster to establish an online portal to verify

Working with Vulnerable People card numbers. It is hard for anyone to understand why other jurisdictions can manage to do this but the ACT government cannot. The government must make this a priority. Equally, it needs to ensure that the mechanisms are in place, either through legislative reform or regulation, to ensure that infringement notices can be levied against providers for egregious and repeated breaches. The ACT government has had enough time. Let's just get it done. And it needs to ensure the regulator is adequately resourced and able to do the work that we, as Canberrans, expect it to do.

However, while we know that the intent of Mr Emerson's motion is around ensuring that we have the best and safest early childhood education sector we can have, we also have some concerns with certain aspects of the motion. As I mentioned, we have had the motion only since Friday afternoon and, whilst I and my office immediately got to work trying to contact some of stakeholders to get their feedback, the stakeholders we managed to get in touch with expressed concern that there was not enough time to give full and detailed responses to each of the points contained in the motion. Some expressed concern that it seemed a little rushed and it should have been done in consultation with all key stakeholders in the sector. Specifically, our concerns relate to section 3(h), around land use reforms. We heard some feedback from stakeholders who hold genuine concerns about a small number of providers who abuse what is considered to be a lack of regulation around land use, with the specific aim of driving out some smaller centres from good locations. We heard those concerns raised by both Mr Emerson and Miss Nuttall.

We are concerned that the way 3(h) is written in this motion may have the unintended consequence of limiting choice for families and that it risks almost pitting the not-for-profit sector against other providers. That is not good for families, educators or our city. Choice is key to when it comes to meeting the needs of Canberra families. Whilst we acknowledge that there are issues around competition between the different providers, we do not consider that the measures outlined in 3(h), as it currently stands about planning reforms, are the answer, and certainly not without further and thorough consideration. As Miss Nuttall and Ms Berry acknowledged, there is some work underway on this point, and the minister is due to report back to the Assembly in the March sitting period.

The other clause we have a particular issue with is 3(i), which states:

> explore options to cap centres' surplus revenue to ensure sufficient investment back into service quality and the workforce …

Let's be honest: no-one is arguing that providers should be investing back into their centre, particularly in relation to safety and adequately skilling their workforce. But to cap revenue on any centre, whether that be a not-for-profit centre or a profit centre, sets a dangerous precedent that we cannot support.

In addition, stakeholder feedback was clear and unequivocal. The proposal to cap surplus revenue did not receive support from any stakeholder that I spoke to. Every one of them expressed concern about this proposal. There were significant concerns that it would create administrative complexity and divert resources away from service delivery and fears that it could disincentivise innovation, expansion and long-term

investment. The proposal as outlined in 3(i) is, frankly, as one stakeholder put it to me, nonsensical. Accordingly, I will move amendments to Miss Nuttall's amendment to this motion.

In addition to deleting 3(i) in the original motion, I will propose a new 3(h) which states:

> explore land use reforms that support locally-run ECEC centres, including providing more long-term peppercorn leases and concessional land releases for not-for-profit centres …

I believe my amendment addresses the concerns that we have heard from some stakeholders about land use, without the significant concerns that I addressed about limiting choice, creating disincentives and pitting various sectors against each other.

Members will note that my amendment removes 3(i), as I have indicated, and that is in line with the significant concern that was raised with me by every stakeholder that I managed to get in touch with. I thank all stakeholders who engaged with me and my office. I acknowledge that we have not been able to do a fulsome feedback session, but some managed to get back to us in such a short amount of time.

I note that Executive Officer of ACT Parents, Veronica Elliott, is in the chamber with us. I wish to contribute some of the words from ACT Parents to this debate. I note that Miss Nuttall has already read out a short statement, but I have a fulsome one. I was paying attention and I think this is slightly different, so, with the indulgence of the Assembly, I will read this into the *Hansard* as a direct quote from ACT Parents. They said:

> ACT Parents knows many parents and carers have real concerns about the safety of their children in early childhood education and care. Much of the distress we are hearing is linked to the publication of regulatory documents under the section 213A process and the public rhetoric that has followed. ACT Parents is not minimising the seriousness of incidents, but we expect Members of the Legislative Assembly to speak and act responsibly, recognising that child safety relies on families and educators feeling confident to report concerns to the regulator. That confidence depends on public trust in CECA and in reporting pathways.
>
> This is also about how we talk about a sector made up predominantly of women, many of whom have been advocating for stronger safeguards for years. Good reform comes from respectful collaboration with those closest to the work, including the regulator, educators, providers, policy staff, academics, and parents and carers. Many reforms are already underway or in development, and they need time and proper consultation to get right. ACT Parents supports careful, evidence-based reform that is effective and sustainable, not rushed changes driven by political heat.

I thank ACT Parents for providing that contribution, and thank all of the stakeholders, including the ones that I have not had a chance to get in touch with yet, for the important work that they do in this sector.

As we all know, early childhood education and care play a vital role in our children's development. It gives our children the best start in life. It helps prepare our children for school and is pivotal in promoting healthy development, social skills and better long-

term educational outcomes. It increases workforce participation, especially for women, and gives families the flexibility they need in today's society.

I again thank Mr Emerson for bringing forward this motion. No-one has any doubt about his passion and commitment to working to ensure we have a system that is safe and meeting the needs of Canberra's families. We all share that goal, but we need to ensure that this is done in a measured, evidence based way that does not, even if they are unintended, impose unnecessary restrictions and regulation that will impact choice and the affordability and sustainability of the sector.

I move the following amendment to Miss Nuttall's amendment:

> Add:
>
> 4. Omit paragraphs (3)(h) and (i), substitute:
>
> "(h) explore land use reforms that support locally-run ECEC centres, including providing more long-term peppercorn leases and concessional land releases for not-for-profit centres;".

I commend my amendment to the chamber.

MS CASTLEY (Yerrabi) (3.58): I will speak to Ms Lee's amendment. I was not going to make a contribution to this debate, but I want to make a point about the specific call 3(i), which, as Ms Lee read out, calls on the ACT government to cap the surplus revenue generated by childcare centres in order to ensure sufficient investment back into service and quality of the workforce. Let us leave aside the issues with how exactly such a cap would work and who would determine what "sufficient investment" means or would be enforced, and focus on the core problem with this call.

I know not every member has experience working in or running a private business; so I will take the chamber through the basics. Every business invests in service quality and its workforce, whether it is maintaining or upgrading its facilities or investing in innovation, pay rises and bonuses, training or whatever else. These are all investments that businesses make in themselves, and every one of those has to be covered by business revenue. You can meet some expenses with capital or debt, but, ultimately, those also need to be covered with revenue or the business is unviable and fails.

Businesses receive revenue, they take away the immediate costs—the cost of inventory, wages and whatever else they incur day to day—and they retain some of their earnings so they can make those investments. That is how they ensure the business is not just viable today but viable in the future as well. But Mr Emerson's motion suggests that the government should cap their surplus revenue to fund investments in facilities and workforces. But, by capping a business's revenue, the business does not have the retained earnings it needs to fund those investments. This call is absurd, and I mean that in a very literal sense. It is a call that is illogical and meaningless. Of course, the Assembly should not support such a call.

But it is important for us as an Assembly to recognise that we do have a blind spot when it comes to business. Few members have run a business or genuinely understand business. That is not a criticism at all; it is a blind spot—one which means we must be

careful when dealing with matters that affect businesses to ensure that what they are trying to do is sensible and will have the desired effect. It means we need to consult with businesses and to listen carefully when they identify concerns with our proposals, even when we might not like what they have to say. Our business sector is too small, too fragile and too important to the people of Canberra for us to take for granted.

So my message to Mr Emerson and also to the government is that a little more humility and a little more engagement could go a long way. I support Ms Lee's amendment.

MR EMERSON (Kurrajong) (4.01): I want to take the opportunity to reflect on Ms Lee's remarks on the amendment before us and also Ms Castley's castigation. Speaking as someone who ran a small business right until the election—perhaps the most recent small-business owner in the Assembly—I am very well across how business operates and how businesses remain viable and become unviable.

Taking the cop that the measure proposed here to explore options to cap surplus revenues is absurd, to use Ms Castley's words, this was a measure put forward to me by Early Childhood Australia, so I will pass that on to them and see what their perspective is on her reflections. Frankly, I cannot say I am surprised that centres might be unhappy about this proposed measure. If it is only the centres that have been consulted by members who have a concern with this measure, of course it is unsurprising that that is the feedback you have received. The point to make here is that I am not opposed to markets.

Ms Lee: That is an assumption.

MR EMERSON: If that is an assumption, I am happy to have it corrected—and you will have another opportunity to speak. I am a supporter of markets. I am a supporter of competition. I think what we need to grapple with in the early childhood sector is the fact that the consumer of the product or service that is being delivered is not able to advocate for themselves. If I am running a business in another sector and I am running a poor-quality business, where standards are not up to scratch and you as the person paying for the service makes that clear—you give me a one-star review and you stop coming to my business—my business becomes unviable. In the early childhood sector, children cannot advocate for themselves, especially very young children.

What I have heard directly from families—and the stakeholder consultation is important, and I will come to that a little later—is that there are parts of the sector where they do not feel their children have been looked after, and they have been horrified knowing they cannot advocate for their children, because their children cannot advocate for themselves. It is a crucial distinction. There are industries and sectors that we regulate for these reasons, because there are negative abnormalities and so on that cannot be captured by a market economy. That is what we are talking about here.

I understand, of course, that there is a philosophical difference. Ms Lee indicated that she probably would not support these measures. I understand that and I understand the amendment, which I will be opposing, because I would like to see this explored. But I think to say that this is absurd and that this should not be considered overlooks the intricacies of the particular sector that we are talking about, which is one where the recipient of the service often cannot advocate for themselves at all. The terror that we

hear is from families who have dropped their child off in the morning, come home and not known what has happened during the day. That is what we are talking about in this motion. I think those remarks from Ms Castley, as passionate as they were—and I am supportive of small business, as she is—miss that dynamic.

MISS NUTTALL (Brindabella) (4.04): I rise to speak to Ms Lee's amendment to my amendments. I really appreciate Ms Lee putting forward this amendment and believe that it is well intentioned. I would also really like to thank her and her team for their constructive engagement through the process. As it stands, the Greens will not be able to support this amendment because we think that, if we are directing government to evaluate the effectiveness of these ideas, we should include the largely more unconventional ideas in that mix too. There are certainly no hard feelings on the matter; I just believe it comes down to a difference in political opinion.

On land use reforms, like I said previously, we have been looking into this point already. We have spoken to some really trusted local providers with all the hallmarks of a successful centre—great staff retention, strong relationships with parents and a genuine focus on the kids, who are the point of early childhood education and care—and we have heard that these brilliant centres will still lose people when a new and often for-profit centre with pretty swanky new facilities is built nearby, a centre that might attract new parents and kids by virtue of modern facilities, because it is genuinely really difficult to gauge a centre's good practice from a single walk-through. I do not think we can afford to shy away from naming the phenomenon that we are hearing from the sector, so I think it should at least remain in the list of things we examine.

On capping the profits of centres, philosophically, I think we need to refer to the fundamental principle that our education should not be secondary to a profit motive. We see a higher correlation between lower quality and for-profit centres. You can sort of reason through that part of this is because, when you introduce an onus to make money, it incentivises providers to minimise costs like staffing numbers and wages rather than reinvesting the money in the people who make or break the safety in the centre. That will not be universal across for-profit centres. There are a lot of passionate educators in the for-profit space, but it is about the challenge of that for-profit motive. I would add that we have heard today from Greens senator Steph Hodgins-May that, under questioning in Senate inquiry hearings, the CEO of G8 makes $32,088 per week; whereas, a 20-year-old cert III educator in their first year at G8 would only earn about $1,068 in the same time period. The CEO earns about 30 times more that. That is the kind of thing we are talking about.

Of course, there are caveats. We are in a system that forces some not-for-profit providers to rely on revenue from early childhood education and care to cross-subsidise other early learning centres and other essential community services. These are services that support Canberra's most vulnerable and which the government actually relies on to provide the community with critical services. They need proper funding in their own right. It is my sincere hope that, if government were to look into this proposed reform, they would set the goal of creating the conditions for high-quality, not-for-profit early childhood education and care across the board and for other essential community services that can stand in their own right. At the same time, I also hear concerns about the fact that we need to ensure that, if any reforms to surplus revenue were to go ahead, we cannot hamstring organisations' abilities to re-invest in their centres as a priority.

That is a really important caveat.

All this comes down to: let's create the space to ask the people who are affected; let's ventilate these proposals with the sector; and let's give ourselves a better ability to rule them in or out based on a strong body of evidence.

Question put:

> That **Ms Lee's** amendment to **Miss Nuttall's** amendments to Mr Emerson's motion be agreed to.

The Assembly voted—

Ayes 9		Noes 16	
Chiaka Barry	Mark Parton	Andrew Barr	Suzanne Orr
Peter Cain		Yvette Berry	Marisa Paterson
Leanne Castley		Andrew Braddock	Michael Pettersson
Ed Cocks		Fiona Carrick	Shane Rattenbury
Jeremy Hanson		Tara Cheyne	Chris Steel
Elizabeth Lee		Jo Clay	Rachel Stephen-Smith
James Milligan		Thomas Emerson	Caitlin Tough
Deborah Morris		Laura Nuttall	Taimus Werner-Gibbings

Question resolved in the negative.

Ms Lee's amendment to **Miss Nuttall's** amendments negatived.

MR DEPUTY SPEAKER: The question is that Miss Nuttall's amendments be agreed to.

MR EMERSON (Kurrajong) (4.12), in reply: I want to take the opportunity to respond to remarks from different members in relation to the motion. I thank them for their engagement since the motion was provided to them on Friday. If I had been able to provide it sooner, I certainly would have. I note that many of the motions on the notice paper were not provided to anyone on Friday. I did my best to give advance notice. Frankly, overall, I am happy with where we are landing, based on the amendments that have been brought forward.

In response to specific remarks, I thank Miss Nuttall for her reflections. She indicated that the Greens are supportive of certain measures in the motion. I had expressed a desire that, if there were measures that could be supported today, to not just explore or give consideration to but also support with the unanimous vote of the Assembly, that would have been my preference. I am a little bit disappointed that we did not manage that, particularly in relation to some of what I would describe as very uncontroversial measures that have already been introduced in other jurisdictions. Miss Nuttall also noted that some measures reflect work that is already underway, as did Ms Berry. Perhaps those could have been captured in the calls that we are all supporting unanimously today, rather than seeking further exploration of.

I acknowledge Miss Nuttall's concerns regarding privacy in relation to a public register

of compliance notices, as reflected in stakeholder conversations that she has had. I would note, though, that there are at least four other states that are already doing this. The federal government is also doing it, in another way. So we have safeguards in place in multiple other jurisdictions. I think this is something we can do in the ACT. I am encouraged by the minister's remarks indicating that CECA's website is being updated, and I hope this is one of the capabilities that will be included as part of that or another update in the near future.

Of course, a lot of the debate has reflected on the time to consult and how committed everyone is to consulting, which is fantastic to hear. This is something, as I have indicated in my remarks, I have been consulting on since before the motion to release the documents last June. I hope that other members have done the same. Given the extent to which we have spoken about consultation, I expect to see some incredibly far-reaching, broad and deep consultation occur on the back of this debate.

My request would be that, as part of that consultation, we ensure that we are engaging directly with individual families and individual centres. I have spoken with stakeholder groups and with representative bodies. Of course, it is also important that we speak with individuals to hear their experiences and understand how those experiences can reveal systemic gaps that need to be addressed. Sometimes we get stuck in the weeds, or maybe stuck above the weeds somehow, speaking up at the policy level and not engaging with the individual experience. Visiting centres, as I have been doing, and speaking with individual parents and carers about their experience and speaking with educators who have concerns, and have maybe left the sector because of those concerns, is absolutely critical. I hope that that, if it is not already happening, will continue happening across the Assembly.

I thank Minister Berry for her letter. It was very welcomed, and I also welcome her remarks today about the active government work that is relevant to some elements of this motion. I very much look forward to seeing the government's response to this motion, seeing the further consultation and exploration, and reporting back on what will be implemented. I trust that, based on the conversations I have had, many of the elements, if not all, in this motion will be implemented in due course by the government. Ms Carrick reflected on the document release, as did Ms Lee in her remarks. I wonder how many members have read the documents. We get so many documents tabled in this place, and I do not read them all.

Mr Rattenbury: What?

MR EMERSON: Not all of them but most of them, Mr Rattenbury. I think it is worth looking at your local centre and looking at some of the documents that have been released. There is a lot of criticism around document release in this place. I know it is hard to get through all the reading that we have to get through, but it is worth doing. Look at your centre—if you have children in a centre—and other local providers. It is quite interesting to read. The direct feedback I have received from families regarding the document release—and I do not want to focus on it too much—has been overwhelmingly positive. It is the one issue about which I have had parents stopping me in the street to say, "Thank you for pushing for those documents to be released." That is not something that I want to do again. It is why I am pushing for this public register of compliance action notices, appropriately de-identified, as has happened in

other jurisdictions, so that this is not something that we need to revisit in this place.

We heard that this push in today's motion may contain elements of preying on parents' fears. I will take the feedback on board, but I do not think ignoring their fears is a strategy either. Ignoring their fears is not a strategy. That seems to have been the strategy to date. We cannot just put our head in the sand and pretend that these are not issues.

Again, I thank members for their remarks and their positive contributions. We have a slight softening of the calls and the commitments made today, but I am really excited to see this package of reforms considered and hopefully delivered by the ACT government in a timely way.

The fact is that we have a sector currently that has allowed some bad actors and providers with skewed priorities to enter and operate in early childhood in the ACT. They are in the minority, to be sure, but they are there and we cannot just pretend that they are not. As a consequence of the system that we have, passionate educators have been burnt out and have left the workforce. We see that the workforce in the ACT, based on the Report on Government Services data, has become less qualified progressively over the years. That is a factor that is certainly at play here. Small locally-run centres with a track record of putting our children first are being swallowed up by large conglomerate providers who may have other priorities. We need to provide far greater support to elevate the many educators and centres that are delivering excellent education and care in our community. We also need to clamp down, with real consequences for the providers that are not.

I think we all agree—and this is reflected in the debate today—that every child deserves to grow up in a community that puts what is best for them first. Every parent and carer should feel confident that, no matter where they drop their child off in the morning—no matter which centre—their safety, wellbeing and growth will be prioritised ahead of anything else. Every educator should be valued and empowered through sufficient resourcing, support and training to uphold that expectation. It is towards these aims that this motion today is directed.

On behalf of the many Canberrans who contributed to the motion's development, I thank the Assembly for supporting its passage in a slightly amended form today.

Miss Nuttall's amendments agreed to.

Original question, as amended, resolved in the affirmative.

Health—nurse-led walk-in clinics

MR PARTON (Brindabella—Leader of the Opposition) (4.19): I move:

That this Assembly:

(1) notes:

(a) the important role played by Canberra Health Services Nurse-led Walk-in Centres since their establishment in May 2010 in providing free,

accessible primary care to Canberrans;

(b) the growing demand for timely, community-based services across Canberra;

(c) continuing concerns regarding emergency department wait times and pressures on the ACT public hospital system;

(d) that the Nurse-led Walk-in Centres now form a significant component of the ACT's primary healthcare landscape;

(e) concerns raised by sections of the general practice community regarding the impact of Walk-in Centres on local general practice viability, workforce distribution and continuity of care; and

(f) the importance of ensuring patient safety, clinical governance, workforce sustainability and responsible stewardship of public funds across the ACT health system;

(2) further notes:

(a) the critical contribution of nurses and nurse practitioners in the ACT health system;

(b) that Walk-in Centres must operate as a complement to, and not a substitute for, sustainable community-based general practice; and

(c) that any future expansion of Walk-in Centres should be supported by clear evidence demonstrating clinical effectiveness, measurable improvements in patient access and value for taxpayers; and

(3) calls on the Government to:

(a) commission an independent review of Nurse-led Walk-in Centres to assess and provide recommendations to enhance:

(i) clinical outcomes and patient safety;

(ii) cost-effectiveness and value for money;

(iii) potential negative impacts on local general practice viability and continuity of care including data outlining onward care referrals to hospital, general practitioners (GPs) or other providers;

(iv) workforce sustainability and recruitment implications;

(v) integration with broader primary care services; and

(vi) access, waiting times and the patient experience;

I took over the health portfolio in December last year. Since then, I have had a series of meetings with stakeholders who have raised various issues. The single issue that has been raised by just about every one of those stakeholders is the lack of a meaningful review into the nurse-led walk-in centre model that we run here in the ACT, seemingly very successfully.

I understand that there is suspicion from the government whenever we talk about this matter, so much so that Ms Orr passed a motion in this space last term calling for an agreement that there would not be any politically motivated motions calling for any reviews into nurse-led walk-in centres. I recall Ms Castley speaking very strongly against the motion, but I gather it was passed in the context of the power-sharing agreement between Labor and the Greens. Weren't they the days? I would say that this

motion does not fall into the parameters debated by Ms Orr in the last term, because it is definitely not politically motivated.

I love the nurse-led walk-in centres. I can remember visiting the nurse-led walk-in centre in Tuggeranong after treading on a sea urchin—something I would not recommend—on the South Coast earlier in the day. If you are minded to say, "I wonder what it feels like," do not go there—no, no, no! I trod on a sea urchin and I cannot repeat here in the chamber what I said, because you, Mr Deputy Speaker, would rule it as extremely unparliamentary. We tried to remove all the bits—because they just break up into all these bits. I can remember visiting the nurse-led walk-in centre in Tuggeranong later that day, after we came back to Canberra, because there were little bits of sea urchin embedded in my foot, and that issue was expertly dealt with by the nurse practitioners. That is the sort of feedback you get when you talk to anyone about the nurse-led walk-in centres. This motion does not seek to impose any negativity upon the NLWICs. Do we use that acronym?

Ms Stephen-Smith: No; WICs.

MR PARTON: WICs? Come on; these are nurse-led as well and I want to put that in there, because I think it is important. The motion simply seeks to allow me, everyone on this side of the chamber, everyone in the middle and everyone out there to know exactly how their money is being spent. The health minister assures us that we are getting great bang for our buck. So let's get proof of this so that we can all see exactly what is being provided and we can get on board rolling out six more of them.

It has been 15 years and four ACT elections since the ACT government last undertook a comprehensive review of these centres, and we think that is too long. The most recent review was completed in 2011, a year after the model was first introduced. Since then, the city has changed dramatically. Our health system has become more complex, community needs have evolved and pressures on emergency departments have intensified, but the government has not updated its understanding of how these five centres are performing—at least at the level that we are indicating in this motion—so we do not know exactly where they are working well and where improvements may be needed.

The Canberra Liberals absolutely support nurse-led walk-in centres. We believe they provide an important service for many Canberrans, and we recognise the professionalism, dedication and skill of the nurses and nurse practitioners who staff them. If we go through this review and it is justified, we would support their expansion, where it is evidence based and where it strengthens the broader health system rather than undermines it.

Any responsible government must periodically review its services to ensure they remain best practice and fit for purpose—and we do not think that has occurred at the level that is required. When a model has not been independently assessed for a decade and a half, the Assembly has a responsibility to act. This motion sets out a balanced, constructive and transparent approach. It acknowledges the essential role these centres have played since their establishment in 2010, providing free and accessible primary care to Canberrans; the increasing demand for timely, community based health services; the continuing pressures on our hospital system and emergency departments; the concerns

expressed by parts of the general practice community, particularly around impacts on local GP viability, workforce distribution and continuity of care; and the importance of ensuring strong clinical governance, patient safety and responsible stewardship of public funds.

Importantly, the motion also recognises that walk-in centres should complement and not replace sustainable community based general practice. Both must thrive if Canberra's health system is to meet demand, ensure continuity of care and maintain quality across all levels of service. The motion calls for something simple, reasonable and overdue: an independent review that would examine clinical outcomes and patient safety; cost-effectiveness and value for money; impacts on local general practices and continuity of care; sustainability of the workforce; integration with broader primary care services; and access, waiting times and patient experience. It also requires the government to consult meaningfully with GPs, nurses, and allied health and professional bodies, ensuring that everyone with a stake in our primary care system has a voice in shaping its future. Critically, it sets a clear timeframe. The government must report back to this Assembly within six months. The motion says "six months", but I gather we are going to have a conversation about that.

This motion is not ideological. It is not oppositional. It is responsible. It is what good governance looks like. If the walk-in centre model—the WIC—is working well, the review will confirm that. If there are areas where improvements can be made, the review will identify them. If there are unintended impacts on general practice or the broader health system, we will finally have the data to act on. After 15 years without scrutiny, we think this is the right time and the right way to ensure that nurse-led walk-in centres continue to serve Canberrans effectively, safely and sustainably.

I commend the motion to the Assembly.

MS STEPHEN-SMITH (Kurrajong—Minister for Health, Minister for Mental Health, Minister for Finance and Minister for the Public Service) (4.26): I move:

> In paragraph (3)(c), omit "six", substitute: "12".

I thank Mr Parton for bringing this motion to the Assembly. It is timely because it coincides with the relatively recent release of the *Evaluation of the Medicare Urgent Care Clinics: interim evaluation report 2*. That is a report undertaken by Nous Group for the Department of Health, Disability and Ageing. The context for that is important because Canberra's walk-in centres—our five nurse-led walk-in centres that deliver fabulous care under the leadership of our advanced practice nurses and nurse practitioners—are now part of the Medicare Urgent Care Clinic network.

Nous has been commissioned by the commonwealth government to undertake a three-year evaluation of the urgent care clinics, including the walk-in centre Medicare Urgent Care Clinics in the ACT. There is now an additional Medicare Urgent Care Clinic, GP-led, in the ACT that recently opened in Woden, giving Canberrans another choice. One of the findings of the Nous review is that there is a level of consumer confusion about where to access care when they need urgent care, particularly for minor injuries and illness, because our walk-in centres and the Medicare Urgent Care Clinics are part of a broader network. The Nous review actually encourages governments to undertake work

in relation to increasing consumer understanding and navigability of the system, specifically saying:

> There is opportunity for ongoing locally led communications to the community about the spectrum of health services available, including when to attend a Medicare UCC and the role of healthdirect, to support patients navigating the complex and varied urgent care landscape.

I am pleased to say that the ACT government has been undertaking exactly such engagement with the community to improve community understanding of what services are available so that they can access the right care in the right place at the right time. Consumer awareness and Canberra community awareness of the fabulous services provided by our nurse-led walk-in centres is clearly growing. There were approximately 134,000 presentations at our walk-in centres in the financial year 2024-25. This represented an almost seven per cent—6.9 per cent—increase in the number of presentations from 2023-24, when there were just over 125,000 presentations.

It is regularly claimed that we do not provide data and information on the proportion of those presentations that were redirected to the emergency department or to general practice. The reality is that our quarterly performance report used to report that specifically—the proportion of presentations that were fully treated in the walk-in centre. I hope that, within the next few months, we will be able to report that again. We have started reporting walk-in centre presentations on the ACT health service data dashboard, but we have also regularly provided that information to the Assembly through motions like these.

I am very pleased to update that information to say, of the just over 133,700 presentations, almost 10,000, or 7.45 per cent, were redirected to the emergency department and about 7,800, or 5.8 per cent, were referred to a general practitioner. We are continuing to work to refine that data around "referred to a general practitioner" because, as you would understand, Mr Deputy Speaker, the people completing this information are human beings. In the past, there has been some inconsistency about whether people were referred to a general practitioner for their care in full, and not fully treated at the walk-in centre, or whether they were advised to follow up with their general practitioner as part of a coordinated, integrated care response.

Of course, our teams provide discharge information to GPs, where somebody has a GP. I looked at it this morning. I cannot remember the exact number, but I think around 85 per cent of people who presented to a walk-in centre have a GP recorded in the system, which is quite good but does not meet our target of 100 per cent. Lots of people in the ACT do not have a general practitioner, for a range of reasons.

Mr Parton started his speech by saying that there is suspicion in the ACT Labor Party when the Canberra Liberals start talking about walk-in centres. This suspicion is well-grounded because the Canberra Liberals have a long record of consistently belittling the work of advanced practice nurses and nurse practitioners in our walk-in centres.

Mr Parton: I will not stand for it.

MS STEPHEN-SMITH: I am pleased that Mr Parton has just said he will not stand

for it, and it is nice to hear him being complimentary of our nurses and nurse practitioners. This is certainly a turnaround for the Canberra Liberals. But we know that, for Liberals more broadly, we have heard many times that the Liberals are the best friend that Medicare has ever had, and then, when they get into government, it is cut, cut, cut, hold, hold, hold, freeze, freeze, freeze, and the Liberals are not the best friend of the public health system. So we will take with a grain of salt Mr Parton's positive comments and hope for the best.

Mr Parton also talked about costs. This is often part of the conversation about walk-in centres, particularly from general practice. I understand that there is a claim from some GP groups and advocates that goes back to the evaluation that Mr Parton talked about of the early iteration of walk-in centres. They use that data and claim we have never provided updated data in relation to costs, even though we have. I am very pleased to say—I think we did this the last time we debated this—that we have the average cost of a walk-in centre episode that was provided through the ACT submission to the National Hospital Cost Data Collection for 2023-24. This analysis was completed in July 2025 and input was provided. I think it was included in question on notice No 35 as well. This concluded that the average cost of a walk-in centre presentation was $165, which included $109 of direct costs and an additional $56 per episode for indirect and overhead costs.

I will go on to 2024-25. While we have not finalised the analysis for the financial year 2024-25—that work is underway—what we can say is that the average direct cost for an episode of care in 2024-25 was $115. That cost includes an estimated $28.90 that is contributed by the commonwealth government because our walk-in centres are part of the Medicare Urgent Care Clinic network. They were very well supported—and we were very pleased that they were supported—by the commonwealth government in the first rollout of Medicare Urgent Care Clinics. They recognised we have this great model.

We are spreading that commonwealth resource over all five of our nurse-led walk-in centres, at an average cost per presentation at just under $29, reducing the average cost to us to about $86, if you subtract $29 from $115, if my math is correct. Without the Chief Minister here, I have to hope for the best. I have to say, this compares to the average cost of a GP-led urgent care clinic, which is currently estimated by Nous to be somewhere between—and it depends on which part of the report you look at, but the summary uses the dollar figure of $236 per presentation. So we are talking about $115 in direct costs and, using last year's estimate, it will probably be around $60 in indirect costs—it might be less because we have had more presentations—versus $236.

Really importantly, general practice will often compare the cost of delivering service at a walk-in centre, which operates from 7.30 am to 10 pm, 365 days a year. They will compare that cost to the cost to the commonwealth government of a Medicare rebate for a standard consultation in a general practice—not the cost that the patient pays, not the up-front cost, but the cost to the commonwealth government of a standard consultation. This is not an accurate comparison. Indeed, it is not the intention of walk-in centres to replace general practice, displace general practice or, in fact, be part of the primary care system.

In looking at Mr Parton's motion, there is one thing that I would have changed if I had been rewriting it. I mean, it is mostly fine. We are not going to argue with it too much.

In the first paragraph, it says:

> … Nurse-led Walk-in Centres since their establishment in May 2010 in providing free, accessible primary care to Canberrans …

The initial nurse-led walk-in centres were in the emergency department. They are ED diversion. They are there for minor injuries and illness as a diversion from the emergency department.

What we have seen is that, as I talked about earlier, our walk-in centres are really popular, and that has resulted in a slightly longer wait time over the last year than we have seen previously. That is something we will look at, and it will be timely to look at this in the review as well. Data shows that people waited an average of 38 minutes to be seen in a walk-in centre over the recent period. I recognise that is an increase to the average waiting time that was previously seen at walk-in centres and does not meet the target of a less than 30-minute wait. It is roughly the same as the wait that you would expect in an emergency department for a category 4 or category 5 presentation.

Our performance across both emergency departments has significantly improved over recent years. If, as Nous has estimated, around half of the people who attended a walk-in centre had gone to the emergency department, those waiting times would have been much longer. We have seen evidence in our data, as I have talked about in this place many times before, that the establishment of walk-in centres, particularly when the network of five was established and people started to understand what they were for, has resulted in a reduction in the proportion of category 4 and category 5 presentations to our emergency departments, which is exactly what they were designed to do.

Yes, it is timely to do a review. My amendment seeks to extend the timeframe to report back from six months to 12 months, because the detailed evaluation that Nous is doing is due to be released in a final report in 2026. Being able to use the very detailed data and investigation they are doing and build on that is important. I am also aware that the Auditor-General has proposed walk-in centres be on the list of services audited by the ACT Audit Office in 2026-27, so there will be a need for a conversation with the Auditor-General about who does what. It is about seeking to reduce duplication of activity in a fiscally constrained environment. The Legislative Assembly keeps asking us to do more, and I am very keen to ensure that we do not spend ACT taxpayer money on duplicating work that is already paid for through the Audit Office or is already being undertaken by the commonwealth.

I commend my amendment to the Assembly.

MR RATTENBURY (Kurrajong) (4.41): The ACT Greens are keen supporters of our nurse-led walk-in centres. They are a uniquely Canberra reform—public, free and grounded in the expertise of highly skilled nurses and nurse practitioners. They have expanded access to care, reduced pressure on our emergency departments, and enabled nurses to work to their full scope of practice. That is something we strongly believe in.

These centres recognise what the evidence has long shown: nurses and nurse practitioners are highly trained clinicians who are capable of diagnosing and managing a wide range of conditions safely and effectively. Supporting nurse-led practice is not

just good workforce policy; it is also good patient care. It respects the skills of nurses, strengthens our health system and gives people timely treatment close to home.

The Greens also deeply value the fact that these services are free and geographically distributed across our city. In the middle of a cost-of-living crisis, that matters. When families are struggling with rent, groceries and power bills, the last thing they need is another out-of-pocket health expense. The nurse-led walk-in centres provide care without a bill at the end. For many Canberrans, that can be the difference between seeking care early and delaying it until it becomes more serious and, frankly, more costly for everybody.

In speaking to this motion, I want to be really clear that supporting a review is not a criticism of the model; it is an affirmation that this model matters, and it matters enough to get it right for the long term. As has been touched on already today, it has been well over a decade since the nurse-led walk-in centres were introduced. The only formal review occurred in the very early stages—if I remember correctly, 12 months after the commencement of the model. Since then, our health system has changed significantly. We have seen the emergence of the federally funded urgent-care clinics, which the minister spoke about, and they are operating with a mix of nurse practitioners and GPs. We have seen ongoing workforce pressures across primary care, and we have seen growing demand driven by population growth and increasing complexity of care.

In that context, it is entirely reasonable and responsible to ask: how are our nurse-led walk-in centres performing today? How are they integrating with GPs, emergency departments and new urgent-care models? Are they adequately resourced? Are there opportunities to strengthen collaboration rather than duplication?

We are aware that there is a range of views out there, and they have been touched on already today. Certainly, I think there is a strong view amongst the nursing profession that this is a model that works really well, and they point to its safety record and patient satisfaction. Others, of course, do raise questions, and we know those are out there. When there are contested perspectives, the answer is not to retreat into camps; rather, to look at the evidence, to resolve the questions, and to use that basis to create the pathway forward. A thorough, transparent review examining clinical outcomes, patient satisfaction, cost effectiveness, workforce sustainability and system integration would give us that evidence.

It would allow us to assess whether the current model remains best practice, whether adjustments are needed, and whether further investment is warranted. If we are honest, a review may well confirm that nurse-led walk-in centres are the best model for delivering free, accessible urgent primary care in the ACT. If that is what the evidence shows, we should say so confidently and consider expanding them. Alternatively, a review may identify areas for improvement—perhaps stronger referral pathways, clearer communication with local GPs, enhanced staffing mixes or expanded scope for nurse practitioners.

I note in that context that, for example, this week we will be debating legislation about nurse practitioners being able to sign off death certificates. This is an example, in my mind, of the new opportunities, new areas or new research as to why we want to be thinking about these sorts of issues. If so, we should embrace those improvements.

Continuous improvement is not a sign of failure; it is a sign of a mature and responsible health system.

For the ACT Greens, this discussion today is about three core principles: firstly, respecting and empowering nurses to practise to their full scope; secondly, protecting universal free access to primary care, while being mindful especially that many Canberra households are under significant cost-of-living strain; and, thirdly, ensuring that every part of our health system works together in the interests of patients.

A review that is done well will strengthen, not undermine, the nurse-led walk-in centres. It will give staff, patients and the broader community confidence in their future. It will help to ensure that they remain sustainable, effective and fully integrated within the ACT health system.

We support these centres. We value the nurses who staff them and, precisely because we believe in them, we believe it is time to review them, so that they can continue to deliver high-quality, free care for Canberrans for decades to come.

I appreciated the minister's speech today and the information she provided. That was very interesting. I can confirm that we will be supporting the minister's amendment. In light of the observations she has made, particularly about the work being done by Nous on the national model, it is appropriate to, as best we can, integrate and line up effectively. I believe that a national piece of work is an excellent foundation, as is having the ability, once that work is available to us, to look at it and say, "What do we also need to look at in the very specific Canberra context?" The minister's amendment, in seeking to create that bit of additional time, provides that opportunity, which is why we are pleased to support that amendment.

MS TOUGH (Brindabella) (4.47): I thank Mr Parton for bringing this motion to the chamber this afternoon. It gives me the opportunity to talk about the wonderful ACT nurse-led walk-in centres and give a particular shout-out to the incredible staff at Tuggeranong. Basically, in this speech I will just be saying how great the Tuggeranong walk-in centre is, and I will be sharing some of my weird and wacky adventures at the centre.

Members interjecting—

MS TOUGH: The dog bite is coming! People on this side of the chamber know I am no stranger to the walk-in centres. I have been using the Tuggeranong one probably since it opened. I have stopped counting how many times I have gone there, because I go there so often that they know who I am when I turn up. They know my son. They now know my mum. We are a family of walk-in centre users. It is easy to access. It is open for long hours. The staff are friendly and professional.

Here are some stories. I am not going to start with the dog bite. I used to suffer from chronic tonsillitis, which is not a fun thing as an adult, especially when you are getting five-plus cases of it a year, you are a mum with kids, you are getting fevers all the time, and you are just getting incredibly sick. It is something that needs pretty urgent treatment; otherwise you experience what I experienced many years ago and end up in emergency, on a drip, and getting steroids pumped into you because you have not been

getting treatment.

I knew at the time when I got tonsillitis to get straight on to it, and the easiest way of doing it was to go to the walk-in centre, because they could provide the antibiotics, they could do a throat swab if necessary, and they could send a report to my GP afterwards to tell them about the tonsillitis. Thanks to these many reports, my GP and I were able to sit down and discuss the possibility of having my tonsils removed, which, as a 30-year-old, I was able to do. And let me tell you: there is nothing more fun at any age than unrestricted access to ice cream, custard and jelly, especially overnight in a hospital, when all the kids' parents are stopping them eating it, and I just got to keep eating it. I thank the walk-in centres for being there to treat me urgently every time that happened.

My favourite walk-in experience would be the dog bite. I am probably now known as the woman with the dog bite. While campaigning back in 2024, I was bitten by a dog while out and about doorknocking. Thanks to my coat, there was no blood, so my volunteer and I continued on with our day, continued doorknocking, and I went to an event with the YWCA that evening. At the event, I was lucky enough to meet some wonderful nurses who had come along, who looked at my arm and suggested that I should seek a medical opinion about the bite, which had started to swell. It looked like there was a bit of an internal puncture mark, and they were a bit worried about me. On my way home that night, thanks to the long hours of the Tuggeranong walk-in centre, I was able to stop in and get my dog bite checked.

A fun thing I learnt that night that the walk-in centres can do is speak directly with doctors at the Canberra Hospital about patients. The nurse was able to take photos of the bite, send them through to the plastics registrar at the Canberra Hospital and talk to him on the phone to work out a plan, there and then, for my treatment. Without me needing to then present at emergency to see that registrar in person, they were able to do that on the phone while my arm was soaked in Betadine, getting cleaned up.

The plan included a visit to the Weston Creek walk-in centre the next morning for an X-ray. It was an easy stop at the walk-in centre—I got an X-ray, the results were sent back to Tuggeranong, and I had to visit a couple of times over the next few days. But thanks to the walk-in centre, I did not need to spend an evening sitting in emergency at Canberra Hospital. I was able to get the equivalent level of care from the walk-in centre.

Also, I do not think that walk-in centres should replace GPs. I do not think the government is suggesting that they do, but they provide a complementary service. They are particularly a diversion from emergency departments for things that need to be dealt with quickly but where you do not need to spend time in emergency.

It was heartening to hear from the minister that 85 per cent of people are registering with a GP practice, but I too would like to see that reach 100 per cent. I acknowledge the work that both the ACT and federal governments are doing to increase access to GPs.

I did question, when I first read the motion, why Mr Parton was calling for the inquiry.

Mr Parton: Did you?

MS TOUGH: I did. But I have listened to your speech, Mr Parton, and, if you agree, like me, that they are such an important part of the health landscape of Canberra and, like me, you have had some pretty good experiences at Tuggeranong, although they also sounded quite painful—

Mr Parton: Don't tread on one!

MS TOUGH: I will not tread on a sea urchin. I have trodden on a rusty nail and all sorts of things in my time. I have not trodden on a sea urchin, so I will try to avoid that. Maybe, like me, you just want to see proof of how great these centres are, and you want us to spend some money to prove that. It was good to hear from the minister the work that is underway and how this review can work with other reviews that are underway. I appreciate the minister's amendment to extend that timeframe to allow this to happen.

I want to reflect on the experience of staff at walk-in centres. I have doorknocked nurses who work at these centres, and I chat with them when I am there about what it is like in the centre. They are not always having the best of times. They are experiencing occupational harassment and violence, like many of our healthcare workers, and that is not okay. No-one deserves to be abused at work, especially not when the people at work are trying to help others. They are helping people who are sick, injured and vulnerable, and trying to make their lives a bit better, and they cop abuse. Our awesome nurses and health staff should be safe and respected at work, so that they can look after us and so that we can all have the positive experiences at the walk-in centres that Mr Parton and I have shared.

I welcome the work that the minister has spoken about, the improvements that are underway, and the work going on federally and in the ACT. I thank Mr Parton for bringing this motion to the chamber so that we can see what the review comes back with, to see how awesome our centres are. I look forward to being a patient at the Tuggeranong walk-in centre again in the future, because I know it is going to happen.

MR PARTON (Brindabella—Leader of the Opposition) (4.54): We will not be pushing back against the health minister's amendment. In a perfect world, we would love to get something in six months, but I think it is an extremely sensible suggestion from the minister that we do this process in conjunction with the Nous review of the national urgent-care clinics, because it will give us a fair bit of extra data to play with. It is so important that we get a clear picture of the outcomes from the nurse-led WICs.

We absolutely need to get, as updated as we can, a dollar figure per presentation, with some visibility on duplication of services, the cost of that, and a genuine focus on patient outcome. The Nous report is really important, and it is important that this is balanced against the duplication of services and genuine outcome.

I thank the Greens for their support on this motion. I thank Ms Tough for making us smile and supporting people—in this case, nurse practitioners and staff at the nurse-led walk-in centres. I am sure you are a wonderful patient, Ms Tough.

In closing, there was some suggestion, in doing media on this, that somehow this was something that we dreamt up in some evil back room. I have in front of me the budget submission from the Royal Australian College of General Practitioners, and I want to

put on the record that, in their submission, they were asking the ACT government to commission an independent review of nurse-led walk-in centres to ensure that these services operate safely and effectively, and complement GP-led care. They have suggested that it is important that nurse-led walk-in centres provide accessible care for minor illnesses and injuries, helping to reduce pressure on emergency departments. They say that rising demand and peak period pressures can lead to longer waiting times and inconsistent patient experiences.

They talk about workforce sustainability being a challenge, as experienced nurses and clinical supervision are essential but increasingly difficult to maintain amid shortages, which I am sure the health minister would completely agree with. They say that staffing pressures affect both patient safety and the retention of skilled nurses within the ACT health system. They went on to say that an independent review is needed to assess the centres' effectiveness, quality of care, integration with the broader health system and cost-effectiveness to inform future planning and funding. It is pleasing to see that everyone in this chamber, seemingly, is supportive of those words. Thanks to all; let us get this done.

Amendment agreed to.

Original question, as amended, resolved in the affirmative.

Papers

Motion to take note of papers

MR SPEAKER: Pursuant to standing order 211A, I propose the question:

> That the papers presented under standing order 211 during presentation of papers in the routine of business today be noted.

Burrangiri Aged Care Respite Centre—report—government response

MR RATTENBURY (Kurrajong) (4.58): I rise to respond to the government's response to the standing committee's report into the future of Burrangiri. Let's be clear about what has happened here. The government has rejected recommendation 5—the recommendation that it collect and regularly publish data on the supply and demand for aged-care respite in the ACT, including the total number of hospital bed days for people who could have been accommodated in a respite bed, had one been available. It has also rejected recommendation 8—that the ACT ensure appropriate levels of dedicated respite services are available through additional government owned services. On both counts, I do not believe that the reasoning stacks up.

Firstly, regarding the data, the government says this cannot be done, because aged care is a commonwealth responsibility and because it would not be possible to "accurately identify" which admissions could have been avoided through residential respite. But we already know that respite reduces hospital pressure. In 2023-24, Burrangiri provided 314 respite admissions and approximately 43 per cent were linked to hospital avoidance or reduced length of stay. If Burrangiri can identify that, it is not clear to me why the ACT government cannot. We are told that admissions are "almost always for genuine medical reasons". I presume so. It seems to be a likely statement, but I think it misses

the point. The question is not whether someone needed medical care at the time of admission; the question is whether, without adequate respite or a permanent aged-care place, they deteriorated to the point of crisis or remained in hospital longer than necessary because there was nowhere safe to go.

The question that we are pondering is: how can we plan hospital capacity without knowing how many beds are effectively being used as de facto aged-care beds? How can we vote responsibly if we do not track the number of older Canberrans stranded in hospital because there is no respite or permanent placement available? And, frankly, don't we record why people are in hospital? Don't we know who is medically fit for discharge but waiting on aged care? I believe we do know those figures and I am sure I have heard them reported at various times. If the ACT government does not collect this data, then it would seem prudent to do so, because, if the commonwealth fails to provide sufficient respite and residential aged-care places, it is ACT taxpayers who will foot the hospital bill.

That brings me to the question of funding. The government says aged care is a commonwealth responsibility, which is true. If their federal colleagues step up and provide secure, ongoing funding for services like Burrangiri, that is excellent, but what happens if they do not? If commonwealth funding expires in 2027 and no sustainable model is put in place, those older Canberrans do not simply disappear; they will present to Canberra Hospital, they will stay longer, and ACT Health will carry the cost. We are not in a position to pretend that this is someone else's problem. Respite is not a "nice to have"; it is fundamental infrastructure that keeps carers going, keeps older people at home and keeps pressure off our acute system.

Good planning requires good data, good budgeting requires understanding cost-shifting risks, and good government means not shrugging and pointing to another level of government while our hospital system absorbs the consequences. The ACT can and should know how many people and how many bed nights are spent in hospital for lack of respite or aged care. Without that information, we are at risk of planning blind. Planning blind is not responsible stewardship of our health system.

Having said all that, we have had quite a number of debates about these matters in this chamber. Ms Carrick and I recently attended a briefing, and I appreciate that. I am left with the fundamental feeling that everyone is looking at each other, and, with the new reforms that have come through, there is a certain amount of—as I said in my earlier remarks—shrugging of the shoulders. I am not here to have a crack at anybody in particular, but I am worried that, as people look in different directions, there is an important and vulnerable group of people who is not being looked out for through these reforms. The key observation I want to make today is that I think there is a gap. It seems evident that there is a gap, and we need to find a solution to that gap.

MS STEPHEN-SMITH (Kurrajong—Minister for Health, Minister for Mental Health, Minister for Finance and Minister for the Public Service) (5.02): I was not intending to speak, but I need to briefly respond to Mr Rattenbury's comments. I firstly note that Mr Rattenbury made reference to commonwealth funding expiring in 2027. I have absolutely no idea what that is about. There is no commonwealth funding for Burrangiri. The ACT government is funding Burrangiri until 2027 at the cost of almost $2 million a year, in ACT taxpayer dollars, for a service that is a commonwealth responsibility and

is not structured in a way to be cost-effective or commercially viable in any part of the aged-care system, and we are doing that in a building that is rapidly running out of time. It was considered to be at end-of-life last year, in terms of needing refurbishment.

Mr Rattenbury, throughout his comments, conflated respite and residential aged care repeatedly. We, of course, do know who is medically fit for discharge and awaiting access to aged care. It is not only something we know; it is something we talk about in the lead-up to every Health Ministers Meeting. We put out joint press releases on this data from the ACT and jointly advocate to the commonwealth for greater investment in aged care. So it is something that we not only know but also talk about regularly. Awaiting residential aged care is not the same thing as hospital admission that could have been avoided with respite or discharge that could have been avoided if a respite place were available.

Clearly, people who are now in hospital cannot be discharged to Burrangiri. Part of the challenge that we have had with Burrangiri from the start is that a range of patients are in hospital and potentially might benefit from respite but could not be cared for in Burrangiri because of the state of the physical infrastructure, because, for work health and safety reasons, it cannot take patients who require a sling to be moved in and out of bed or moved around, because the rooms are too small. It cannot take bariatric patients. It does not meet modern standards for delivering this kind of care.

I recently visited the BaptistCare Mullangarrie facility, which delivers the residential element of our Transitional Therapy and Care Program, TTCP, which is a co-funded program with the commonwealth. It is a quite different facility. The bedrooms are mostly shared by two people, with one ensuite between two people. It is not super modern, but it is a fit-for-purpose facility that is part of an accredited aged-care facility and receives funding from the commonwealth government.

I hope that there is a solution to this problem that meets the needs of all the people that Mr Rattenbury is talking about, but part of the challenge we have is that, every time we put forward a solution, it is not exactly the same as Burrangiri and, therefore, it is not okay. We may not have a solution that is exactly the same as Burrangiri. We need people to be a bit flexible. There is already substantial availability of day respite, yet one part of the argument for keeping Burrangiri open is around day respite. I know that there are people who know that place and love it. I understand that. I understand that change is really hard, but it is not sustainable in the medium to long term and we need to look for alternatives.

Also, we do not have access to a range of data. We just do not have access to it. We cannot report on something we do not have access to. The commonwealth often reports on it. We are often asked to report on things that the commonwealth holds and reports on, so we are spending ACT taxpayer dollars and ACT public servants' time on things that the commonwealth is already doing or should already be doing, and then we are lectured about fiscal sustainability. It is not okay to keep asking our public servants to do more with less in areas that are not our responsibility.

Question resolved in the affirmative.

ACT Policing—hate speech laws—standing order 118AA

MR SPEAKER: During question time, Mr Cocks raised a point of order in relation to a question without notice asked by Mr Braddock. Mr Braddock's question was:

> Attorney-General, why are media organisations allowed to rely on their exemptions under the hate speech laws but artists appear to be subject to enforcement action for comparable forms of expression?

The Minister for Police, Fire and Emergency Services took the question and responded as follows:

> As the Attorney-General said, this is an ongoing police investigation. There have been no charges laid as yet. The police are receiving legal advice. I think that, once we have that advice, there will be significantly more community conversation about this issue either one way or another. So I think we just need to wait until that point.

After the point of order had been raised, the minister gave a further answer, indicating:

> To my knowledge, I am not aware that the media has been treated differently—so if there can be some further clarification. ACT Policing received a report last week around the posters and their impact. So that is what the current investigation is exploring. If people have concerns around what has been expressed or reported in the media, they can report those concerns. But I am not sure of what Mr Braddock is actually talking about there.

Standing order 118AA(a) states that "the Speaker may determine that an answer to a question without notice or a supplementary question is not responsive" and, if so, I may determine that the minister is required to provide a written answer. Having considered the matter, I consider that the minister was responsive to the question, and therefore I do not uphold the point of order and the minister is not required to provide a written response.

Firearms (Firearm Prohibition Orders) Amendment Bill 2026

Dr Paterson, pursuant to notice, presented the bill, its explanatory statement and a Human Rights Act compatibility statement.

Title read by Clerk.

DR PATERSON (Murrumbidgee—Minister for Police, Fire and Emergency Services, Minister for Women, Minister for the Prevention of Domestic, Family and Sexual Violence, Minister for Corrections and Minister for Gaming Reform) (5.10): I move:

> That this bill be agreed to in principle.

Today, I present the Firearms (Firearm Prohibition Orders) Amendment Bill 2026. National trends indicate that firearm related violence remains a critical and evolving issue, driving the need for improved oversight, coordination and targeted action across jurisdictions. The devastating impacts of firearm related violence have been highlighted by the shooting deaths of police officers in both Queensland and Victoria, the

antisemitic terror attack at Bondi Beach in December last year which resulted in the loss of 15 lives and the wounding of 40 more people, and the recent death of three people, including a pregnant woman, in a suspected domestic violence related shooting at Lake Cargelligo, in New South Wales.

This bill establishes a firearm prohibition order scheme in the ACT. An FPO is a court order that prohibits high-risk individuals from acquiring, possessing or using firearms or firearm related items. It also gives police expanded search powers to determine compliance with the order. This bill will enhance the capability of law-enforcement to address the threat of unlawful possession of firearms.

In the ACT, the Firearms Act 1996 currently provides for the lawful acquisition, possession and use of firearms. Firearm possession and use is a privilege that is conditional upon the overriding need to ensure community safety. The act places strict controls on the possession and use of firearms and on the safe and responsible storage of firearms. For the vast majority of people in the ACT, the existing structure under the Firearms Act 1996 is sufficient. The FPO scheme proposed by this bill will not affect Canberrans who lawfully own and use firearms. There remains a small group of high-risk individuals where the possibility of the acquisition, possession or use of a firearm presents significant risk to the wider community. For this group, simply denying them a licence to own a gun is insufficient. For this group, there is a need to ensure that they have not acquired firearms. This can be achieved with an FPO scheme.

The scheme is designed to specifically target those whose access poses a serious threat to public safety—for example, people with histories of organised crime involvement or violent extremism, or domestic and family violence. This bill also responds to growing concerns about the availability of illicit firearms in the ACT and the need to proactively prevent organised criminal activity in the territory. While the total number of offences involving firearms in the ACT remains relatively low in comparison to other jurisdictions, each offence involving a firearm can have catastrophic results. Following the range of horrendous crimes involving firearms in other jurisdictions, the ACT continues to review our approach to firearms to ensure our laws provide ACT Policing with the tools they need to prevent firearm crime.

The establishment of an FPO scheme in the ACT, as proposed by this bill, will bring the ACT into line with every other jurisdiction in Australia. However, the proposed FPO scheme has important differences from schemes in other jurisdictions which provide additional safeguards and accountability mechanisms to ensure human rights compliance. Some of these differences include: requiring an order to be made by a magistrate on application by the Chief Police Officer; requiring the magistrate to consider the effect that an order will have on the human rights of a person before subjecting them to an FPO; extending rights of review not only to the person named in the FPO but also to third parties who may be affected by its operation; requiring police officers to record written reasons for using their search powers under an FPO; and requiring a magistrate to be satisfied that the person has acquired, used or possessed a firearm before making them the subject of an FPO.

The scheme is to be reviewed after three years of operation, along with a review of whether the scheme is operating consistently with human rights. This will ensure we have a scheme that is fine-tuned and calibrated to the ACT environment. While the

ACT overall has high levels of safety, the availability of illicit firearms remains a risk to community safety, and it is one which we must be vigilant and proactive about. The FPO scheme being introduced today is an important measure to address that risk.

Before I finish, I thank all directorate officials and ACT Policing for all the work that they have done. I also thank staff in Tara's office and my office for all their work on this, and my colleagues for supporting this important reform that I commend to the Assembly today.

Debate (on motion by **Ms Barry**) adjourned to the next sitting.

Statements by members

Community organisations—Feel the Magic

MS CLAY (Ginninderra) (5.16): I want to talk about the one in 20 kids who are grieving the death of a parent, guardian or sibling, and an amazing charity called Feel the Magic that steps in to help these kids out. Feel the Magic provides specialised grief support programs and camps that teach kids and teens the tools they need to help grieve in a healthy way. It is free; it exists through the generous and amazing team of volunteer mentors, and through community fundraising and donations. They have programs for kids who are bereaved by suicide. Childhood grief is a bit like an elephant in the room, but suicide grief is like a blue whale in the room. Feel the Magic equips kids to process the complex emotions of guilt, shame and blame that often accompany suicide grief.

Feel the Magic ran a Camp Magic last year at Birrigai that three kids I know—Rose, Leo and Silvie—attended. They had an amazing time with other kids just like them. It is so important to have a place where the fact that their dad died is not the most interesting thing about them.

This year, Camp Magic does not have enough kids to run a camp in the ACT, which sounds like a good thing, but, really, there are plenty of kids in need who are not aware that Camp Magic exists. That is why I am speaking about Camp Magic today—to raise awareness of the great work they do and to encourage families with grieving kids to get in touch at feelthemagic.org.au.

Hands Across Canberra—Canberra Day Appeal

MR BARR (Kurrajong—Chief Minister, Minister for Economic Development and Minister for Tourism and Trade) (5.17): Last Wednesday afternoon, I had the great pleasure of launching the Hands Across Canberra Canberra Day Appeal. This is the ACT's largest fundraising campaign, supporting over 350 local charities. The ACT government is a proud supporter of this campaign. It showcases a shared commitment across government and the community sector to Canberra and to giving where we live.

Last year's Canberra Day Appeal raised more than $840,000 for participating charities, which exceeded all expectations, and nearly 1,000 people participated in the 2025 Canberra Day Appeal Fun Run to raise money for the appeal. This will continue in 2026, and I look forward to firing the starting gun for the 2026 fun run.

What makes all of this work so impactful is the way that it brings together donors,

community organisations, businesses and government to respond collectively to areas of greatest need across our city. By coordinating funding and supporting in this way, the appeal helps to ensure that assistance reaches frontline services where it can make a practical difference to people's daily lives.

Russia—invasion of Ukraine

MR CAIN (Ginninderra) (5.19): Today marks the fourth anniversary of Russia's immoral and illegal invasion of the nation of Ukraine, on 24 February 2022. According to the United Nations Human Rights Monitoring Mission, some staggering figures have ensued because of that invasion. More than 15,000 civilians have been killed and over 41,000 have been injured. Those numbers are probably higher.

UN data indicates that approximately 5.75 million Ukrainians have fled their country, seeking safety across Europe and beyond—some even to our shores. Within Ukraine itself, more than 3.75 million people remain internally displaced, uprooted from their homes, yet still within their own borders, with the constant threat of bombardment of residences and crucial infrastructure.

The United Nations reports that more than 12.7 million Ukrainians—nearly one in three—now depend on urgent humanitarian assistance, which is a stark measure of the scale and persistence of the suffering they are enduring four years into this war. Large areas of Ukraine are now considered the most heavily mined in the world.

I say these words in support of our Ukrainian community here and abroad: "Slava Ukraini!"

Discussion concluded.

Adjournment

Motion (by **Ms Cheyne**) proposed:

> That the Assembly do now adjourn.

ACT Policing—resources

MR PARTON (Brindabella—Leader of the Opposition) (5.20): As part of the adjournment debate, I want to share some correspondence that I have received from a constituent whom I will call Renee, for the sake of the exercise. Renee wrote to me and said:

> I recently noticed your invitation for the public to join you on your pub crawl engagement series and, while I am unable to attend, it's prompted me to write to you regarding a disturbing event in my family this week which has left us with little faith in the current ACT government in terms of ACT Policing resources.
>
> Our son works casually at a large retail store in a town centre. Last Friday night, he advised me that a group of eight hooded youths entered the store that evening before disbanding around the store and stealing a large quantity of clothing.

> The police were called while this was going on and were still on the phone as the boys left the store. However, the police advised that they were unable to attend. We learned through social media commentary from the disheartened public that the group had done the same thing in another large store the same evening. The stolen goods from my son's store were estimated at somewhere between $6,000 and $8,000.
>
> As parents and citizens, we were concerned for our son's and his colleagues' safety and dismayed to hear that the police did not attend. We were relieved no-one was hurt and surmised that it must take a violent incident to occur before the police can prioritise or rationalise a call-out.
>
> Five days later, on Tuesday this week, my son was at work when another three males entered the store, grabbed a selection of stock each. On this occasion a female employee requested that one of the males return the garments before exiting. As she engaged with him, he punched my son in the side of the head. The three then ran from the store. Again, the police were contacted, and again they advised they were unable to attend. My son and his manager walked to the police station to report the event. They believe they waited a further 30 to 40 minutes before a police officer was made available to attend to them.
>
> We are disheartened and dismayed at what seems to be the diminishing scale of community policing in this city. It is unacceptable for any worker to be punched in the head in their workplace in direct connection with a crime and be told that the police cannot attend.

Renee went on to say:

> I was going to write this letter to the Chief Minister; however, I feel I am wasting my time. I am not interested in ministerial platitudes. This is not simply about another police recruitment round; it is about how the government of the day invests in additional police and devises a strategy that means our police are present, available and visible on the roads and in public spaces, so people feel safer and offenders feel deterred. It's about enabling police to work proactively to protect the community. It might sound exorbitant, but what price for public safety in what feels to be an increasingly lawless city?

That is from Renee. The hopelessness of this correspondence crushes me. The situation is unacceptable. It is no reflection on the individual police and Policing personnel; it is a reflection on exactly what the Productivity Commission alluded to in their *Report on government services* last week. The Productivity Commission release suggested that the ACT government's spending on service delivery has been growing much more slowly than the overall economy.

Who would have thought that, as we dive deeper down this fiscal emergency hole, less money is actually being spent on keeping Renee's son safe, or on responding to so many calls from the community? We have the lowest per capita number of police in the nation, and it shows. It absolutely shows.

I often wonder, when we consider crime statistics in the ACT, whether it is possible now to factor in just how many law-abiding citizens are so frustrated by the lack of response that they do not even bother reporting a crime, because they know that they will not get any attendance and they will not get any action. Shame on this government.

Multicultural Festival

MR CAIN (Ginninderra) (5.25): I want to speak briefly about the wonderful Multicultural Festival that our city celebrated a few weekends ago, from 6 to 8 February. Here in the ACT, we are proud to call ourselves one of the most diverse and welcoming places in Australia. The Multicultural Festival is certainly a week of great colour, music, wonderful food, world-class performances and cultural differences being celebrated, acknowledged and thoroughly enjoyed.

For over four decades, the Multicultural Festival has brought together cultures from around the world, sharing traditional dance, language, art and stories, where families gather, friendships are formed and barriers are broken down. It reminds us that our diversity is not something to fear but something to celebrate in a spirit of tolerance. In a world that is tragically divided on many fronts, the Multicultural Festival reminds us of what unity can look like and what harmony in action can produce. Different backgrounds, different faiths, different traditions: one Canberra community. It is an opportunity to see the world in Canberra.

My own weekend commenced, in company with Ms Barry, with a celebration of the Year of the Horse at Australian Parliament House. It was a gathering of our Chinese community, predominantly, and other community and organisational leaders to celebrate the Year of the Horse—a year of energy, positivity and freedom. It was a terrific evening with wonderful performances. Technically, it was not part of the Multicultural Festival, but I think they got the theme.

During Saturday and Sunday, I had the pleasure of wandering around so many places. I am sure many were like me: I wished I could have eaten something from every store, but that was not physically possible. I certainly enjoyed some beautiful food, with a vegetarian flavour in my case.

I want to give a particular shout-out to our Chinese, Indian, Nepalese and Ukrainian communities. I have just spoken about the Ukraine. In fact, the first event I attended was a Ukrainian folk dance, and it was a dance with a mother and the mother's child—a celebration of parenthood and relationships in a family setting.

There were so many embassies represented throughout the weekend. It was wonderful to explore all of those and meet some of them, many of whom I know in the ambassadorial and diplomatic scene. It is always good to chat with embassy staff and the official representatives of the nations in our city.

It was also great to talk to those from the culture of my origin, the island of my surname's origin, and to chat with the Irish representatives at their stall. I happily walked around with an Ireland flag tucked into my shirt.

I want to give a particular shout-out to the community organisations that turn up and say, "We're here also. We're part of the community. We serve all and everyone." That included groups like the Canberra Multicultural Community Forum, Diabetes Australia and Volunteering Australia. These are some of the groups that I visited. I certainly cannot name all who attended and presented themselves to the community for service. Legal Aid was there again, as it always is.

It was great to meet with some of our Muslim community groups, the Ahmadiyya

Muslim community, and one of our nominees for ACT Australian of the Year a few years ago, Nazmul Hasan. The offer was to come and chat with a Muslim, so I did.

I also attended the Liberals' stall. There were a few political message opportunities there, and it was great to support colleagues from our party at the festival.

I look forward to this festival. I encourage the government to keep a focus on this and to keep supporting it. For various reasons, there were slightly fewer stalls than last year, but we do hope that our city centre can again thrive, with bustling and diverse activities next year as well.

Horseracing industry—government assistance

MS CLAY (Ginninderra) (5.30): I am often asked why the horseracing industry seems to get such a special deal from the ACT government. It is a question I cannot answer. All I can do is set out my observations, which are backed up by the public record.

The horseracing industry has received or been pledged more than $100 million over the last 15 years under MOUs that they obtained outside any tender or grant process. The current MOU is at least a public document; previous MOUs were not. Under these special deals, the horseracing industry gets more money than the Brumbies, the Raiders, the Canberra Capitals, Canberra United and all of our community sports grants combined.

The horseracing industry has limited obligations under these MOUs, and the last time I asked, neither the industry nor government had met them all. One MOU condition that the industry has met was to commission an industry report showing their economic contribution to the ACT. Generally, an industry-commissioned report will give a pretty rosy assessment, so I was surprised to read this one. It shows the majority of their economic contribution comes from gambling, which is not the kind of economic contribution supported by most Canberrans, and I am surprised that it is supported by the ACT Labor Minister for Gaming Reform.

As well as getting funding under special MOUs rather than through the more usual processes of public tender or grant, the horseracing industry also got a special law. It was to help them out with their workers compensation because their premiums were rising, no doubt due to the fact that they are operating the ACT's most dangerous industry. Other dangerous industries get regulated or shut down—this one gets special help from government.

A parliamentary committee inquiring into workers compensation premiums and insurance ran from January to September 2025. Fifty submitted to say they were struggling with costs. The Domestic Violence Crisis Service said their workers compensation payments had increased fourfold to fivefold since COVID, and as a result they have had to make cuts to staffing and rape crisis services. The horseracing industry did not bother submitting to that inquiry.

On 22 May 2025, Minister Pettersson met with the CEO and Chair of the Canberra Racing Club. I do not know what they spoke about, but I do know that on 2 September, after that special meeting, Minister Pettersson introduced an unprecedented law that

allows the executive to give special access to the ACT government default insurance fund for workers compensation.

Minister Pettersson and Chief Minister Barr have made only one determination under that new law. They have not made it for the 50 people who submitted to the parliamentary inquiry into insurance, or for the Domestic Violence Crisis Service, who have sacked staff and cut services because they cannot afford premiums; they have made that exception for the horseracing industry. The horseracing industry now gets special access to the government default insurance fund. The Canberra Racing Club was not even listed as a stakeholder consulted on the new law, but they appear to have been the only beneficiary of that law so far.

The horseracing industry places a lot of emphasis on information, access and relationships with the ACT government, particularly now that they are in their redevelopment phase. The Canberra Racing Club has had senior public servants and ex-senior public servants from key portfolios on their committee and in key roles like treasurer, chair and vice-chair. A director-general of Major Projects Canberra was treasurer of the Canberra Racing Club. He resigned due to perceived conflict-of-interest reasons after government released plans for the site. Another individual, after their appointment as chair of the Canberra Racing Club, told the media:

> I retired from the ACT public service in 2021 after an extensive management career where I headed the government's major venues portfolio, including Exhibition Park, GIO Stadium, and Manuka Oval; and the government's property portfolio. The Club's relationship with Government will be extremely important as we move into our redevelopment phase and I think I am well placed to build on that relationship.

The horseracing industry is a competitor to government on major events now. They compete with the next-door, government-operated facility, EPIC, and they have clearly benefited from good advice about how to run a major events venue, because they are doing that quite well.

As part of future plans, the ACT government initially prepared for a future without a racetrack by releasing two options for site plans: one with some homes on the site next to the racetrack and one with the entire site redeveloped and no racetrack. But Chief Minister Andrew Barr intervened publicly to dismiss the option with no racetrack, so it did not proceed any further.

So, in answer to the question, "Why does the horseracing industry seem to get such a special deal from ACT government?" I still cannot say, but these are some of the interventions and actions that I have observed from ministers and senior public servants.

Health—gynaecological surgeon—Dr Simon Gordon

MS TOUGH (Brindabella) (5.35): I rise to speak about last night's *Four Corners* program. It made me sick. It made me angry, and I struggled to hold back tears while watching it. For those who have not seen it, last night's *Four Corners* reported on a private gynaecologist in Melbourne who has been performing unnecessary and, frankly, criminal surgeries on women, saying they were for endometriosis. Thankfully, he is now retired. I welcome today that the Victorian government has referred the surgeon to

police. To those who have seen it—especially those who, like me, have endo, and, like me, felt sick and angry watching it—I see you. I stand with you, and you are not alone going through this.

Endometriosis affects one in seven women. It is hard to get diagnosed. It is hard to get treatment. It is hard to be taken seriously. Now we have reports of a surgeon who has performed unnecessary surgery on young women, including: stripping them of their fertility without any fertility preservation options available to them; removing organs without any clinical reason to do so; performing surgery where there was no histopathology showing endo was even there, but then writing surgical reports to GPs saying findings were consistent with endo; and charging the highest rate to Medicare for complex endo surgeries, when it is quite rare to do a complex endo surgery.

It was, frankly, mind-blowing to watch last night, and I fear this is going to send us backwards. I am almost at a loss for words about the fear and pain this is causing within the endo community over the last week or so since this story first broke. I am optimistic this might be a turning point to lead to better outcomes, but I am just as concerned, if not more concerned, this will stop women seeking treatment—that women will withdraw from medical care and will be scared to get help for fear of unnecessary and violating surgeries.

If the *Four Corners* story and associated reporting have caused a person any distress, any concern or any fear, please reach out and seek help. Both Endometriosis Australia and QENDO have support services available, and there are details of them on my socials, or I am happy to help people to reach out and find help available. Do not suffer alone if this has caused any distress or any mix of emotions, because I know that is happening out there.

I know that there are now so many women concerned about whether they have had unnecessary surgeries and whether they have had organs removed that did not need to be removed. I would like to think that almost every surgeon is doing the right thing—that the surgeries they have done were necessary. But now this seed of doubt has been put in minds because of this surgeon in Melbourne performing these surgeries. I want people to know that they have a right to access their medical records and seek a second opinion. Please speak to a trusted healthcare professional or an endometriosis support group about how to do this if this is something that you would like to do—if you want to seek a second opinion and talk to someone about what has happened.

For the women who have had their lives irreversibly changed because of this Melbourne surgeon, some who have reached out to me on Facebook and shared their stories, I am sorry. I am truly sorry this has happened to you. You are more than endo; you are more than the surgeries that have done this to you. I think this is a moment for the whole endo community, and hopefully everyone, to come together and say, "This is not acceptable behaviour by a doctor. It is not acceptable that this was allowed to happen, when there were reports in the hospital that something did not seem right and he was charging a lot of these complex surgeries to Medicare when most other doctors were not; when he was not sending patients to see fertility doctors to have fertility preservation treatments done, before stripping young women of their fertility; and when he was not sending women on to physio and other allied health that can really help with dealing with endometriosis."

I am hoping that this empowers people who are seeing the wrong things happening in the medical profession to speak out, before we get to this point again. I wanted to put on the record how heartbroken I am by what I have seen.

ACT Policing—hate speech laws

MR BRADDOCK (Yerrabi) (5.40): Anyone with kids in their life or, in fact, anyone who is still a kid at heart, which is possibly all of us, knows that, when a kid gets a new toy, they want to try it out—right now. So I guess it is no surprise that members of the ACT police force were impatient to try out the new toy that was gifted to them by the federal government's poorly thought out and hastily enacted new hate crime legislation. Hence the raid and temporary closure on Wednesday, 18 February of the Civic bar and live music venue, the aptly named Dissent Cafe and Bar, for the alleged public display of Nazi symbols. This happened just 15 minutes before a live band was scheduled to start.

This was a ridiculous occurrence. The five posters at issue, created by UK artist Blam, and available online, are clearly satirical. As the artist says, "Speaking out about the rise of fascism, racism, capitalism and genocide is not a hate crime." Under ACT legislation, there is a clear exemption to the prohibition in the context of a reasonable and good faith display, specifically: for "genuine academic, artistic, religious or scientific purpose"; or "for a genuine cultural or educational purpose"; or "in making or publishing a fair and accurate report of an event or matter of public interest"; or "in opposition to fascism, Nazism, neo-Nazism or other related ideologies".

That last point seems to fit this case to a tee. Unfortunately, ACT Policing saw fit to not apply the ACT legislation but, instead, drew upon vague, hastily-written commonwealth legislation—legislation that my federal colleagues opposed. It is noticeable that police, correctly, have not taken action against news outlets that included the original images, because of the exemption that applies for journalistic purposes, and in that particular instance correctly applying one part of the federal laws. But it is incongruous that they can correctly apply one exemption for a journalist but totally fail to apply another exemption for artistic purposes, which is also contained within the act.

There will be collateral damage from this incident, as Dissent's loss of income and disappointed patrons of last Wednesday clearly demonstrate. Further, there is a real risk that this legislation will be used by those with power to stifle legitimate criticism and dissent.

Finally, while the police waste valuable time and taxpayer money pursuing these hate crimes that are clearly nothing of the sort, actual hatred is being spread by people like Senator Pauline Hanson, who has once again vilified the entire Muslim community, as she has done over and over again for the past 20 years. Where is her police investigation? Why aren't powerful people using the new legislation as a weapon against her, rather than against a small local business standing up against Nazism? That is where the real hate is—the hate that is poisoning our community. That is what we must address.

Douglas Frew Waterhouse CMG AO—tribute

MS CHEYNE (Ginninderra—Manager of Government Business, Attorney-General, Minister for Human Rights, Minister for City and Government Services and Minister for the Night-Time Economy) (5.43): Mr Speaker, you are well aware that this morning we farewelled Dawn Waterhouse OAM. If there were anyone synonymous with Dawn, it was her husband, Doug. Douglas Waterhouse had an incredible life and career. In fact, I felt quite conflicted keeping a good deal of it out of my speech this morning. While leaving the chamber I spoke with the family and their friend, Douglas's former colleague and eventual successor in the role of Chief Scientist in the Entomology Division, Max Whitten. Max shared, along with Doug and Dawn's sons and daughter, that, while Douglas Waterhouse is revered as the developer, or the identifier, of the active ingredient in Aerogard insect repellent—and that is what he has become best known for, followed by his leadership of the Australian Dung Beetle Project, which reduced bush fly numbers by up to 90 per cent and had an extraordinary impact—it was what he did for food security, globally, and for national agricultural productivity, both in Australia and in countless countries around the world, through identifying and expanding biological control research at a continental and regional scale, that perhaps had the most impact. Yet, this is also his least celebrated, or perhaps one of his least celebrated, achievements.

Many of Douglas Waterhouse's research efforts and monographs he published resulted in extraordinary changes to crop production in the Pacific, in South-East Asia and in Latin America. Some of the crops that he helped stabilise or improve the production of, through biological control of pests and pest weeds, included rice, coconut, breadfruit, fruit crops, coffee and vegetables.

One of the most extraordinary projects was quite late in his career, regarding bananas. Bananas, obviously, are a big production crop for North-East Queensland, but they are also a major crop for our neighbours in PNG. He, effectively, was able to identify how to control the banana skipper butterfly, which was having a huge impact in Papua New Guinea, and there was a risk that it was going to extend into Australia.

In identifying what could be used to control the banana skipper butterfly, there was a massive recovery in banana yields, and it avoided more than $300 million in losses in Papua New Guinea, which is quite remarkable, and more than $200 million in losses in Australia. The entire project cost only $700,000, yielding a benefit-to-cost ratio of 607 to one—one of the most economically efficient biological control projects ever recorded. He also successfully stopped the incursion of the banana skipper butterfly into Australia through those methods.

In terms of our global, foodbowl production, and many of the crops that we import and benefit from today, so much of that can be traced back to the work of Douglas Waterhouse. What an amazing contribution he and his wife have made to Canberra, to Australia and to the world.

Question resolved in the affirmative.

The Assembly adjourned at 5.48 pm